

# **Nathwani Commission Report**

(The Dawoodi Bohra Commission)

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## **Note on this Translation**

The source is a 193-page Urdu edition of the Nathwani Commission Report, written throughout in handwritten Nastaliq calligraphy. The original report was prepared in 1977–79 by a committee of Citizens for Democracy, chaired by N. P. Nathwani, to inquire into alleged violations of the human rights of reformist members of the Dawoodi Bohra community.

Because the source has no machine-readable text layer and is entirely handwritten, this English version has been produced by reading the manuscript directly rather than by automated OCR.

Words placed in square brackets, and notes in italics, flag points where the handwriting is uncertain. Page numbers in the table of contents are those of this translation.

# Contents

|                                                               |           |
|---------------------------------------------------------------|-----------|
| <b>I. Introduction</b>                                        | <b>1</b>  |
| <b>II. Historical Background and the Dawoodi Tradition</b>    | <b>6</b>  |
| <b>III. The Syedna's Claim to Be Absolute Ruler</b>           | <b>11</b> |
| <b>IV. The Misaq (Oath of Allegiance)</b>                     | <b>21</b> |
| <b>V. The Grievances of the Reformists</b>                    | <b>36</b> |
| <b>VI. Interference with Civil Liberties and Human Rights</b> | <b>43</b> |
| (1) Attack on a teacher, and dismissal from service .....     | 44        |
| (2) The ban on reading the Bohra Bulletin .....               | 47        |
| (3) Marriage without permission declared invalid .....        | 48        |
| (4) A venerable daily .....                                   | 51        |
| (5) Excommunication against the orphanage .....               | 54        |
| (6) Orders to close the cooperative bank .....                | 56        |
| (7) The order to dissolve the Youth Association .....         | 57        |
| (8) Are elections contrary to religion? .....                 | 58        |
| (9) The prohibition of charity .....                          | 60        |
| <b>VII. Excommunication (Bara'at) and Social Oppression</b>   | <b>67</b> |
| (1) A sister's distress; a brother's burial .....             | 68        |
| (2) Attack on women in the mosque .....                       | 69        |
| (3) Oppression at Galiakot .....                              | 70        |
| (4) A son forced to declare disownment of his father .....    | 72        |
| (5) Boycott of an advocate .....                              | 74        |
| (6) Oppression and excess against a Sheikh .....              | 76        |
| (7) Oppression of Bohras in foreign countries .....           | 79        |
| <b>VIII. Further Instances of Social Persecution</b>          | <b>82</b> |
| (1) Obstruction of Marriages .....                            | 86        |
| (2) Forced Resignations .....                                 | 87        |
| (3) Loss of Livelihood through Threats .....                  | 88        |
| (4) Ban on Entry into Mosques .....                           | 89        |
| (5) Harassment during Burial Rites .....                      | 90        |
| (6) Financial Pressure .....                                  | 92        |
| (7) Reservation in the Cemetery .....                         | 95        |

|                                                                     |            |
|---------------------------------------------------------------------|------------|
| (8) Reservation in Mosques .....                                    | 95         |
| (9) Violation of Human Dignity .....                                | 96         |
| (10) Forcing Women to Give Up Employment .....                      | 96         |
| (11) The Bohra Community .....                                      | 97         |
| <b>IX. Interference with the Right to Vote</b>                      | <b>101</b> |
| <b>X. The Autocratic Dispensation</b>                               | <b>109</b> |
| (1) The Firman .....                                                | 110        |
| <b>XI. Attempts at Legislation</b>                                  | <b>122</b> |
| <b>XII. Taxes</b>                                                   | <b>132</b> |
| (1) Zakat and Khums .....                                           | 132        |
| (2) Sila and Fitra .....                                            | 133        |
| (3) Nazr-e-Maqam .....                                              | 133        |
| (4) Haqq al-Nafs .....                                              | 133        |
| (5) Are the Payments Compulsory or Voluntary? .....                 | 137        |
| (6) A State within a State .....                                    | 141        |
| (7) A Passport to Paradise .....                                    | 141        |
| <b>XIII. Income, Property, and Their Management</b>                 | <b>143</b> |
| <b>XIV. Recommendations</b>                                         | <b>153</b> |
| <b>Appendix to Chapter I: The Questionnaire</b>                     | <b>160</b> |
| <b>Appendix A-1: English Dailies; Gujarati Press; Press Note</b>    | <b>177</b> |
| English Dailies .....                                               | 177        |
| Gujarati Daily Newspapers .....                                     | 177        |
| Press Note .....                                                    | 178        |
| <b>Appendix B: Places and Dates of the Commission's Sitzings</b>    | <b>180</b> |
| <b>Appendix C: Illegal Transfer of Funds</b>                        | <b>181</b> |
| <b>Appendix D: The Old Misaq (from Suit No. 94 of 1915)</b>         | <b>184</b> |
| <b>Appendix E: Degrading Conditions Imposed for the Grant of</b>    | <b>186</b> |
| <b>Consent (Raza)</b>                                               |            |
| <b>Appendix F: Firman for Dissolution of the Udaipur Youth As-</b>  | <b>189</b> |
| <b>sociation</b>                                                    |            |
| <b>Appendix G: Community Clearance Letter</b>                       | <b>191</b> |
| <b>Appendix H: The Prevention of Social Disabilities Bill, 1977</b> | <b>193</b> |

## CHAPTER I

# Introduction

This report is the outcome of an inquiry into a complaint concerning the oppressive treatment meted out to the reform-minded members of the Dawoodi Bohra community by devotees acting in the name of the supreme religious head, the Syedna Sahib.

At the outset, some leaders of the reformist section of the Dawoodi Bohra community complained to “Citizens for Democracy” (CFD) that the members of this community enjoy no civil liberty whatsoever, and that the class of mullahs and their helpers harass the reformists in various ways — harassment that amounts to a violation of human rights. They alleged that the reformist members are being made the target of oppression and tyranny by the clergy of the Dawoodi Bohra community in the name of the Syedna Sahib. They requested CFD to take note of these allegations and to hold a proper inquiry.

Citizens for Democracy is an organization that works to strengthen democratic values in every sphere of life — social, economic, and cultural. It is neither a political party nor bound to support any political party. The organization believes in winning public support by promoting reasonable and constructive ideas. Its objectives include the following:

1. To secure recognition of the right of public dissent and, more generally, to safeguard civil liberty.
2. To secure acceptance of democratic principles and standards and, on that basis, to check discrimination, to put an end to casteism and communalism, and to advance social and economic equality as far as possible.

In the past, CFD has taken up several important matters and appointed committees for them. A committee known as the Tarkunde Committee was set up to recommend electoral reforms; its report, containing many proposals, received the attention of the Government of India. Another committee inquired into incidents of violence against Muslims in Andhra Pradesh and the clashes connected with them; this committee, too, was called the Tarkunde Committee, and its report has been published for public discussion. CFD is thus an organization engaged in shaping public opinion and investigating matters of public importance. Its National Working Committee accepted the petition of the reformist Bohras and, at its meeting held in New Delhi on 14 August 1977, decided to appoint a committee for this purpose. The committee was later given the power to co-opt members, and the terms of its inquiry were settled as follows:

*To consider, and to report upon, the alleged violations of the human rights of the reformist members of the Dawoodi Bohra community by the Bohra religious leaders and their associates in the name of the Syedna Sahib.*

After co-opting some members, the committee consisted of the following:

1. Shri N. P. Nathwani — former Judge of the Bombay High Court and Member of the Lok Sabha. **(Chairman)**
2. Dr. (Miss) Aloo Dastoor — formerly Head of the Department of Political Science, Bombay University, now retired; at present a member of the Minorities Commission appointed by the Government of India. **(Member)**

3. Shri V. M. Tarkunde — former Judge of the Bombay High Court; at present a Senior Advocate of the Supreme Court and General Secretary of Citizens for Democracy. **(Member)**
4. Dr. Alam Khundmiri — Department of Philosophy, Osmania University, Hyderabad. **(Member)**
5. Dr. Moin Shakir — Department of Political Science, Marathwada University, Aurangabad. **(Member)**
6. Shri C. T. Daru — Advocate, and General Secretary of [the Gujarat unit of] CFD. **(Member-Secretary)**

After due deliberation, the committee prepared a questionnaire and, together with a covering letter, circulated it — in both English and Gujarati — among all sections of the Dawoodi Bohra community. That letter and questionnaire are reproduced in Appendix “A”.

Immediately after the Commission was appointed, the class of mullahs raised a considerable outcry against it and launched a sustained campaign to obstruct its work. To mislead the members of the community, slogans such as “religion is in danger” and “they are leading you astray from religion” were raised. At various places with a significant Dawoodi Bohra population, demonstrations were organized against the Commission, and state governments were petitioned to ban its activities. Through speeches at demonstrations and gatherings, the attempt was made to convince the Dawoodi Bohras that CFD was interfering in the religious faith and creed of the community and therefore deserved boycott and opposition. It was also claimed that the very appointment of the Commission was contrary to the religious freedom guaranteed by the Constitution of India, and that the Government of India ought not to permit such unconstitutional activity. The propaganda against the Commission was conducted with great skill; during the campaign the Syedna Sahib appointed a former Chief Censor of the Government of India Shri H. J. D’Penha as his Publicity Officer, who directed the publicity drive on behalf of the mullahs and their sympathizers.



Because this campaign created the danger that the real purpose of the inquiry would be misunderstood by the public, the Member-Secretary issued a booklet setting out the facts about the Commission and clarifying the scope of its work. The position was this: the Commission would not inquire into the religious beliefs of the Dawoodi Bohra community; it would determine only whether the allegations made by members of the community regarding violations of human rights were correct. It was further explained that this in no way infringed the guarantee of religious freedom — a guarantee that does not entitle any religious head, or his agents, to suppress the freedom of a community's members or of others, or to trample upon the right of any person to demand social reform and to work for it. On the contrary, harmful customs and practices connected with religious tradition may be regulated, and under Article 25 of the Constitution the State has the power to impose restrictions in such matters in the interest of citizens. The questionnaire itself shows that it raised no question that would touch the truth of any religious belief.

In this connection the representatives of the Syedna Sahib were invited to cooperate with the Commission. They were assured that their statements too would be recorded, and that if they wished to lead evidence they would be given full opportunity, so that no allegation could be unfairly framed against anyone. Despite these assurances, however, they did not extend cooperation and continued their campaign of misguidance.

The mullahs' agents also tried to enlist the support of other Muslims for their campaign against the Commission, but in this they met with no notable success.

Those who, for whatever reason, did not wish to face the allegations levelled against them kept up their opposition once the inquiry had begun. The Commission held its sittings in Bombay, Gandhidham (Kutch), elsewhere in Gujarat, and in Delhi, and took pains to verify the answers it received. The "religion in danger" slogans were raised again and demonstrations organized. At one place a delegation of the Syedna's devotees

approached the Chief Minister of the State, Shri Babubhai Patel, and demanded that the Commission's sitting be banned; the Chief Minister replied that law and order would be maintained and that the sitting would not be banned, adding that it was the Commission's right to meet. The Member-Secretary and other members received a great many letters assuring them of full cooperation. Those who answered the questionnaire naturally wished their names to be kept confidential, though confidentiality was not made a condition for everyone. The Commission held eight sittings in all, three of them devoted to the recording of statements; the places and dates of these sittings are given in Appendix "B".

The number of persons who responded to the questionnaire is 1,075. It is greatly to be regretted that the Syedna's circle and many of its agents held themselves aloof; to establish the truth, therefore, the Commission had to adopt its own method. It examined the written submissions and the oral and documentary evidence with great care, since it was unable to meet those who might have held a contrary view. In any event, the Commission is of the opinion that the evidence placed before it is sufficient and solid, and that its opponents were in no position to refute it.

It should be made clear that Dr. (Miss) Aloo Dastoor, having been nominated by the Government to the Minorities Commission, could not take part in the Commission's work after that nomination. Had this not been so, she would have completed the task she had taken up at the request of CFD. She prepared the questionnaire and, despite considerable labour and risk, took part in the Commission's sittings at Bombay and Gandhidham (Kutch). The Commission gratefully acknowledges her valuable services, rendered before this larger and wider Commission was convened.

## CHAPTER II

# Historical Background and the Dawoodi Tradition

As is generally known, the Muslims are divided into two sects — Shia and Sunni — and the Dawoodi Bohras belong to the Shia sect. They are for the most part descendants of converts to Islam from Hinduism. Their population is not confined to Gujarat alone: members of the community also live in many other parts of India, notably Rajasthan, Maharashtra, and Madhya Pradesh. They are found in other parts of the world as well — Pakistan, Sri Lanka, Singapore, the countries of East Africa, Britain, Canada, and elsewhere. Their total population worldwide is about one million.

Like the Sunnis, the Shias too hold that God is One and that Muhammad (peace be upon him) is the Messenger of God, to whom the Qur'an was revealed; but this is the only belief the two sects share, and beyond it the differences begin. In the eyes of the Shias, Ali — the son-in-law of the Prophet Muhammad — holds a rank nearly equal to that of the Prophet. The Sunnis, too, honour Ali as the Prophet's son-in-law and regard him as a righteous man, but they do not consider him the vicegerent of God; the

Shias, however, place him almost on a par with the Messenger of God. This elevation of Ali may be regarded as a distinctive feature of the Shia creed.

The Shias further believe that Ali, Fatima, Hasan, and Husain are the rightful successors of Muhammad (peace be upon him), and that the Imams after them are the successors of Ali. Each Imam was appointed by the preceding Imam through an explicit designation (*nass-e-jali*). In time the Shia sect itself split into two parts — the Isma'ilis and the Ithna 'Asharis (Twelvers). The split arose around 765 CE, on the death of the fifth Imam, Ja'far al-Sadiq, over the question of succession. Ja'far al-Sadiq's eldest son was named Isma'il, but he died before his father. One group argued that, since Isma'il had been the eldest son, the Imamate had passed to him, and that his son should therefore succeed Imam Ja'far. The other group supported Ja'far al-Sadiq's other son, Musa al-Kazim, holding him to be the rightful successor. Those who supported Musa al-Kazim were in the majority and are called the Ithna 'Asharis (Twelvers); those who upheld the claim of Isma'il's son came to be called Isma'ilis. The Dawoodi Bohras belong to the Isma'ili branch.

At the end of the eleventh century, after the death of the eighteenth Imam, al-Mustansir, a dispute over succession broke out among the Isma'ilis. Of the deceased Imam's two sons, the elder, Nizar, was first made his successor, but he later abdicated in favour of his younger brother, al-Musta'li. One group of Isma'ilis, holding that the elder son could not be deprived of his right of succession in this way, continued to follow Nizar and came to be known as Nizaris; but a far larger number accepted the younger son and so were called Musta'lians. The Bohras of today are Musta'lians, and the Khojas are Nizaris.

According to a tradition believed by the Bohras, the last manifest Imam was Imam al-Tayyib, the twenty-first in this line of succession. He was still a child when he became Imam in 1130 CE. It is believed that, on account of persecution, the twenty-first Imam, al-Tayyib, withdrew behind the "veil of the unseen" (*parda-e-ghaib*); since then no Imam has been manifest.

It is held, however, that a successor of the twenty-first Imam is always present somewhere on earth, and that one day the Imam of the Age will reveal himself. In view of al-Tayyib's concealment, his predecessor, the twentieth Imam, directed that his *Hujjat* be appointed *Da'i* — so that, for as long as the Imam's mission (*da'wat*) continued and the Imam remained concealed, this *Da'i* would be empowered to receive an oath of allegiance from the faithful. Each *Da'i* appoints his own successor by explicit designation (*nass-e-jali*). The *Da'i* stands as the representative of the Imam and is called the *Da'i al-Mutlaq* (the Absolute *Da'i*). Once the Imam becomes manifest, these powers of the *Da'i* will lapse.

Each *Da'i* appointed his successor, and no dispute arose down to the death of the twenty-sixth *Da'i*. But after his death in 1589 CE, a man named Sulayman claimed that the twenty-sixth *Da'i* had appointed him as successor, and he founded a separate sect, the Sulaymanis. The remaining members of the community, who rejected Sulayman's claim, held that the twenty-sixth *Da'i* had appointed Dawood bin Qutb Shah as his successor; these people came to be called the Shia Isma'ili Tayyibi Dawoodi Bohras. "Bohra" is a Gujarati word meaning "trader."

Before this time the supreme head of the Bohras had already moved his seat from Yemen, in Arabia, to Gujarat. Within Gujarat the seat shifted from place to place and was eventually fixed at a location where it remained for more than 150 years. It is now situated in Bombay. The supreme head of the Dawoodi Bohras is called the Syedna Sahib, or Mullaji, and is also referred to as the *Da'i al-Mutlaq*. The present supreme head is Syedna Mohammed Burhanuddin Sahib, who ascended the *gaddi* (seat) in 1965. He claims to be the fifty-second *Da'i* in the line of succession; his predecessor, the fifty-first *Da'i*, was his late father, Syedna Taher Saifuddin Sahib.

There is some controversy as to whether the present Syedna Sahib's claim to the *gaddi* is valid. Some members of the community believe that the line of succession was broken after the death of the 46th *Da'i*,

Badruddin. They say that the 46th Da'i died suddenly of poisoning and was unable to appoint a successor; but at the time the scholars of the community, in order to prevent a schism and to keep the community's members from joining the Sulaymani sect, issued a *fatwa* in favour of Najmuddin, declaring him the proper person to succeed Badruddin, and he was accordingly chosen as Da'i al-Mutlaq. These scholars, it is alleged, concealed from the ordinary members of the community the fact that Badruddin had not in fact appointed him. Such people argue that, if this is so, all the later appointments of successors are rendered invalid, the present incumbent of the gaddi is illegitimate, and his claim to act as supreme head cannot be valid.

We wish to make it clear that we have no interest in whether this dispute is well-founded or not. In Bombay, some persons, in the course of their statements, urged us to treat the present incumbent as a usurper; but we told them that this dispute has no bearing on our inquiry. In any case, the dispute was decided by the Privy Council in 1928, in a case decided in favour of the fifty-first Da'i — the predecessor of the present incumbent. That case was *Hussain Ali and others v. Mansoor Ali and others*, reported in All India Reporter 1928, Privy Council, page 66.

The historical facts and traditions set out in this chapter are drawn from four sources, three of them judicial decisions. They are:

1. The judgment of Justice Arnould, delivered in 1866 in the two suits instituted by the Advocate General of Bombay on the Equity Side of the Supreme Court of the day (before the Bombay High Court came into existence) — [*Advocate General*] v. *Muhammad Husen Huseni* — reported in 12 Bombay High Court Reports, page 335. This is also well known as the “Aga Khan Case.”
2. The judgment of Justice Marten of the Bombay High Court in *Advocate General of Bombay v. Yusuf Ali and others*, reported in 24 Bombay Law Reporter, page 1060. This judgment was delivered in 1921.

3. The judgment of the Judicial Committee of the Privy Council in *Hasan Ali and others v. Mansoor Ali and others*, reported in All India Reporter 1928, Privy Council, page 66.
4. The first part of the volume of the Bombay Gazetteer dealing with the people of Gujarat, edited by James M. Campbell and published in 1899. Part One relates to the Muslims of Gujarat.

### CHAPTER III

## The Syedna's Claim to Be Absolute Ruler

The Syedna Sahib claims not only to be the religious head of the community, but also to be its head in secular affairs. The question is: what is the source of his authority? In every town where there is a sizeable population of Dawoodi Bohras, he always has a deputy, who is called the *Amil*. This Amil is given authority to take the *misqa* (oath) from the Bohra youth, to administer the oath of allegiance to the Syedna (see Chapter Five), to arrange marriages, to conduct the rites of washing and burial (*tajheez-o-takfeen*), to collect taxes from the members of the community, and to maintain general supervision over the affairs of the community. The Amil acts as the deputy of the Mulla Sahib and, with his permission, represents him not only in India but in other countries as well. The Commission received replies to its questionnaire from several countries of the world, and from these replies it is clear that wherever there is a population of Dawoodi Bohras, an Amil works there as the deputy of the Mulla Sahib.

We must now see what powers the Syedna claims, and what powers he actually exercises. For this we must go back into the past and see how



the reformist movement began, and how these powers — of which the Syedna is the claimant — came to be used not only against the reformists but against all the members of the community.

In Bombay there is a mosque named after Chanda Bhai, whom the Dawoodi Bohra community regards as a saint or holy man. There is a tomb of Chanda Bhai, and also a *galla* (a box into which offerings are dropped). There are other properties as well, said to have been bought from the surplus funds of the *galla*; and there is a building called Badri Mahal, of which it is said that it was bought partly from the *galla*'s money.

Badri Mahal is a magnificent, palatial building, situated in a fashionable quarter of Bombay. The Mullaji Sahib, with his large family, lived in it until quite recently. The offices of the community are housed in it as well.

A man named Ibrahimji Adamji — son of the well-known Bohra philanthropist Sir Adamji Peerbhai — and many others felt that it was most improper for money received in the *galla* as offerings to be used for private purposes. They claimed that all these properties — the mosque, the *galla* funds, the saint's tomb, and Badri Mahal (said to have been bought partly from the *galla*'s money) — should be handed over to a trust in the interest of the community, and that a proper scheme should be drawn up for their management. They therefore applied to the Advocate-General of Bombay of the day (who was also the Public Trustee) to draw his attention to the matter. The Syedna Sahib of that time (Taher Saifuddin) claimed before the Advocate-General that he had absolute authority over the lives and property of all the members of his community — including the charitable and public funds — and that he was their sole and absolute owner, answerable to no one. The Advocate-General accordingly filed a civil suit against the Syedna Sahib in the Bombay High Court on behalf of Ibrahimji and others; in it, among other prayers, it was prayed that the Chanda Bhai mosque, the tomb of Chanda Bhai, the money placed in the *galla* there, the four pieces of immovable property bought from the surplus *galla* fund, and Badri Mahal — bought partly from the *galla* money

— be made over to a trust. The plaintiff (the Advocate-General of Bombay) also prayed that the accounts of these properties be called for.

The suit was No. 94 of 1916, heard by Justice Marten, who delivered judgment on 19 March 1921. The judgment is partly reported at 24 Bombay Law Reporter 1060. As is the habit of the law reporters, the discussion of the evidence has been left out of this report too; we have therefore relied on the full text of the judgment — the arguments, the discussion of the evidence, and the observations of the learned judge.

The arguments advanced by the great Mulla Sahib of the time in this case are quite interesting. He argued that Chanda Bhai was no *pir* or saint, and that the mosque was not in his name. He argued, too, that the offerings in the galla were not charitable donations at all, but offerings made to that galla, over which — as Da'i and head of the community — he had complete control, so that he could spend all such offerings as he pleased; and that, as Da'i, he had the right to close it at any time. He argued that Chanda Bhai's tomb could not be made the subject of a trust; that Badri Mahal had been offered to him and his successors in perpetuity as a *waqf* and that all the properties in suit belonged to him in his capacity as the spiritual and temporal head of the community. He claimed that the management of these properties was carried on by his Amils, who were subordinate to him and answerable to him alone, and that the plaintiff had no right to call for accounts.

He laid great stress on these arguments during the hearing. The witnesses produced in support of them were cross-examined. These witnesses stated that the Mullaji Sahib is answerable to no one except the Hidden Imam, that he is the representative of God on earth, and that he is therefore free from error and infallible (*ma'soom*). They further stated that, according to their religion, the Mullaji is the perpetual owner of the property, body, and soul of every member of the community; that it is incumbent on his devotees to follow him blindly, with their eyes closed; and that they cannot raise a finger against any act of his. They also said

that he can take any property he wishes from his followers — whether as waqf, gift, or purchase — and that in the Dawoodi Bohra community the misaq the followers give him is binding for ever. There is thus no irrevocable charitable trust at all. To say that he is answerable only to the Hidden Imam is merely to admit that he is answerable to no one; for the Imam is nowhere to be seen on earth, and the Imam, in practice, can never call the Da'i to account.

One of the Mullaji's witnesses, himself a defendant in the case, made the following statement on oath before the court: "The Mullaji is the owner and master of the community. The Mullaji has a right over everything. We are working merely as his *mehta* and *munshi* (clerk and agent). By 'we' I mean the whole community; the entire community is his *mehta*. The Mullaji is the owner of everything. By 'owner of everything' I mean those things connected with the community." (The word *mehta* is taken from Gujarati and means 'clerk'.)

It was further claimed that the Da'i al-Mutlaq, being the deputy of the Imam, is the representative of the Imam; and that, being the representative of the Imam, he is the representative of God and conveys God's pleasure to the people. For this reason, it was urged, the Da'i must possess powers like those of the Imam himself; and just as the Imam is infallible, so too the Da'i is wholly infallible.

In the early stages of the hearing, the defendant's counsel advanced the argument that the Mullaji Sahib is God, or effectively God, and that the present suit therefore amounted to an act of irreverence. This argument was later withdrawn; but it was claimed that, although the Mullaji Sahib does not hold the rank of a Prophet, he possesses the powers of the Holy Prophet Muhammad Mustafa (peace be upon him), and that he is a *wali* (saint).

The Da'i of the time, in order to justify these vast and unprecedented powers, advanced these absurd claims of authority — claims the clergy have gone on using and wish to go on using. Besides being the religious

head of the community, he claims to be the owner of the minds, bodies, souls, and property of its members. Plainly, if he is the representative of God, what is there that he cannot do? All the Dawoodi Bohras are his munshis and mehtas, and he can direct any member of the community as to what evidence he is to give in court — because the Bohras, on reaching the age of majority, give the Da'i the misaq (oath), which is held to stand higher than any oath taken in the witness-box of a court. It is plain that the testimony of the young Bohras attached to the Da'i would inevitably be coloured by the misaq they had given the Mullaji. It had been dinned into the ears of all the Bohras that, if the Da'i were displeased on account of any disobedience, even God would not forgive such a sinner. (See the relevant paragraph on the misaq in Chapter Four.) How, then, could such a person give evidence against the Mullaji's wishes? To do so would amount to disobeying the Mullaji's commands. Justice Marten rejected the Mullaji's claim in the following words:

“It is wrong to say that the Mullaji Sahib holds the position of God [...] or virtually holds the position of God, and that the present suit therefore amounts to an act of irreverence. I consider this to be contrary to that fundamental belief of the Muslims — that there is no god but Allah, and Muhammad is His Messenger — a belief of which every educated person in the world is aware.”

Referring to the principal religious books of the community — first, the Qur'an; second, the Hadith, or sayings of the Holy Prophet Muhammad (peace be upon him); and third, the *Nahj al-Balagha*, or the sermons of Hazrat Ali — the judge observed in passing that the claim the Mullaji now presses with such vigour is mentioned in none of them. The Mullaji's counsel conceded that he could not produce, in clear terms, any religious authority for the claim that the Mullaji may take the property of a waqf by agreement, will, or scheme. The learned judge said: “I have looked through all the religious books that were cited, but it is not practicable to discuss them in this judgment. I have considered them carefully, but I am not satisfied that they support the Mullaji's claim that he is the owner of

the minds and the property of his followers. I mean that, even on the score of religious belief, this ought not to be so; and, moreover, the religious leaders themselves appear to distinguish between the worldly and the spiritual senses of ownership.” In this way, when a former Deputy Amil of Bombay, Shaikh Kawkab, was cross-examined in the case of the head (peshwā) of Surat he was asked whether it is correct or wrong that the 49th Dā’ī states that they had not the slightest interest in the property. The witness replied: “From a worldly point of view they had no interest; therefore this statement of theirs is correct.”

On the question of ownership of property, we see that the Mullaji claims to be the absolute owner of the mosques and the like, and also says that he is answerable to no one. He goes so far as to say that, if he were treated as removable and held to account, the religion of Islam itself would come to an end. What he means is that he stands above the civil and criminal laws of the land — that, because of his infallibility, Islam neither makes nor wishes to make him subject to the country’s laws. He said that infallibility and accountability cannot exist together. He claims, besides, even the private property of his followers. This is evident from the following extract from Justice Marten’s judgment:

“On 8 January 1921, Mr. Binning stated that, according to his religion, his client has the power to confiscate the property of his followers; but it did not appear whether he could enforce this power through any court of law, and learned counsel gave no answer, yes or no, on the point. Almost the same situation arose at the time of the defendant’s counsel’s closing address.” (Mr. Binning was one of those appearing for the Mullaji Sahib in this suit.)

In support of these baseless claims, the Mullaji Sahib relied on the proclamation of religious freedom issued on behalf of Queen Victoria on 1 November 1858. On the subject of religious freedom, Justice Marten says:

“By way of principle it may be stated that the British Government, as a general rule, grants its subjects personal liberty, freedom of

conscience, freedom of expression, and even the right of property and equality before the law. But the liberty granted to the subjects is not to be used to cause harm to others. (Enjoy your own property in such a way as not to injure others.) This principle applies to the right of property as much as to other rights. In other words, freedom is not to be taken as unrestricted licence. Restrictions therefore have to be placed on those who abuse civil rights. Those who defame others are checked by the law of defamation; a thief is checked through India's code of criminal procedure. But the mere existence of these means of restraint, applied equally to every citizen, is no cause of anxiety to the honest citizen. It is inconceivable that a high dignitary such as the Archbishop of Canterbury would commit any offence; yet even he is not above the criminal law, and this is no insult to him. The same principle applies to the Mullaji Sahib: he too is not above the criminal and civil laws of this country — although it cannot even be imagined that he would commit any offence.”

It appears that Justice Marten was, in this matter, unduly charitable; for it has since come to light that the present Syedna [or his deputy — reading uncertain] was involved in violating the foreign-exchange laws of Tanzania, and that the Government of Tanzania expelled him from the country on that account. (See Appendix C.)

A clear example of this is the attempt of a Dawoodi Bohra Amil to have the 49th Da'i sent to jail for non-payment of a decretal sum, to which reference has already been made. (See Appendix [B / E — uncertain].)

It is worth noting that no Da'i in the past had ever made the claims the Mullaji Sahib now makes. The learned judge wrote the following in his judgment:

“The defendant cannot cite even a single instance to show that, before this suit, any Mullaji Sahib had advanced claims of such magnitude. He has not even been able to prove that such claims were ever made before this case ...”

The hearing of this suit in 1920 appears to be the first occasion on which such claims were made, whereas the first Da'i was enthroned in 1137 CE. It is possible that these claims have their origin in the days when, as Sultans of Yemen, the Da'is enjoyed independent sovereign rights. But, as has already been said, even if that era did not end when the Da'i left Yemen and came to India, it had certainly come to an end by 1539 CE.

The reformist group has stated before us that, before the reign of the fifty-first Da'i, the members of this community — even the priestly class — enjoyed far greater freedom than they do today. These people could openly oppose the Da'i, and the weapon of excommunication was rarely used against them; the earlier Da'is did not lead the life of luxury and indulgence that is led today. This appears to be the just position. Marten wrote in his judgment:

“It is now evident that, when the 49th Da'i (that is, Burhanuddin) was enthroned, the seat (*gaddi*) was at that time heavily in debt ... It is plain that, because of these debts, the *da'wat* must have faced considerable difficulty. It is a painful thing that steps unbecoming the dignity of a Da'i were taken ... [A] Dawoodi Bohra pontiff ... Abdul Latif, too, was a creditor; his suit ... was for a debt of Rs. 53,680 ... The result was that the suit was decided, the decree directing the defendant to pay the sum with interest, payment being spread over twelve years in instalments ... The next step in the case was astonishing, for the Dawoodi Bohra pontiff was in fact bent on sending the Da'i to jail for non-payment of the decretal amount, or a part of it ... At that time the Da'i did not utter a single word to the effect that he owned the body, soul, and property of this pontiff. In truth, that would have been the proper moment to advance such an argument — when the Mullaji's own followers were bent on sending him to jail. I count it in the Da'i's favour that he did not try to excommunicate that bold pontiff from the community.”

*(The names and the figures in the extract above are difficult to read in the handwritten original and are uncertain.)*

Justice Marten, rejecting the grand claims of the fifty-first Da'i (Taher Saifuddin), held that the mosque falls within the scope of a waqf for religious and charitable public purposes; that the Mullaji was its trustee (*mutawalli*) and therefore accountable; and that the tomb of Chanda Bhai and the offerings placed in the galla were charitable donations, the waqf of which the Mullaji administers for public charitable purposes. The court also held that Badri Mahal had been bought partly with the galla's money, and that the sum taken from the galla for the purpose must be returned to it; failing which, the galla's charitable money would be treated as a loan charged upon Badri Mahal.

The Mullaji Sahib appealed against Justice Marten's judgment to a Divisional Bench of the Bombay High Court – Appeal No. 34, filed in 1921 [year uncertain]. The appeal, however, was settled by mutual agreement on 22 December 1921. Under the compromise, a minor amendment was made to the decree: the Mullaji Sahib was permitted to keep, at any time, another box outside the railing of Chanda Bhai's tomb, on or beside which it would be written that the Da'i al-Mutlaq would have absolute discretion over the offerings placed in that box – whether he applied them to charitable or to non-charitable purposes. Thus, with this small change, Justice Marten's judgment and decree became final, and thereafter neither party filed any appeal in the matter.

This case makes it clear that the fifty-first Da'i, in the suit filed against him in 1917, advanced claims of absolute autocracy for the first time – claims that find no support in any religious book. We shall describe later how much more, or how much less, freedom has been allowed under the present Da'i. But what has been said above makes it quite plain that, under an earlier Da'i, not only an ordinary member of the community but even a pontiff's own household had the right to oppose the Da'i: they could file a suit against him in court, with no danger of being excommunicated from the community.



This case stripped away the cloak of self-fashioned spirituality the Syedna had assumed, and subjected him to the law of the land. His claim to absolute ownership of the community's property was proved false, and he was held to be merely the trustee (mutawalli) of that property. He remained the religious leader, but was deprived of the royal crown he wished to wear. From then on his status was that of a mortal man, responsible for the religious affairs of the community but nothing more. He bore his reduced position patiently; but afterwards he began to level accusations of deceit against the reformist group and his other opponents. Before reviewing the evidence, however, we shall, in the next two chapters, examine all the allegations that the reformist group has made.

## CHAPTER IV

# The Misaq (Oath of Allegiance)

The most serious complaint of the reformist group concerns the misaq — the oath of allegiance, or the form of the pledge of obedience that the Syedna and his representatives, the *aamil* (agent) and the deputy *aamil*, administer to young Bohras. It is in the manner of its administration that matters have reached an extreme.

The reformist group says that this is a kind of coercive oath, and that, instead of binding young Bohras to God, it binds them to absolute submission and obedience before the person of the Syedna Sahib. This same oath of the reformists is turned into a tool for various forms of inhuman treatment — treatment that has a social dimension as well — and which the clerical class wields as a weapon.

Before examining its effects, let us see what kind of thing it actually is and how it is administered. One witness produced a copy of the misaq, an English translation of which is reproduced here. Every boy and girl, on reaching the age of puberty — that is, between the ages of 11 and 15 — is made to take this oath. The *aamil* reads it out, and after each paragraph he makes the oath-taker assent, the oath-taker affirming his acceptance with devotion. At the time of taking the oath, the parents of the boy or girl must, through the *aamil*, give the great Mullaji a sum of money as

an offering (*nazr*). This same oath is called the “tasting” of the misaq. It is said that the person who takes the oath thereby gives a misaq to the Syedna Sahib.

In the case *Advocate General of Bombay v. Yusuf Ali and others* [reported in 24 Bombay Law Reporter 1060] — which is also known as the “[Chandabhai] Galla case” — the predecessor of the present Syedna Sahib was himself the principal defendant. His name was Taher Saifuddin. He gave evidence himself, and produced a document containing a misaq, whose English translation was also placed on the record. In that case the document was admitted [as an exhibit]. Justice Marten, in his judgment, treated it as a document; and this fact too is evidence. Saifuddin claimed that it was a confidential document, and so its full text does not appear in the judgment of the Bombay High Court; but Justice Marten, referring to it, recorded that Saifuddin himself stated the document was 90 years old. That evidence was given in 1921, so even on the elder Mullaji’s own statement the document was not very old at that time — perhaps written around 1833. At the end of the copy of the oath exhibited here, it is written 1248 Hijri which gives 1833 A.D.

Another witness produced a copy of this English translation, which had been placed in the [Galla] case mentioned above. An appeal against Justice Marten’s decision had been taken to a Division Bench of the High Court, and a copy had been obtained from the appeal papers.

Yet another witness produced a printed book entitled *The Muslim Waqf Act and the Dawoodi Bohra Sect*, which he said he had had printed in 1933. It contains about 29 documents — including pleadings or counter-pleadings and petitions — which the reform-minded class had sent to various authorities, requesting that the demand of certain Bohras, that the Dawoodi Bohras be excluded from the Muslim Waqf Act of 1923, should not be granted. In that book one of the documents is the English translation of the misaq, and its wording matches the copy mentioned earlier.

For this reason we are satisfied that the misaq in our possession is an authentic copy — the very one that Saifuddin (the Da'i) himself produced. We are also satisfied that the clergy, through their agents, use this same document in administering the ceremony of the misaq. Saifuddin claimed that the document he produced was confidential; but we cannot understand how, when the great Mullaji and his agents administer the oath to the Bohras using this very document, it can be a confidential one. There may once have been some need to keep it secret — in a time of worldly rulers or of persecution by other sects — but under British rule there was no such need; the secrecy served only to consolidate his authority and to keep people deprived of freedom of expression. Nor is there any proof for the suggestion that the great Mullaji, or his associates, or the whole sect, would be endangered by its disclosure. The number of Dawoodi Bohras increases by the day, so the question of keeping the matter secret does not really arise. We therefore include it in our record and report, as is proper. Besides, it has already been published several times; most recently it was published from Poona by *New Quest* in issue #7, January-February of 1988.

We give below the English translation of this misaq, which the Syedna has been using at least since the time of Taher Saifuddin.

## The Misdaq

*The clause-numbering below follows the handwritten original, which is irregular and in places hard to read; the numbers are reproduced as they appear.*

(1) And if the Imam of the Age or his Da'i orders you to wage war against an enemy, you shall wage war. You shall help with your life and your wealth, and you shall follow the resolve of the Imam of the Age or his Da'i. .... Say — Yes.

(2) Whatever the Imam of the Age or his Da'i commands you — even if it be against the whole world — you shall act upon it. You shall obey the command of the Da'i and shall not refuse, lest you become a sinner. You shall not be among the opponents of the Da'i. You shall make no claim

to be the Da'i yourself. You shall accept whatever the Da'i says, and shall entertain no doubt concerning him. ....Say — Yes.

(3) You shall obey the *firman* (decree) of the Imam, and acknowledge that the Imam Tayyib, Abul Qasim, Amir al-Mu'minin, is your Imam. ....Say — Yes.

(4) And in all matters you shall obey the command of the Imam's Da'i. You shall not make use of anything the Da'i declares forbidden to you, and you shall incline to the Da'i's side. You shall love whom the Da'i loves and treat as an enemy whom the Da'i treats as an enemy; you shall make war on those against whom the Da'i makes war. Whoever disobeys the Da'i's command shall be reckoned among the apostates (*khariji*) of the faith — be he your father, mother, brother or sister, a near relation or anyone else, you shall keep no association or dealings with him. You shall hold no correspondence with him, open or secret, and shall do nothing that fosters friendship with him. By no means and on no pretext shall you make your way to the enemy of the Da'i. The enemy of the Da'i is your enemy. ....Say — Yes.

(5) And when the Imam or the Da'i gives the command for *jihad*, openly, you shall not hold back, nor show cowardice or reluctance; with a sincere heart you shall devote your life and wealth to the purposes of the Da'i. You shall give the Da'i, or his deputy (*na'ib*), full information about any person who acts contrary to the Imam-uz-Zaman. ....Say — Yes.

(6) And you shall not deprive the Da'i of your help, you shall not deny him, and you shall not violate his command. Further, in no matter of false belief shall you refuse to take the oath of obedience to the Da'i. You shall devote your wealth and life to the service of the Da'i. The owner and master of your life is the Da'i of the Imam-uz-Zaman. ....Say — Yes.

*[At this point the manuscript notes that clauses (7) and (8) are not included in the version recorded on p. 19 — apparently a reference to the version in the Gulzar-e-Dawoodi discussed later in this chapter; the reading is uncertain.]*

(9) And you shall be content with the command of the Imam's Da'i. To whom he wishes among you the Da'i will give honour, and whom he wishes he will disgrace; whom he wishes he will reward, and whom he wishes he will leave deprived; whom he wishes he will punish, on whom he wishes he

will bestow favour, and on whom he wishes he will send down his wrath. The pleasure of the Da'i is your pleasure. ....Say — Yes.

(10) The misaq is obligatory upon every person, and it is binding to hold the right belief through him by whom the misaq is administered. Whoever breaks the misaq — openly or by concealment (*taqiyya*) — is, in the sight of the Creator of the heavens and the earth and of His creatures, counted as accursed. The breaker of the misaq becomes an apostate from the Torah, the Bible, the Psalms (Zabur), and the Holy Qur'an, and is also deprived of the prayers of the Imam. ....Say — Yes.

(11) If any person, after taking the oath, breaks the misaq, then all his property — that is, his movable property: cash, house, utensils, jewellery and ornaments, carriages, horses, cattle, male and female slaves, and all worldly goods and possessions — becomes liable to be plundered and divided among the poor and needy. When he takes the oath again and accepts all the conditions of obedience, his property becomes lawful once more, and he becomes entitled to take back his things. ....Say — Yes.

(12) Whatever benefit he has derived [from his property in the meantime] becomes unlawful to him; that is, until he takes the oath again, the benefit he has gained does not become lawful for him. ....Say — Yes.

[All the male and female slaves of the misaq-breaker shall become free, and until he takes the oath of obedience again his ownership over them shall lapse. ....Say — Yes.]

(13) And if the misaq-breaker has a wife, she becomes forbidden (*haram*) to him. (Breaking the misaq is equivalent to pronouncing the three divorces upon the wife — that is, a final and irrevocable separation.) That woman can never marry him again, nor may he regard her as his wife. ....Say — Yes. Even if the misaq-breaker were to perform the *hajj* again and again, God will not accept his pilgrimage, nor forgive him the sin of breaking the misaq — unless he takes the oath of loyalty to the Da'i afresh, in which case God will accept his *hajj*, his prayers, his fasts, and his other good works. ....Say — Yes.

(14) And upon the misaq-breaker falls the curse of God — the same curse that falls upon Satan, who is a denier; such deniers are declared deprived of paradise and consigned to hell. ....Say — Yes.

(15) And the one who breaks the misaq, after death, will come before God as an unbeliever (*kafir*) and a forsaker of the faith. God can never forgive him, and he will be cast into the lowest depths of hell. There is no god but Allah, Lord of the Worlds, the Most Gracious, the Most Merciful. The denier turns his face from the worship of God and worships at tombs; and all the unbelievers worship idols — so the denier will share the fate of the idols. The wrath of God will swiftly overtake the misaq-breaker and destroy him, and he will be flung into hell, where there is nothing but torment. ....Say — Yes.

(16) Your salvation lies solely in adhering to the misaq; there is no other path than to act upon the conditions of the misaq. You have made God your witness, and the testimony of God is sufficient. ....Say — Yes.

(17) You have heard the words I have read to you, and you are pleased with my conditions. May your neck be bound to obeying the command of God. Taking a firm oath and pledging your loyalty, [you affirm] that the loyalty you owe to your master, the Imam Tayyib, Abul Qasim, Amir al-Mu'minin, shall be very firm and shall endure until the Day of Resurrection.

When the Imam Tayyib, on account of the oppression of tyrants, withdrew behind the veil of the unseen, he ordered that the mission (*da'wat*) be kept ongoing, and for this purpose he left behind three offices — the Da'i, the Ma'zun, and the Mukasir. Through the existence of these three offices the knowledge of the Imam's existence is preserved. The Imam of the Age's present Da'i is the great Mawlana Syedna Zainuddin, may God prolong his life. The Ma'zun is Shaikh Adam and the Mukasir is Hibatullah. Whoever accepts Saifuddin and these three men accepts the Imam-uz-Zaman. ....Say — Yes.

(18) Then, with a willing heart, you have given the oath of loyalty and faithfulness to the Imam and his Da'i. God says in the Holy Qur'an, addressing the Prophet: "O Muhammad, those who pledge their loyalty to you in truth pledge it to God; the hand of God is above their hands." Whoever breaks the oath has committed the sin of breaking the misaq, and his soul will be afflicted with torment; whoever fulfils the oath he has taken will be rewarded, and the mercy of God will descend upon him. To every person from whom the misaq is taken it is said that he must hold fast to

the covenant of God, for the true believer is not one who keeps it on his tongue alone. [Then, addressing the elders:] ... “You make me an adherent of your covenant; O God, make me one who fulfils my covenant.” And all praise belongs to God, who is One, the great Everlasting; and [blessings] upon Muhammad and his *wasi* (legatee), and upon their progeny, who are upon the good, true, and straight path. Peace and salutations.

*[Scribal colophon:] On the 19th of Rabi al-Awwal, 1228 AH, the slave of the great Da'i, Mawlana Zainuddin — may God prolong his life — namely Ahmad Dildar Mulla Noor Khan, wrote this in the city of Ajmer. May God grant them intercession.*

This document is, in practical terms, a covenant of slavery. Paragraphs 4, 5, 6, 11, 12, and 13 in particular are noteworthy for their shameful inhumanity.

Paragraph 2 binds every Dawoodi Bohra to carry out every command of the Imam's Da'i — that is, the Syedna Sahib of the relevant period. To disobey a command is a sin. It is an advance promise to obey all the Da'i's commands without even knowing their nature.

Paragraph 4 makes clear that this obedience is owed not only in religious matters but in all things, including all non-religious affairs. It leaves the oath-taker in no doubt about the consequences of breaking the oath: the moment he breaks the covenant he is automatically expelled from the religion. The misaq binds all Bohras to keep no relationship with the covenant-breaker, whether he be a distant relative or a close one. No one may communicate with him, openly or in secret; no one may remain his friend. Every Dawoodi Bohra must regard him as an enemy, because he is the enemy of the Da'i.

Paragraph 5 lays upon every person the duty to wage *jihad* — a religious war — against such a person; everyone must be ready to fight him and lay down his life. It is also each person's duty to give information about such misaq-breakers.



Paragraph 6 declares that the Imam's Da'i is the master of the life of every Dawoodi Bohra.

What is said in paragraph 11 is utterly cruel and terrifying. It provides that the covenant-breaker's property is liable to be plundered, and that all his property remains unlawful until he takes the oath again.

Paragraph 13 goes still further, declaring that such a person's wife becomes forbidden to him and that, as a consequence of his breaking the covenant, she is automatically divorced from him. That woman can never marry him again. God will never forgive him the sin of covenant-breaking — but if he takes the oath afresh, God will accept his prayers and forgive him.

It is argued on behalf of the Mullaji's representatives that this oath is taken voluntarily, their reasoning being that anyone who does not regard the great Mulla as the master of his life simply need not take it. This argument is unacceptable, for it is also said that no one is a Dawoodi Bohra by birth: one becomes a Bohra only by taking the oath. One witness produced a document — a notice dated 29 July 1968 — issued on behalf of the present Syedna by his secretary at Kampala, Uganda to a man named Shri Ibrahim Sheikh Muhammad Ali, in which, on account of certain refusals, he was threatened with expulsion from the community. We later had occasion to examine this notice in another connection; here it is produced only to show that the Syedna himself makes this claim. The following sentences appear in the notice:

*It is the sacred religious duty of every Dawoodi Bohra to give the misaq to the Da'i al-Mutlaq of the relevant age, and thereafter to abide, with full faith, by the promises made in that misaq. By the doctrines and the foundations of the Dawoodi Bohra faith, it is the religious duty of every Dawoodi Bohra to obey, and to carry out, the firmans of His Holiness the Da'i al-Mutlaq. Violation of a firman is tantamount to breaking the misaq, and gives His Holiness the Da'i al-Mutlaq the*

*right, as he pleases, to deprive a covenant-breaking Dawoodi Bohra of all the rights and entitlements of a Dawoodi Bohra.*

In a book titled “Nathwani — Commission? Committee? Confusion?” — which, evidently, was published at the instigation of Mulla Saheb’s sympathizers — there is a chapter under the heading “The Creed and Way of Life of the Dawoodi Bohra Community” which contains the following paragraph:

*Misqa: No one is ever born a Dawoodi Bohra. On reaching the age of puberty, a person may, of his own free will and voluntarily, give the misqa — which is a covenant to act upon the principles of the faith — and in this way he becomes a member of the Dawoodi Bohra sect.*

From these documents we are satisfied that it is the great Mulla’s own claim that whoever does not give the misqa will not be regarded by the Da’i as a Dawoodi Bohra. Thus the Syedna’s position is that a person is not a Dawoodi Bohra until he gives the misqa in the form set out in this chapter, and that whoever gives the misqa is bound by it and must therefore obey the Da’i’s command in all things. How, then, can this oath be called voluntary? Quite apart from the fact that the misqa has to be given at the age of 11 — which is not, under Indian law, the age of full majority (the age of majority being 18) — the giving of the misqa is treated as a condition of becoming a Dawoodi Bohra at all.

The consequences of this oath are plain. It is a commitment to obey, with eyes closed, every command of the Da’i, whatever it may be; and it is a condition of becoming a Dawoodi Bohra. By it, the Da’i must be accepted not only as the religious head but as the absolute authority (*mukhtar-ekul*) in non-religious matters as well. This gives the Da’i the position of an all-powerful dictator who overshadows every aspect of the life of every member of the sect — so much so that not even God is greater than the Da’i, for the misqa lays down that if the Da’i’s command is violated, even God will not forgive the person who disobeyed it; yet if that person takes the oath of loyalty to the Da’i afresh, then God, being pleased, will forgive

him. Allah, the Most Gracious and Most Merciful, can forgive sinners who have violated His own command — but He cannot forgive those men or women who have violated the commands of the Da'i.

And is the punishment for breaking the oath a single one? It is not merely hell in the hereafter; in this life too the breaker faces a complete social boycott. His property is to be plundered, his closest relatives are to sever their ties with him, and his wife automatically becomes forbidden to him.

Thus a person who becomes a Dawoodi Bohra must surrender himself absolutely to the Da'i's mercy, even in non-religious matters. From the form in which the misaq has been administered, since the time of the 51st Da'i, it appears that only a slave — not of God, but of the Da'i — can be a true Dawoodi Bohra. It is hard to understand how any self-respecting human being could take such an oath; and even if he took it during his minority, how he could be held to it. If he adheres fully to such an oath, he becomes guilty of violating not only the laws of the land but the divine law as well. Should he have to appear in a court as a witness against the Da'i, he could not tell the truth. He cannot criticize the Da'i, openly or privately. He cannot read the books and magazines the Syedna has forbidden. He can keep no contact with people upon whom the Syedna's displeasure has fallen. If asked to take part in plundering the wealth of a misaq-breaker, he will take part; if ordered, he will join in war against an enemy of the Da'i. In short, whatever the Da'i says, he will do, and from whatever the Da'i opposes he will keep away. He surrenders his whole life to the Da'i and has no voice of his own in the conduct of it. Whether the Da'i's commands be wrong or right, he must obey them, and for any breach he must face the most barbaric punishments.

After much reflection we have reached the conclusion that this oath is one that destroys all human dignity. One might have supposed it to be a mere formality, and that the restrictions it imposes need not be taken seriously; but the evidence later made clear that it is no mere ritual. The

restrictions are strictly enforced and the punishments actually carried out. It should also be noted that a reform-minded Bohra is not even entitled to prevent a Bohra youth from giving the misaq (see paragraph 6 of the oath). This means that, in case of disagreement, the guardian of a minor cannot tell his minor children not to give the misaq: if the guardian of a 15-year-old tries to stop him from giving it, the minor is required to turn his face away from his guardian.

For the covenant-breaker who wishes to return to the sect, it is necessary to give the misaq again, to express remorse, and to submit a letter of apology. Many witnesses produced the terms of the apology letter they had been required to accept and sign. We reproduce below one such document, given to Ali Husain Jafar Husain — who had been put out of the community — on the community's expressed willingness to readmit him provided he sign and return the draft apology that was supplied to him:

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110

*Dated 20 February 1975*

*Anjuman Burhani Jamaat Committee, Bhavnagar*

*After the customary respects —*

*I, Ali Husain bhai Jafar Husain Rangwala — against whom excommunication (bara'at) and boycott have been enforced — hereby declare in writing, before the Anjuman Jamaat Bohra Committee, that it is not my habit to say anything against the mission (da'wat). But if I have said anything against the da'wat, whether deliberately or unintentionally, or have raised any dispute, then now, in the name of Allah and the Da'i of Allah, I declare that I am the slave of Mawlana; I have always believed this, and shall continue equally to believe it. I am confident that, in future, should I raise any such dispute, you may take whatever step you please; but I am the humble slave of the Syedna, and Mawla is my master. Forgive me.*

*Abd-e-Syedna [the slave of the Syedna] ...*

*Ali Husain Jafar Husain.*

The document bears the seal of the Anjuman Burhani Jamaat Committee, Bhavnagar, and the signatures of fifteen of its members — evidently as a mark of approval of the apology. The words “Abd-e-Syedna” (“slave of the Syedna”) prefixed to Ali Husain’s name, and the terms of this apology, need no comment. They are utterly humiliating, and they compel the one seeking pardon to fall at the feet of the great Mulla. This is an insult to human dignity.

How the Syedna Sahib in fact and in practice uses the rights derived from the misaq, we shall consider later. Before turning to that subject, however, we wish to raise an important matter. The reform-minded class says that, in the current version of the misaq, the 51st Da’i made deletions and additions and inserted many things that were not in the misaq of earlier times. The basis of this allegation is the fact that the 51st Da’i himself admitted, in the [Galla] case in the Bombay High Court in 1920, that the version of the misaq he produced was 90 years old. At the end of that document the writer entered its date as 1328 AH (1833 A.D.). The reform-minded then compare this document with another.

That other document is the one the Advocate General of Bombay produced as an exhibit in the [Galla] case. It is said to be contained in a sacred book written in very elegant Arabic around the year 560 AH (roughly 1165 A.D.) [dates uncertain]. We reproduce it as an exhibit in Appendix “D”.

A comparison of the two documents shows a considerable difference between them. The misaq used by the Syedna amounts to a charter of slavery, whereas the document produced by the Advocate General is harmless. If this older document was used as the misaq in an earlier period, then the allegation that deletions and additions were made is proved. But the real question concerns the source of the older document. No witness was able to produce the sacred book from which it is said to be taken, and it is not mentioned in any authoritative work. The research of one

of our members established that the original misaq administered in the sixth century AH by the Da'i al-Mutlaq, or his *aamil*, did not contain all the objectionable matters found in the misaq in use today — in particular the matters in paragraphs 11, 12, 13, 14, and 15 of the current version. (The draft of the present misaq has been given at the start of this chapter, and the command to plunder, given in its paragraph 11, is absent from the draft of the old misaq.) The great Arab historian [al-Maqrizi] referred to the old misaq in his *Tarikh-e-Misr* (History of Egypt, in Arabic), and this is confirmed by Mirza Hadi Ali, Professor of Arabic at Nizam College, Hyderabad, and also by the Orientalist [W. Ivanow], who has written on the Isma'ili faith. (*The Rise of the Fatimids*, London; and *A Guide to Ismaili Literature*, London.)

There is no doubt that the old version has been altered; but in essentials the present version is not very different from the old one of about the eleventh century. Apart from the addition, in the new version, of the right to plunder the property of a “denier” Bohra, the other changes are of a minor nature.

It should be clear that, in the light of the Qur'an and the Sunnah, the misaq is not obligatory; it is a purely Isma'ili Dawoodi custom. The misaq is not binding on any Muslims other than the Dawoodi Bohras. Among the Sulaymani Bohras, another Islamic sect, a kind of covenant or oath is also customary, but it is not so harsh and severe as this misaq. In no other Muslim sect is there a custom of a misaq, or of anything like it, in the same form.

The reformists' allegation of alteration does not appear baseless, for it is certain that before the 51st Da'i the misaq had become a mere custom, surviving for a long time only as a ritual. Before the rule of the 51st Da'i it was generally not acted upon. Moreover, the misaq used to be given to the Hidden Imam (*Imam-e-Ghaib*) and to the Da'i al-Mutlaq, the *aamil* administering it merely as the representative of the Hidden Imam. It appears that the word “Da'i” was added alongside “Imam” in the misaq

document only fairly recently — a notable change — and that the 51st Da'i used this to place the Da'i al-Mutlaq on the same footing as the Hidden Imam, as explained in an earlier chapter. One *aamil* had even brought a suit against the 49th Da'i and, on account of the non-payment of the decretal amount, had tried to have the Da'i committed to jail.

*In this connection it would be apposite to compare the misaq in current use with the misaq for the Bohras of India recorded on page 91 of Miyan Bhai Mulla Abdul Husain's Gulzar-e-Dawoodi (1920).*

The 49th Da'i did not even expel from the community the *aamil* who had done all this. This shows that the misaq was not enforced, and that the earlier Da'is did not use it even against a person who challenged them in non-religious matters. It seems that the misaq, with its harsh conditions, became necessary only at the time when a secret movement was being run by the Isma'ilis to challenge Abbasid power. Those who wished to join the ranks of the Isma'ilis were made to take this oath of loyalty; its draft was framed so as to make the new entrant aware of the consequences of violating the undertaking not to keep contact with the enemies of the Isma'ili mission. But after the fall of Fatimid power the misaq retained no importance, surviving only symbolically and as a ritual.

After the last Isma'ili Imam went into concealment, the Da'is who led the Isma'ili mission kept up the practice of taking the misaq as a ritual. This point too is significant: from the very beginning, the misaq used to be taken for the Imam, not for the Da'i.

A Da'i al-Mutlaq of the early period wrote, in his book *Tuhfat al-Qulub*, that it is not obligatory that a single word of the misaq be attributed to the Da'i himself. In the same book he made clear that the basic purpose of the misaq is to strengthen the Isma'ili faith, and not to secure any kind of worldly gain. After the last Isma'ili Imam withdrew behind the veil of the unseen, almost every Da'i faithfully followed these directions and never used the misaq for worldly advantage. But the 51st Da'i used the misaq to inaugurate a cult of personality. A thing that had become a mere ritual

he revived and began to enforce strictly, employing it to centralize power and to build his own dominion. He used it as a means of compelling the Dawoodi Bohras to submit, and of forcing their obedience not only in religious but in non-religious matters too. This weapon — together with the system of *rukka* and *chitthi* (written orders and permits), which we shall examine later — became, to a great degree, a means of centralizing authority and of amassing wealth on a very large scale. In this way he formally built a fortress of personality-cult.

From every letter of the Urdu alphabet, a word has been formed such that from every respect, it points to his greatness. The true position is this: whatever happened, and whatever the historical circumstances may have demanded, the fact remains that the misaq in its present form is utterly tyrannical — not merely harsh — and is against human rights. To judge its true character, it is in our view of no importance whether it existed in this same form in the eleventh century, or whether it was altered in the nineteenth and carried over into the twentieth. The mere antiquity of a thing is not enough to justify it, when that thing is fundamentally destructive of human dignity and freedom. Untouchability among the Hindus is a curse older even than the eleventh century, but its currency since ancient times cannot make it a sacred or honourable custom. The enslaving of human beings is likewise a tradition many centuries old, yet the civilized world has abandoned it. No inhuman thing can be held just merely because it is religious in character, nor can anything be held sacred merely because it has been current since ancient times.



## CHAPTER V

# The Grievances of the Reformists

The Central Board of the Dawoodi Bohra community — which claims to represent the reformist, or progressive, section of the Bohra community — set out the grievances of the reformists in a memorandum dated 9 April 1979. [The year is written 1949 in the manuscript, but the events the memorandum describes run up to 1977, so a later date is intended.] This is a long memorandum, of which we have prepared the summary given here. The Board states that the reform movement among the Dawoodi Bohras began in the very first years of the twentieth century. The community is made up of small traders and merchants, who are known for their religious devotion. Before the accession of the eighteenth Da'i to the *gaddi* (seat), every Da'i had exercised his powers with generosity. The Da'is also allowed the other religious scholars (*ulama*) considerable latitude in the performance of religious rites. Among these rites were congregational prayer, marriage, and the preparation and burial of the dead (*tajhiz-o-takfin*) — duties that could be carried out without the Da'i's prior permission. The local congregations (*jamaats*) likewise enjoyed full freedom in their day-to-day affairs — running the jamaat, electing local

representatives, and collecting and spending money, and so on. According to the Board's account, this amounted to a respect for democratic values, and the affairs of these institutions ran without any obstruction. The local jamaats also looked after the poor, the needy, widows, and orphans.

The case we discussed in detail in Chapter Three is referred to in the memorandum, which says that, as a result of it, the Syedna came to feel himself under threat. He concluded that, if this mentality were not checked, a dangerous situation would one day arise. He therefore began to inflict hardship on his followers in order to bring them under his command. He arbitrarily expelled from the community those who had sided with Ibrahimhai Adamji, and enforced his decisions with the utmost severity. Terror was created, and many of his opponents were so frightened that they were forced to beg forgiveness and return to the community.

After this the Syedna concentrated all powers in his own hands, as has already been described. These powers had earlier belonged to the ulama and the local jamaats. Now the local ulama could neither solemnize a marriage nor conduct a burial without the Da'i's permission. The local jamaats were compelled to send all of the public's money to the Syedna and not to spend a single paisa without his permission. All the powers that had previously belonged to the local jamaat were now handed over to the *amils* (agents) appointed by the Da'i. These amils were mere puppets in the hands of the Syedna, his two brothers, and the members of his family. At present this family numbers 188 persons, and each one of them regards himself as a petty sultan or ruler.

This centralization of authority made them absolute and autocratic, and, with the power of wealth added to it, they became extremely powerful. They established their grip over every aspect of a Dawoodi's life, from the cradle to the grave. Now nothing — whether religious or secular — could be done without their permission. By issuing *firman*s (decrees) they banned those organizations that were promoting social welfare, modern

education, and culture, and fostering an awareness of human and democratic rights. The cooperative banks and similar independent organizations that could not be formally banned were taken over by their management and were eventually wound up. The reading of certain newspapers was prohibited, and if their informers reported that a particular Bohra was secretly reading these papers, that person — along with his whole family, his relatives, and his friends — was made a target of persecution.

The memorandum then sets out instances in proof of these allegations. The Syedna seized property worth crores of rupees from the trustees and managers (*mutawallis*) of the community's public, charitable, and *waqf* (endowment) properties. Those who did not cooperate were made targets of oppression. In the case of those endowments that could not be seized on account of legal difficulties, the Syedna had himself named trustee (*mutawalli*) with sweeping powers.

Despite the harsh suppression of the reform movement, a few individuals kept the torch of freedom alight. The Syedna adopted the same kind of excesses in the other countries to which the Dawoodi Bohras of India had migrated and settled. In East Africa there was great unrest among the Bohras, who were demanding the same kind of rights; and because the British authorities in East Africa did not support the Syedna, he was forced to restore democratic constitutions for the jamaats there. Under that constitution the local jamaats were granted complete autonomy in their non-religious affairs, without any interference with the Syedna's religious standing as Da'i.

The first Bohra Educational Conference was convened in Bombay in 1932, under the presidency of the late Sir Muhammad Ali Kanga — father of the eminent solicitor Mr. Ismail Kanga and a former Honorary Consul-General of Ethiopia. Those who organized this conference, and those who took part in it, were also expelled from the community, and oppression and excess were visited upon the members of their families and their relatives. Around the same time, the late Sir Hatim Alvi and other eminent

persons had founded a Bohra Youth Association in Karachi, with the aim of promoting education among girls — for up to that time there had been a complete ban on the education of women. This group of courageous people was subjected to a violent attack, and oppression and excess were inflicted upon them.

In 1942 the reformist Bohras attempted to organize themselves and, under the presidency of Sir Yusuf Ali Karimji Jiwanji of East Africa, convened a conference in Bombay. About an hour before the conference was due to begin, some five thousand Bohras, led by the Syedna's agents, forcibly occupied the Sundarbai Hall, where the conference was to be held. The reformists were forcibly prevented from entering the hall, and in the end the venue had to be changed; the conference was held in an atmosphere of severe tension. From 1954 to 1957 the people of the community were so terrified that no one dared openly to defy the Syedna.

In 1957 another conference of the reformists was held at Ghambira [place name uncertain], a town in Gujarat. Among other things, the delegates demanded that the constitutions of the jamaats be framed on the lines on which the jamaats in East Africa were working; that educational facilities be provided for Bohra students; and that charitable institutions — such as welfare facilities and schools — be established, the lack of which caused hardship to members of the community even though large sums of money were collected every year. The Syedna was also asked to render an account of these moneys. Against those who took part in this conference, the Syedna's circle let loose a campaign of oppression. Various jamaats were compelled to pass resolutions condemning the conference, and were also forced to denounce the relatives of those who had attended it. Yet the participants were asking for nothing more than what the Syedna himself had already granted in connection with East Africa. It was out of this very fear that the Syedna had concealed from his Indian followers the fact that he had given the East African Bohras a democratic constitution — lest a democratic awakening should arise throughout the community.

In the middle of 1960 and 1970, in Godhra, Gujarat, new life was breathed into the reform movement, and a great many people rejected those orders of the Syedna that were contrary to the true faith of the Dawoodi Bohra community. Many marriages were performed without the Syedna's prior permission, and the dead, too, were buried without his prior permission. The sons and daughters of Godhra also faced considerable persecution, and the Syedna's circle at Godhra, after a struggle of several years, succeeded — through the weapon of *bara'at* (social boycott) — in subduing the members of the community. *Bara'at* amounts, broadly, to expulsion from the community. Its meaning is, roughly, to keep oneself away from certain ideas or actions and to refuse to accept them. But the Syedna used this term for social boycott: a person placed under *bara'at* is not only deprived of all his rights but is also barred from maintaining relations with his own relatives — including his parents — and with his friends and acquaintances.

In Bombay there was a strong reaction against *bara'at*. Near Flora Fountain in Bombay, the reformists burned many copies of the *bara'at* decree. One of the Syedna's brothers, Mr. I. Zainuddin, issued a public statement to the effect that the purpose of *bara'at* was only to direct the devout to keep away from certain ideas, and not to expel anyone from the community or to impose a social boycott. But this statement was made merely to mislead the public, and the use of this weapon of social boycott was kept up. Later, in 1973, a grave situation arose in Udaipur. The educated young people of Udaipur had formed an organization, the Bohra Youth Association, which was registered. Its purpose was to carry out welfare work for the Bohras of Udaipur. They started a cooperative bank, a scholarship (educational-stipend) society, and a library. Four active members of the society wished to contest the municipal elections, but they were not permitted to do so. Despite this refusal, these young members contested the election and inflicted a crushing defeat on the candidates put up by the Syedna. This open defiance was enough to provoke fury among the religious leaders. The present Syedna sent one

of his sons, Prince Qaid Joher, to Udaipur with the order to dissolve the Youth Association and the cooperative bank and to suspend the other activities carried on under the Youth Association. On reaching Udaipur the Prince ordered them dissolved. The majority of the Bohras of Udaipur opposed this, but the Syedna's son openly declared that, whatever the Constitution of India might say, "our religion stands above the law of the land," and that the Syedna's written firman dissolving the Association — which had been set up without the Syedna's prior permission — would be carried out. He added that, once it had been dissolved, the Syedna could, if he wished, re-establish it and choose its members and office-bearers at his own discretion. This explanation did not satisfy the Bohras, and they insisted on their fundamental rights. At the insistence of the local Collector, the Prince had to relent. The Prince then informed the Syedna of the whole situation, and the Syedna declared bara'at and social boycott against the ten thousand Bohras of Udaipur. This declaration of bara'at caused them deep distress. A group of Bohras, among whom were some women, went to the Galiakot dargah (shrine) in Rajasthan, where the Syedna was staying. But the Syedna gave them no hearing, and a band of hooligans beat them up badly. The women were humiliated right under the Syedna's nose and had to flee the place to save their honour. After this, religious services were refused on the Syedna's behalf, and the performance of marriages and the like was also refused. For the next two years the affected Bohras of Udaipur kept petitioning the Syedna to resolve the matter and to allow the stalled marriages to take place, but the Syedna refused to entertain these petitions. Many marriages remained suspended; the reformists drew the attention of the then Prime Minister to the difficulties of the two hundred couples whose marriages had been held up, but even this brought no particular relief. After the Udaipur revolt, the religious leaders prolonged their campaign of oppression against the Bohra community.

The memorandum then gives many instances of oppression, social boycott, and the like. On 17, 18, and 19 February 1977 the reformists held

a World Dawoodi Bohra Conference. According to the memorandum, the Syedna instructed his followers to throw this conference into chaos at any cost. For this purpose a plan was made to bring fifteen thousand people to Udaipur. From the Galiakot dargah, 75 miles from Udaipur, the Syedna himself directed the entire campaign. As a result this conference became a grave threat to public safety, and elaborate police arrangements had to be made. Even so, the law-and-order situation went from bad to worse, and the conference was therefore brought to a close a day early.

## CHAPTER VI

# Interference with Civil Liberties and Human Rights

In Section “A” of the questionnaire issued by the Commission, questions were put to the members of the Dawoodi Bohra community concerning the civil liberties and human rights granted to them by the great mullah — the Syedna Sahib, or the Mullaji Sahib. Almost all those who answered the questionnaire replied, in practical terms, that the Syedna does not permit them to enjoy the liberties enjoyed by people elsewhere in this country. Nearly all the respondents stated that in community affairs there is neither freedom nor freedom of expression; that they are coerced through intimidation — terror, social boycott, excommunication (*bara’at*), threats, and the like. They told us that the mullahs or their agents have forbidden them to read any newspaper or magazine without permission, and that no newspaper or magazine the great mullah has declared forbidden may be read, nor may one be published.

No association (*anjuman*) may be formed without the great mullah’s approval — neither a cooperative society nor a union. They have no freedom to establish or run orphanages, travellers’ lodges, schools, cooperative banking societies, consumer cooperative stores, or homes for



widows and the aged. In practical terms, all these people said that, in their view, even in such non-religious matters there is no need for the great mullah's permission; that to seek permission of this kind is contrary to their self-respect and against the Constitution of the country; and that, where permission is sought, conditions are attached that run against their rights and their liberties. These conditions may differ from case to case; a list of them will be found in Appendix "E". Almost all the respondents stated that if any such thing is done without permission the consequences are very serious: the person concerned is socially boycotted, or excommunicated (*bara'at*); he is treated with discrimination, made a target of revenge, and compelled to close down whatever institution he has started. Generally, all of them said it was unjust for the Mullaji, or those in his circle, to interfere in such matters. On the subject of elections to the Lok Sabha, the State Assembly, and the local bodies, every person gave the same answer: that without the great mullah's permission there is no freedom to contest an election. In the matter of the right to vote, pressure is brought upon members of the community to vote only for a candidate who — if he is a Dawoodi Bohra — has obtained the great mullah's permission, and who — if he belongs to another community — has the great mullah's blessing (*ashir-baad*).

For members of the community who follow the great mullah or his devotees, it is required that, on invitation cards or in letters, they describe themselves — if a man, as "*Abd-e-Syedna*" (servant of Syedna), and if a woman, as "*Amat-e-Syedna*" (handmaid of Syedna). Some respondents said that before the present Da'i's accession to the *gaddi* the use of these words was not required; but ever since he became the holder of the *gaddi* their use has been made compulsory. The meanings of the two words are, respectively, "slave of Syedna" and "bondmaid of Syedna". If they are not used on marriage and dinner invitation cards, the persons concerned are boycotted and permission for the marriage is refused.

### **(1) Attack on a teacher, and dismissal from service**

Let us now examine in some detail a few matters touching the freedom of expression. The list is long, but we shall take up a few particular cases.

One gentleman, Mulla Tahir Ali — a teacher, of the Lokhandwala family [name uncertain] — lives on Arthur Road, Bombay. He rendered his services at the Taheri High School in Khetwadi Bazaar, Bombay, where he had taught for more than nine years. His statement is that, although sympathetic to the reformist movement among the Bohras, he had never openly expressed that sympathy. One day in 1965 he was reading the Urdu *Blitz* in the school compound. As is well known, *Blitz* is a weekly paper, published in both English and Urdu, with a fairly wide circulation. We are not concerned with its policy or its views; it frequently carries news of the reformist movement among the Bohras. According to Shri Tahir Ali's statement, the great mullah's devotees had declared the Urdu *Blitz* forbidden. One day in June 1965, when he was found reading the Urdu *Blitz* in the high school, the peons and students of the school beat him within the compound on that account, then shoved him and threw him out. He related the incident to the editor of the Urdu *Blitz*, who gave it prominent coverage. According to him, this enraged the Mullah Sahib's devotees, and, making a trivial matter the pretext, he was dismissed from the school.

This high school is run by the education department of His Holiness Syedna Mohammed Burhanuddin. By a letter dated 22 Rabi' al-Awwal 1389 AH, corresponding to 1 June 1969, from Syedna Burhanuddin Sahib, he was informed that he was being appointed a teacher at the Taheri High School, and that he should accept the appointment and report for duty on 25 Rabi' al-Awwal 1389 AH, corresponding to 4 June 1969. Shri Lokhandwala produced, together with the letterhead, a photocopy of the original letter written in Urdu and its English translation; there thus remains no doubt that the school is under the Syedna's administration.

He complained to the Director of Education, who ordered his reinstatement, since his dismissal had been wholly irregular. The school

administration challenged the Director's order in the Bombay High Court by petition. When the hearing began, counsel for the administration stated that it wished, unconditionally and without pressing the petition, to take Tahir Ali back; that he would be reinstated; and that whatever salary was due would be paid to him. He was restored to his post. But the administration set the teachers and students upon him, so that they would not let him perform his duties in peace — insulting him, hurling abuse, and making violent attacks. Every day he had to travel to school under police protection. As usual, on 19 September 1968 he went to school in a police vehicle, accompanied by a sub-divisional police inspector. As the principal saw him approaching, he at once told the students to leave their classes and attack him. The police inspector saw all this with his own eyes — that the principal had the students rush out of the classes to attack the teacher — and reprimanded him for so irresponsible an act. Meanwhile some outside ruffians arrived and locked the door from outside, trapping both the inspector and the teacher. When the principal reappeared and the inspector reprimanded him as well, he opened the door; and as the teacher stepped out he was stoned from every side, so that his skull was fractured and his arms, thighs, legs, and abdomen were injured. The police took him to the J. J. Hospital for treatment. On the very next day — that is, 20 September 1968 — when he went to the school, the administration again dismissed him. We have seen a photocopy of the dismissal order; it gives no reason for the dismissal, stating merely that the “Mullah Education Society” had resolved to dismiss Tahir Ali with immediate effect and to hand him a cheque for six months' salary. We have also seen a certified copy of the High Court's order; and Mr. Lokhandwala, on being asked, set out the facts on oath, filing an affidavit accordingly. That the Dawoodi Bohras are, by the great mullah's hand, deprived even of the right to obtain information, and that — by declaring the reading of newspapers “forbidden” — those who read them are by every possible means made the targets of oppression, is plainly proved by this. On 10 December 1948 the General Assembly of the United Nations adopted the

Universal Declaration of Human Rights, to which India too is a signatory. Its Article 19 declares:

Every person has the right to freedom of opinion and expression; this right includes the freedom to hold opinions without interference and to seek, receive, and impart information and ideas through any medium.

The only offence of a poor teacher was that he had read an Urdu weekly newspaper.

## **(2) The ban on reading the Bohra Bulletin**

Another witness, Tahir Ali Abdul Ali Kapasi [name uncertain], a resident of Dhoraji in Rajkot district, also testified. He stated that a notice of excommunication (*bara'at* — social boycott) was announced against him, his wife, and their parents, on account of their reading the Dawoodi “Bohra Bulletin”, whose editor was a reformist, Mr. Saicha [name uncertain]. An Amil — a deputy of the Syedna — Mulla Yunus Mulla Ibrahim, on 19 January 1965 gave the members of the community oral instructions not to read the Bulletin. The witness said the Amil required him to apologize for reading it; and when he refused, a meeting of the Dhoraji Bohra community was held in the mosque, at which it was announced that he and his family were to be boycotted.

The witness further stated that his six-month-old daughter died. He went to a religious scholar, Mulla Abdul Husain Tayyib Ji [name uncertain], to seek permission to bury the child, but permission was refused. Then, with the help of other people and of the police, the child was at last buried in the Bohra cemetery. A report of the incident appeared in the Rajkot daily *Lok Manya* in its issue of 9 October 1969. He added that, after his boycott, none of his close relatives would come to him — even his elder brother could neither visit nor meet him. The witness wrote his brother a letter expressing his grief that, at the time of his daughter's death, the

brother had been unable to come to him, because the Syedna had imposed excommunication upon him.

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*It should be noted that, under the Syedna's order, only the bara'at is announced at a meeting of the jamaat; the meeting is not asked to ratify it. It is merely an announcement, and not a resolution that is debated and then approved.*

### **(3) Marriage without permission declared invalid**

A lady, Sister Zaitoon — sister of Ahmed Ali Yusuf Ali Kapasi of Talaja [name uncertain] — also testified. She stated that her parents were reformists and followers of Mahatma Gandhi; that for taking part in the Satyagraha she had served a sentence of six months' imprisonment; and that her father had petitioned Sardar Patel that the Dawoodi Bohras should not be exempted from the Muslim Waqf Act of 1923 — a law for the organization, regulation, and upkeep of Muslim charitable endowments (*awqaf*). She said that her father was a social reformer and a champion of the education of women, and that he had therefore had her educated. When she grew up and was studying, books were snatched from her hands and she was abused. Despite all these difficulties her father continued her education. He used to write articles for the Bombay *Samachar*, *Gulzar-e-Hakimi*, *Bagh-e-Momin*, the *Bohra Bulletin*, and *Sacha Darman* [some publication names uncertain]. In reformist activities her mother, her brother, her sister, and she herself used to assist them, and at the age of sixteen she began to take part in the reformists' work.

She further stated that her marriage had been arranged with Abdul Husain Bharat Pitra [name uncertain], himself a reformist, and was to take place on 6 May 1946. When the local Amil was asked to take part, the witness and her father were told that, because they belonged to a reformist family, the great mullah, Mulla Tahir Saifuddin Sahib, had forbidden the Amil to perform the ceremony. An application was then made to the great Mulla Sahib for his approval, but he refused outright. After repeated

petitioning he relented, granting permission on the condition that the marriage be held not at the house of the girl's father but at some other place, and that some other person act as her guardian in performing it. On receiving this news the girl refused to accept so inhuman a condition — that another should stand as guardian in her father's stead — and had the *nikah* read by a city *qazi* (who is distinct from a Bohra scholar and may solemnize the marriage of any Muslim). Many people attended her wedding, but not a single Dawoodi Bohra took part, because she had not accepted the condition imposed by the great mullah.

She produced a copy of a notice — No. 29 of 1948 [reference uncertain] — issued by the secretary of His Holiness Tahir Saifuddin Sahib, Da'i al-Mutlaq, in which, besides matters concerning other women, the following was recorded:

You have openly declared that the present Mulla Sahib, His Holiness Sardar Syedna Tahir Saifuddin, is not duly appointed, in regular succession, as the Da'i al-Mutlaq, and that you do not recognize him as the duly and regularly appointed Da'i al-Mutlaq in the line of succession — that is, you maintain that the line of succession of the Da'i al-Mutlaq was broken after the fifty-fourth Da'i, Syedna Badruddin Sahib, and that the fifty-third Da'i, Syedna Najmuddin Sahib, was not duly appointed in regular succession in the proper manner.

(B) And that, on 6 May 1946, you wish to contract a marriage (*nikah*) with Abdul Husain Nur Bhai Bharat Pitra [name uncertain]; that you have neither obtained the permission of His Holiness the Da'i al-Mutlaq for your marriage, nor has His Holiness — nor any deputy specially appointed by him for the purpose — taken part on his behalf in performing the ceremony. According to His Holiness the Da'i al-Mutlaq, and in the light of the holy books of the Da'wat, this marriage is invalid. His Holiness has therefore concluded from these matters that you do not believe in the fundamental tenets of

the Dawoodi Bohras; that you do not regard the decision of His Holiness the Da'i al-Mutlaq as final in matters of Dawoodi Bohra belief, custom, and principle; and that you have challenged, or contravened, the authority, position, and supremacy of His Holiness the Da'i al-Mutlaq.

(C) As an authoress, you wrote articles in a magazine, *Aage Qadam* ("Forward Step"). This magazine is published with the full backing of the Young Men's Bohra Association, Karachi, and in it the authority, position, and supremacy of His Holiness the Da'i al-Mutlaq are insulted, contravened, and challenged; in this way you have attacked the fundamental beliefs, customs, and traditions of the Dawoodi Bohra community. Among these matters is your article published in the December 1946 issue of *Aage Qadam*, written in Gujarati under the title "*Astri Colony Mate*" (that is, in favour of the education of women). This same article of yours was also published in the Bombay *Samachar*.

From this notice it appears that the great mullahs regard any marriage held without their permission as invalid; that they consider such a marriage contrary to the religious tenets of the Dawoodi Bohra community; and that one who marries in this way is treated as cast out of the community. It also appears from the notice that whenever the authority of the great mullah is challenged in an article, that act is treated as contrary to the fundamental tenets of the Bohra community.

We have studied the article entitled "*Astri Colony Mate*" and found in it nothing that could be regarded as an insult to the great mullah. We likewise examined the reply the witness had sent to the great mullah in connection with the notice, and found in it, too, no insulting word or expression. There is no doubt that in her article the witness insisted on her right to challenge the authority of the great mullah, and asserted her right to advocate the education of women and to express her own views; but by a letter dated 5 May 1948 His Holiness, through his Diwan and secretary,

informed her that, having convened a meeting of the jamaat and recited the charges against her, he had thereupon cast her out of the community. The letter added that she had not attended the relevant jamaat meeting, that her reply [both dated 1948; precise days unclear] was unsatisfactory, and that she had failed to reform her conduct.

We may draw this conclusion: that even if all the acts recited in the notice were indeed hers, we are nevertheless unable to see how they can be contrary to the religious tenets of the Dawoodi Bohra community. The notice is clear proof that the fifty-first Da'i did not recognize as valid any marriage held without his permission, and that he declared any criticism of his conduct to be against religious belief. More than that: he treated her marrying in this manner, and her writing a critical article, as ground enough to expel her from the community.

We must now see what befell the witness after her expulsion. Her statement is that in 1947 she opened, for the welfare of the women of her community, a tailoring (training) class and classes in primary and secondary education; but these had to be closed, because the women who attended them were threatened by the local Amil with social boycott. The classes she had begun for the education of adult women likewise had to be closed for the same reason, since those who would have attended them were threatened by the local Amil with excommunication.

#### **(4) A venerable daily**

An important and prominent matter concerns the long-established Gujarati daily, the Bombay *Samachar* — a most venerable newspaper, founded in 1822. The paper carries articles concerning various communities — Muslims, Parsis, Jains, and the Dawoodi Bohras among them. In its Friday issue there is a column headed “Bohra News”, in which both the orthodox (*qadamat-parast*) and the reformist (*islah-pasand*) Bohras are allowed to express their views on social and economic matters. In their letters the reformists wrote of the one-sided levying of taxes and fines and



their enforcement — extending even to physical attacks on opponents — and set out their grievances against the great mullah and his devotees.

The Bombay *Samachar*, through its editor, Jahangir D. Daruwala [name uncertain], stated that the orthodox disliked this. They wished the paper not to publish letters in which any act of the great mullah was criticized, or in which objection was taken to his directives. On several occasions a delegation of the orthodox met the editor and demanded that views against the great mullah's conduct not be published. The editor told them that the column was open to both sections of the Bohras; that he would not publish from the orthodox side anything he held to be untrue; and that the orthodox were equally free to use the column to put their case before the whole community.

The editor further stated that when, in order to record the witnesses' statements, our Commission held its sitting in Bombay, that party staged demonstrations at Chowpatty. The next day the Bombay *Samachar* published a truthful report of those demonstrations. On the day the report appeared, copies of the paper were snatched from the news-vendors in Muslim localities, and in Kutch copies were burned. Some ruffians came to the paper's office and tried to burn copies in front of the editor, but the police prevented it, and they went off shouting slogans. After this, numerous handbills appeared in which the Dawoodi Bohras were told that they should not read the Bombay *Samachar*, and that they were not permitted to place any advertisement, or to publish a death notice, in that paper. The handbill threatened that no follower of the Syedna would attend the Qur'an recitation for any dying person whose death notice had appeared in it; all such notices were instead to be placed in the *Jam-e-Jamshed* [name uncertain] and in another Gujarati paper published from Bombay. It should be noted that, by old custom, the Bombay *Samachar* publishes death notices free of charge.

The editor produced photostat copies of three such handbills. The directive given to the Dawoodi Bohras carries this significance: that anyone

who does not boycott the paper will himself be boycotted — to such a degree that, if a death notice appeared in the Bombay *Samachar*, no mullah would come even to lead the funeral prayer for the deceased.

The editor further stated that in the issue of 8 July 1961 an editorial was published under a Gujarati title which the source glosses as “recognize the disgrace” [the Gujarati wording is uncertain]. As a result, some orthodox devotees of the Syedna forced their way into the paper’s office and attacked its editor, Mr. Sohrab Ji Kapadia [name uncertain]. Several newspapers widely condemned this brutal assault on a veteran journalist; a case was registered against those arrested in connection with it [its outcome is not clearly stated].

It is true that these handbills bear no signature and carry no printer’s or publisher’s name; but on the facts and circumstances the editor has set out, he is entitled to conclude — and it does indeed appear — that the handbills are issued under the directives of the mullah class. In short, that class made an organized attempt to boycott the Commission and to obstruct its work. It is plain that this class can hardly have welcomed the publicity given — while the Commission was deliberating with witnesses — to the violence committed at Chowpatty [one clause here is illegible in the source].

Apart from this, no report concerning the issuing of these handbills appeared in the press. Even so, no one issued any denial that they had been put out under the directives of the great mullah, or of the mullah class, or of any individual. No one else would spend so large a sum on printing handbills of this kind to boycott a particular newspaper. The object, plainly, was not to cause the paper financial loss — for, as already explained, death notices appear in it free of charge. The measure is aimed not so much at the newspaper as at its Bohra readers. The mullah class dislikes a paper that runs a regular column against the measures it takes; for the orthodox are the great mullah’s deputies, and, in the light of the great mullah’s claim, they want complete obedience from the members

of the community. Any point that challenges the great mullah's authority may in the end undermine it; hence they wish the members of the community to be forbidden, on pain of social boycott, to read this paper.

In view of all this, we are satisfied that the mullah class, through these handbills, forbade the members of the Dawoodi Bohra community — on pain of social boycott — to read the Bombay *Samachar*, so that they might not hear any point that challenges the mullah class.

We wish to make it clear that the editor who stated these facts is not himself a member of any Bohra group. He is not even a Muslim, but a Parsi; his assistant editor, Mr. Bhatt, is a Hindu. The paper is owned by a private limited company whose management has no connection with either the orthodox or the reformist Bohras.

The Commission has received many other replies as well, in which respondents gave instances of the harassment they suffered for writing articles touching the Syedna's conduct. A few brief examples follow.

A resident of Bombay, Saleh Abdul Husain [name uncertain], told us that four years earlier he had been excommunicated on the charge of subscribing to the *Bohra Bulletin*, a journal of the reformist Bohras. He added that the following three reformist journals had been declared forbidden to members of the community; all three have since ceased publication:

1. *Bagh-e-Momin* — editor, Khan Bhai [name uncertain].
2. *Gulzar-e-Hakimi* — editor, Hasan Ali Abdul Ali.
3. *Aage Qadam* — editor, Husain Ali Alavi [name uncertain].

The same gentleman further told us that a book by Wajid Ali, entitled *Fatimi Da'wat* ("The Fatimid Mission"), has likewise been declared forbidden.

## **(5) Excommunication against the orphanage**

Let us now examine in detail the harassment suffered by those who run social institutions without obtaining the great mullah's approval.

Abbas Bhai Ghulam Husain [name uncertain], a resident of Dhrol, near Rajkot in Gujarat, told us that he had worked at the Sardar Adamji Pir Bhai Rafiuddin Orphanage in Dhrol — an institution that maintained very poor children, founded in 1955 and run on the donations of a reformist and humane benefactor, Sardar Adamji Pir Bhai. Because it had been started without the great mullah's permission, the whole institution was boycotted — the orphan children in it included. The witness served as the orphanage's superintendent.

On 28 February 1965 the Amil of Jamnagar told him to resign, and told the orphans, too, to leave the institution; the children's relatives were told to call them back. During a visit to Dhrol, the Amil of Jamnagar summoned the children and directed them to vacate the premises. The witness himself was summoned and ordered to resign, with the threat that, if he refused, action would be taken against him and his relatives would be harassed and kept liable to arrest. When the orphans asked him what they were to do once they left, the Amil told them that, since worms and other animals contrive somehow to find their own food, they had no cause to be so anxious about their own lives.

A list of the orphans' names and addresses was then drawn up, and that same day, in the mosque, the members of the Dawoodi Bohra community were given oral instructions to keep no relations of any kind with these orphan children or with the orphanage's office-bearers: such people were neither to be invited to community gatherings nor to have their own functions attended — they were not even to be joined in their funeral rites. After that the children, too, were no longer invited to community feasts; and so the poor children, along with the office-bearers and staff, were subjected to social boycott.

The witness complained, through Mrs. Ayesha Begum — who at the time was a minister in the Gujarat state cabinet — to the Mullaji, and she conveyed the complaint to him. On 1 November 1966 the Mullaji sent a reply, a summary of which the lady wrote out and forwarded to the

witness. In brief, the Mullaji had written that the Amil of Jamnagar, his deputy, had been asked to submit a report, after which suitable action would be taken. But nothing whatever was done thereafter; and though the witness wrote the lady several further letters, he received no reply.

The witness's brother was to be married, and his father therefore sought permission from the Amil of a small village called Chhota Banther [name uncertain], near Rajkot. They were told that, because their other son — the witness — was employed at the orphanage, no clearance certificate could be given them. The father, left helpless, wrote a letter of apology to the Mullaji. In this letter he had to undertake that he would keep his son, the witness, separate from himself and would maintain no relations of any kind with him. A photostat copy of the apology was produced; it had been written on 2 June 1966 and signed at the foot by the father, Ghulam Husain Adamji Dunak [name uncertain], as "*Abd-e-Syedna*". In the margin several other respectable persons had also signed, certifying the truth of its contents. Only then was a clearance certificate handed to them in a sealed envelope. The witness wished to take part openly in his own brother's wedding, but in the end he kept himself hidden; and when the Amil of Bantwa [name uncertain] learned of this, they put pressure on his father to have the witness turned out of the wedding party, and so he was expelled from the *barat*. The witness's father certifies that, on the occasion of his son's marriage, the clearance certificate was withheld from them; and that afterwards, when they intervened, they had to pay Rs. 500 to be permitted another feast, whereupon the Misaq (oath of allegiance) was administered to them afresh.

## **(6) Orders to close the cooperative bank**

Another instructive example is that of Shri Ghulam Husain Ismail [name uncertain], a resident of Udaipur and secretary of the Bohra jamaat there. Besides submitting a written memorandum, he gave oral testimony, telling us, among other things, that when the reformist movement gained strength in Udaipur the Syedna issued firmans that the reformists' insti-

tutions be closed and restrictions placed upon them — institutions that had been started, without the Syedna's permission, for the welfare of community members. He produced a photostat of a letter dated 23 Rajab 1389 AH (corresponding to about 1969), addressed to him, directing that the Bohra Youth Association be dissolved and that the cooperative bank the Association had started be closed as well — institutions the Youth Association had founded without the Mullaji's permission. The writer of the letter had also sent a copy of the order to the Amil of Udaipur, Shaikh Ghulam Ali [name uncertain]. The witness produced the original letter he had received, and a copy of it has been placed on our record. From this letter it is plain that the Syedna and the priestly class claim that no institution may be founded without the Mullaji's permission, and that, where one is, an order to close it may be issued. We shall give further details of this testimony later. A translation of the firman relating to the closing of the Youth Association and the cooperative bank is set out in Appendix "F".

### **(7) The order to dissolve the Youth Association**

Abid Ali Hasan Ali [name uncertain], a resident of Udaipur and a member of the Udaipur Sahitya (literary) Academy, was secretary of the Udaipur Bohra Youth Association. He submitted a written statement and also appeared in person before the Commission. He told us that the Syedna tried, by illegitimate means, to break up the Bohra Youth Association. At first a man named Ghulam Husain was elected its secretary; and, to draw him into his own orbit, the Syedna conferred on him a title — given in the source by the initials "N. D." [unclear]. The witness produced a photostat of the certificate of this title. The Syedna then summoned Ghulam Husain to Bombay, where the witness too was present. The Syedna's Diwan, Shaikh Ibrahim Yamani [name uncertain], told the witness first to convene a meeting; the witness was then charged with having, in the municipal elections, set up a rival candidate against those who had obtained the Syedna's raza, and with having committed a

grave sin (*gunah-e-kabira*) by voting against the Syedna's candidate and by disparaging the raza — for which he would have to tender a written apology. When the witness and others refused, the Diwan, seeing that these men were themselves the obstacle, changed his tack and, in an open session, conferred on Ghulam Husain the style of "Mulla". Even so the Youth Association did not break up. Ghulam Husain was thereupon summoned to Galiakot, five miles from Udaipur, and pressed to dissolve the Association. When he pleaded his inability to do so, he was summoned to Burhanpur and admonished; and on that occasion the Syedna wrote them a letter ordering the dissolution of the Association. Ghulam Husain Nur [name uncertain] has also appeared as a witness and corroborated this account.

The witness further told us that the Amil, Numan Bhai Sahib [name uncertain], was thereafter summoned to Burhanpur; and that when the witness reached Udaipur he received a letter from the Syedna, in which the Youth Association had been ordered to be dissolved.

## **(8) Are elections contrary to religion?**

In February 1973 the Syedna sent his son, Qa'id Johar [name uncertain], to Udaipur. He met many members of the community and told them that, in order to set up a new committee, he was dissolving the existing Anjuman-e-Najmi. The people said that, if a new committee was to be formed, its elections should be held democratically; but he did not agree, and on 23 February he set up a committee composed of his own supporters. The community disliked the nominated members and, to protest against such nominations, observed a satyagraha; but those taking part in it were attacked and beaten. On 25 February, to forestall disorder, the government intervened; and at that time the District Magistrate and the Superintendent of Police told Qa'id Johar that the Bohras of Udaipur were opposed to the nominees, and advised that the nominations be cancelled and the committee formed through elections. The Syedna's son,

reluctantly, cancelled the nominations, but would not agree to hold fresh elections.

In view of the Syedna's claim to absolute authority and of his conduct, and in order to oppose the committee imposed on the community, the reformist members announced that the community would itself elect a committee through elections, and issued a statement to that effect. But the Syedna and the priestly class boycotted the elections and ordered their followers not to take part; they opposed the elections outright, declaring that they had no faith in elections and, further, that elections were contrary to their religious belief. The elections were held in December 1975. A few days beforehand the Amil, Shaikh Sharaf Ali [name uncertain], sent a telegram addressed to "M. A. Nazariya" [reading uncertain], a resident of Sathni Ram Ji ki Badi [place name uncertain] in Udaipur. The contents of the telegram are most interesting; the witness produced a photostat copy of it, the text of which runs as follows:

"Our religious belief is that all administrative councils are nominated, appointed, and constituted by the Da'i al-Mutlaq, His Holiness the Syedna, and that they function under his patronage. (Stop.) In the Bohra community elections of this kind were never held, and ought not to be held. (Stop.) It is therefore requested that no step of this kind — contrary to our religious sentiments, practices, and beliefs — be permitted. (Stop.) The mention of such ad-hoc committees, made in the 30 December issue of the daily *J. Rajasthan* (page one, column 6, middle portion) under the heading 'Ad-hoc committees for the Bohra Managing Committee', is unconstitutional and illegitimate and contrary to our religion and belief; and the sole purpose of taking such steps, and giving them publicity, is to spread malice, rancour, and suspicion in the Bohra community, so that our religious tenets may be ridiculed and feelings of envy and disrespect spread against our spiritual leader (*peshwa*), Shaikh Sharaf Ali."



(The reference in the telegram to the *J. Rajasthan* of 30 December is to the election announcement that had appeared in that paper.) As proof that the elections were duly held in December, the witness also produced a cutting of the *J. Rajasthan* dated 8 December 1975. [The two December dates the source gives for this episode are not entirely consistent.]

### **(9) The prohibition of charity**

The witness further told us that the Syedna ordered the dissolution of the Anjuman-e-Luqmani, which on the occasion of funerals provided the help needed for funeral rites — the washing and shrouding of the dead. In any case, to harass the community by every means, firmans were issued to dissolve this organization.

The witness also gave the example of the Saifi Dispensary and maternity home, founded some years earlier by the late Shri Tayyib Ali, who in his day held high judicial office in the State of Rajasthan. The Syedna, he told us, insisted that after a time the dispensary and maternity home be renamed after himself; when the founder refused, the Syedna withheld permission for its continuance, with the result that the institution has been left gasping for breath and to this day cannot serve anyone.

Another example is the Burhaniya Library, which holds books on literature, history, and many other subjects. Founded some years ago, it was used by members of the community. It is a public library; but because its administration is in the hands of a supporter of the Bohra Youth, firmans were repeatedly issued to close it. When the management refused, a firman was issued to the members of the community forbidding them to use it. Now no orthodox person comes to it, while the general public continues to benefit from it fully.

The witness also cited the Saifi Welfare Society (Saifi Imdadiya), which for several years has distributed free books to primary and secondary school pupils. It awards scholarships to deserving students who wish to study further and, to encourage them, distributes gold and silver medals,

cash prizes, shields, and other awards; through it many men and women — among them doctors and engineers — have been enabled to obtain an education. The institution runs on donations and membership fees. According to the witness, the Syedna opposes all institutions of this kind, in the belief that his authority will not prevail in a society of educated people. To this end, in 1966, the Syedna sent instructions to Udaipur that no donation be accepted from Shri Mohammed Husain Bali Wala, advocate — then residing in Africa — and that, if any had already been received from him, it should be returned. The reason given was that Mohammed Husain's activities were contrary to the Da'wat and that he was an enemy of the Da'i; a cable to this effect was sent. Mohammed Husain used to make large donations to the committee every year, and at that time the witness was its permanent secretary. The sword of social boycott then hung over every head. Through his orthodox supporters the Syedna had the Saifi Welfare Society boycotted, and every effort was made to cripple it — even the institution's supporters living in Bombay were directed to keep entirely clear of it. The institution has now fallen into financial straits; but the Bohra Youth and the Bohra jamaat, by their own efforts, have once again set its activities going.

The witness gave another clear example. To foster unity and trust among the different communities, the reformist Bohras had begun holding a function once a year. They fixed a date for it, falling between Eid and Diwali, and named it the "Eid-Diwali Milan". The public welcomed the step warmly, and Hindus and Muslims took part in it in their thousands. Our country has adopted the principle of secularism, and this was a concrete step in that very direction. The Syedna expressed his displeasure at functions of this kind and directed his orthodox followers not to attend them.

A witness, a resident of Pada Gadh in Godhra [place names uncertain], gave the example of the "Friends' Circle" club [name uncertain], which used to assist in the education of students. Because permission for its

establishment had not been obtained from the Syedna, a firman was issued to close it, on the pretext that it had taken a religious name.

A resident of Bombay, Shri Mehruz Sadiq Ali Sehwarwala [name uncertain], in his reply to the questionnaire, referred to several institutions that had been closed on the ground that the Syedna's permission for their establishment had not been obtained. They are the following:

1. The Hasan Ali Dholakawala Trust — a mother-and-child centre.
2. The Musaqqati Charitable Trust [name uncertain].
3. The Morris Wala travellers' lodge [name uncertain].
4. The Kanadi-wali Colony [name uncertain].

Institutions numbered 1, 2, and 4 were closed; institution number 3 the Mullaji, in his capacity as head of the community, seized into his own possession by the use of his coercive powers.

One person, who wishes his name kept confidential, gave in his reply to the questionnaire several examples of the Mullaji's interference. He told us that pressure was brought on the leaders of the American jamaat to agree to transfer all the community's property, permanently, into the name of the supreme religious head, the Mullaji Sahib.

In Visavadar, district Junagadh, a man offered a large donation toward the building of a mosque. When the Syedna's permission was sought, he was told that he must give an equal sum also toward the "Roza-e-Tahira" — the mausoleum maintained in memory of the present Syedna's late father, Mullaji Tahir Saifuddin. The upshot was that he had to cut down the sum he had meant to give for the mosque.

In Rajkot, people, with the Syedna's permission, formed a committee to provide facilities for the burial of the dead. But when the Amil found that two of its members belonged to the reformist group, he directed that they be removed from the institution. The members, deeply hurt by this attitude, thought it better to dissolve the committee; on the people's insistence, however, it was revived for its original purpose.

A man of Godhra, who does not wish his name disclosed, told us that one Ali Husain Cycle Wala [name uncertain], without the Syedna's permission, started an institution called "Anjuman-e-Muhammadi" [name uncertain] for the welfare of community members, and began tailoring classes; but he was forced to close them down.

One Inayat Husain Mulla Hemi Bhai [name uncertain], who had formerly lived in Kapat Ganj, Malegaon, told us in his reply that he had set up the "Dawoodi Bohra Helping Society" and started, for the community, a free hospital and a free library, which the District Collector inaugurated. But because he had not obtained the Mullaji's permission, he and his family were boycotted — so much so that even his mother and sister were socially boycotted, and they were harassed until they had to leave Kapat Ganj. The Amil told his mother to announce that she had severed relations with her son.

Another person, who asks that his name be kept confidential, told us in his reply that one Tayyib Ali Ibrahim Ji [name uncertain] — of Doctor Lane, Bennett Road, Bhendi Bazaar, Bombay — had set up a free dispensary, to which Ibrahim Ji used to give donations; a directive was issued to boycott him completely.

A man named Yunus Balu Wala [name uncertain] appeared before us as a witness and, among other things, related this distressing fact: that in 1965, during the large-scale communal riots in Godhra, the houses of members of the Dawoodi Bohra community were burned on a wide scale, and the government built many huts to shelter the refugees. In 1967 one Ibrahim Mali [name uncertain] came from Karachi, wishing to give a large sum — some Rs. 30 lakh — to build many such huts. But the Syedna's permission was needed; and when it was sought, the Syedna's side said that the donation should be handed to them, so that they might build the huts, and, further, that the construction should be carried out in the name of the Da'i. Seeing such an attitude even toward the work of resettling the homeless, the donor took offence; and the upshot was that the countless

people who might have benefited from the work were deprived of it — merely because the Mullaji Sahib wished to keep the credit for it upon his own head, and the property in his own ownership.

To this day the riot refugees are still living in the huts the government built. A Mrs. Zubaida Zainuddin Wali [name uncertain] of Godhra told us in her reply that she and other women had together started the “Fatima Mahila Mandal” (Fatima Women’s Association); but, because it had been set up without permission, she and her husband were socially boycotted and the institution had to be closed.

A man named Muhammad Husain [of Andarkar — name uncertain] appeared before us and said that he is an Assistant Professor of Economics at a college. He told us that, with several others, he had started a number of activities for the welfare of the community — among them a scholars’ society, a book-bank for college students, free classes, a burial society, and a medical-fund society — but had not obtained the Syedna’s permission for them, and he and his companions worked quietly. They met neither the local peshwa nor the present Syedna’s son when he visited. Accordingly, in 1966 they were boycotted, and the boycott lasted until 1972; they were then required to go to the Syedna and give an assurance that their object was not to challenge his authority, whereupon it was partly lifted — but even this proved temporary. In 1968, in connection with remarks made against the Mullaji Sahib — concerning the stopping of marriages in Udaipur — by a former Member of Parliament, Bhushan [name uncertain], at a Congress leadership session in Delhi, the priestly class took out a procession in protest. Because the witness did not join it, he was boycotted afresh; and his father, under the threat that otherwise his four sisters would be made to be divorced, turned him out of the house. The witness left his father’s house and for about six months stayed with a Hindu friend. His father then called him back, with the result that all eleven members of the household were socially boycotted — for it was the only household that had stood out — and the family was left wholly isolated. Their plight

became unbearable; and in the end the entire family renounced Shi'ism, embraced the Bahai faith, and joined the Bahai community.

This much is clear: that the purpose of insisting on the Syedna's permission for the founding of institutions is to gain control over them. Indeed, from the matters we have described in detail, this too is plain: that the priestly class wields the weapon of social boycott blindly. The aim of such a boycott is to make the life of one who opposes them so bitter and unbearable that he can never even conceive of disobeying the orders of the Syedna and his Amils. The facts we have set out in this chapter — and those we shall set out hereafter — are tales of terror that call to mind the doings of the medieval Roman Catholic Church. We are satisfied that such acts are carried on not only in this country but in others as well. The Permanent Commission of Enquiry of the Government of Tanzania has acknowledged that the practice of excommunication continues and that people are being punished merely for their opposition.

Before us is a photocopy of a letter that the chairman of that standing inquiry commission sent on 6 January 1969 to the Dawoodi Bohra Jamaat Corporation, Dar-es-Salaam — addressed to Sheikh Fida Ali H. Mu'ayyad, Moiz E. S. Khambali (Chairman), and Murtaza A. Raja (Secretary). [*The three personal names are transliterated from the handwriting and are uncertain.*] The text of the letter is as follows:

It has been observed that a social boycott has been imposed upon those citizens of Tanzania who belong to the Bohra sect; they are branded as rebels and thrown out of the mosques.

Reports of the same kind have also reached several other offices in the country. These matters have now been fully investigated, and it has been concluded that for some members of a community to brand others as rebels is a breach of the peace and policy of the country, and is therefore not to be tolerated. Whoever does not abide by the policy of this country shall not be allowed to harass any of its citizens. Such acts must not occur in future. Stern measures shall be

taken against anyone who hereafter calls a person a rebel or resorts to excommunication (*bara'at*). Every person must be free in his likes and dislikes.

Let it also be borne in mind that, in order to remove the tension that has arisen from the failure to hold elections, a fair election shall be held, in which all adults shall take part.

(name could not be read)

Chairman

Standing Inquiry Commission

Copy for information:

Administrator-General, Dalla [?]

Post Office Box 20125

Dar-es-Salaam

This letter is perfectly clear. A standing commission — itself a government agency, empowered to investigate complaints of this kind — has found that in Tanzania too the leaders of the Bohra Jamaat resort to this very method: Dawoodi Bohras are thrown out of the mosques, and attempts are made to harass them. This is exactly the same *modus operandi* as that employed by the mullahs and their *Amils* in India. The letter makes plain that the Government of Tanzania is fully aware of the problem, and that its agency has warned the priestly class not to involve itself in acts of this kind.

## CHAPTER VII

# Excommunication (Bara'at) and Social Oppression

In their answers to the questionnaire, the respondents made the general complaint that those who are reform-minded — or who merely call themselves reform-minded — are subjected to social boycott. The terms “social boycott” and *bara'at* do not convey the true nature of the thing. This is not a boycott in the sense of being merely put outside the brotherhood; rather, it means active, positive oppression — terrorization, the infliction of torment, and expulsion from one's locality, the mosque, the cemetery, and so on. The person placed under social boycott does not bear the affliction alone: his close relatives, and those who out of natural affection try to keep up any contact with him, are also made targets, and so are boycotted in their turn, just as the original person was.

Permission — *raza* — of the Mullaji is required not only for religious matters but for non-religious ones as well: cultural, social, economic, commercial, and political and welfare activities alike. As one respondent explained, permission must be obtained for birth, for death, for marriage [reading uncertain], and indeed for everything else. Those who exercise their constitutional rights without *raza* must endure social boycott, dis-



criminary treatment, and retaliatory action; even the children of those who disobey the orders of the chief Mulla are subjected to mistreatment at their schools and on the playing fields.

Many respondents said that the practice of *bara'at* began with the eighteenth Da'i and that it came to be applied more and more after about 1965. It is enforced by the chief Mulla through his *Amil*. The

strange thing is that the declaration of *bara'at* is generally not made in writing; it is announced orally in the mosque, in the *majlis*, or at other gatherings of the sect. As a rule, the person boycotted is given no opportunity to state his case against it.

A very large number of individuals and families are enduring the rigours of *bara'at* — in Udaipur in their thousands; in the city of Bombay and in East Africa, in their hundreds; and even in small towns a few families are under social boycott. The grounds for *bara'at* are, in particular: the exercise of civil liberties; the expression of disagreement with the orders of the chief Mulla's circle of devotees; and the rendering of social services — such as opening a school or carrying on a business — without the chief Mulla's permission. *Bara'at* is lifted only when the person submits a humiliating letter of apology and, once it is accepted, takes the *Misaq* (oath of allegiance) afresh. The Commission holds photostat copies of some of these apologies, and of the documents recording the renewed *Misaq* through which individuals and families were reinstated. The number of those affected is very large; a few particular instances are given below, with the names of the persons concerned.

### **(1) A sister's distress; a brother's burial**

A lady, Maimuna Bai, daughter of Rajab Ali Baghpurwala, a resident of Udaipur, appeared before us. The substance of her statement is as follows.

In Udaipur the reformists raised their voice around 1970 [date uncertain] and began working for reform. I have been with them ever since, because they work only for the welfare and reform of the community.

We are five sisters and two brothers; of these, one brother and one sister are not with the reformists. By the Syedna's order, *bara'at* was declared against us, so that those of our relatives who side with the conservatives (*qadamat-parast*) would sever relations with us and stop even speaking to us — and so that, if any of them tried to converse with us or keep up ties, *bara'at* would be declared against them too. At the instigation of the clerical class they not only broke off kinship with us but created so hostile an atmosphere that the conservative followers even began to beat us without cause. Once my paternal uncle's son, Sajjad Husain, attacked my mother and me without provocation, because we side with the Bohra Youth Association.

My father's shop is in the village of Daspura. He is old, and his eyesight has grown very weak. On 13 April 1975 my brother Shabbir Husain fell into a well and died. My father was at his shop in the village. I sent for my brother Nisar Husain, who, being on the side of the conservatives, had kept his distance from us; he went to the *Amil*, Shaikh Isma'il Khanjar [name uncertain], to seek permission to come to our house. The Amil sternly forbade him to go to his father's house or to take part in the burial. He could not even lend his shoulder to his own brother's bier.

My sister Shirin, who is married to a supporter of the conservatives, came to our house on hearing of the death, to have a last sight of her brother. For this her husband refused to take her back, telling her to go and live in the house of her reformist father — she had, he said, ruined her own salvation. For six months she could not return home, and was allowed back only after being compelled to submit an apology and to renew the Misaq. From that day I have not been able to see her face; she is not even permitted to pass near our house.

## **(2) Attack on women in the mosque**

Maimuna Bai further told us that she had been an eyewitness to a notorious incident at the Moyyad-pura mosque on 18 January 1975 — a

harrowing scene she can never forget. That morning, while people were listening to the *majlis* commemorating Imam Husain, men of the conservative class entered the mosque armed and fell upon the worshippers. Not even the women were spared; many women and men were injured. In her whole life, she said, she had never before seen so murderous an assault. The women began to wail; they were beaten and denounced as enemies of the *da'wat* (mission), and were shoved and knocked to the ground. One child was snatched up and dashed to the floor. She herself was pushed down. All this, she said, was done at the order of the chief Mulla's circle of devotees, for the attackers themselves said as much.

### **(3) Oppression at Galiakot**

*[The contents page reads this heading uncertainly as "Ghatkopar"; the manuscript here clearly reads Galiakot — the Bohra shrine town in Rajasthan.]*

Ms. Mahfuza Abid Husain Adib of Udaipur, about thirty years of age, stated before us that her husband had from the first been a social reformist, working for education in the community and for the welfare of the poor. He founded an institution called the *Saifi Imdadiya* to help boys and girls with scholarships, books, and the like, and also set up a dispensary for the free treatment of the sick. In 1960, after the defeat in the Udaipur municipal elections of the candidates nominated by the Syedna, the Syedna grew displeased with her husband; and in 1963, at Galiakot, that very place became the first to feel the Syedna's wrath.

Galiakot is a town in Rajasthan, about 75 miles from Udaipur. It has a shrine (*dargah*) where Bohra pilgrims gather in great numbers for the *urs* (death anniversary) of Saiyidi Fakhruddin Shahid. What happened there is set out below in the witness's own words:

The day of 3 February 1968 still makes my heart tremble. That evening I had gone to Galiakot for the *urs* with two friends, and went

into the resting-room adjoining the shrine, carrying some sweets with me. As soon as I arrived, three daughters of Shaikh Zakir Husain Gatttharwala came and told me that the Shaikh wished to see me. When I refused to go with them, they beat me. The people standing about came up and began beating me too. Some elderly bystanders asked why I was being struck, but they were scolded into silence. The crowd then began to call me an enemy of the Da'i, and said they would dishonour me. I was ordered to denounce my husband as an infidel; when I refused, a man ran up and struck me on the head with a *lathi*. I fainted. When I came round a little later, I found people staring at me with lustful eyes, repeating that I was an enemy of the Da'i and an infidel, and heaping abuse on me. Among them were people from outside Udaipur, though I knew some of the local men. One or two young men who knew me told me to slip away quietly. My clothes had been torn; in that state I made my way to the bazaar, with some still following me, and took refuge in the house of a woman I knew. During the night I learned that others too had been beaten. Next morning I took the early bus to Udaipur with my two young children. From that day the friends of mine who belonged to the conservative group began their bara'at against me and broke off all ties.

Ms. Safiya Bai of Udaipur, widow of the late Muhammad Husain Dehliwala, gave a statement to the same effect. She added that Shahzada Yusuf Najmuddin — the brother of the present Syedna — was among those present and was inciting the crowd. The women who had come for the urs were dragged through the streets by their hair; their clothes were torn, they were spat upon, and they were terrorized in the most degrading manner. The Syedna and members of his family watched the scene from the balcony of the Fakhri Mahal, where they were lodged. The women raised their hands towards the Syedna again and again, crying out and begging him for help, while the members of his family looked on, enjoying the spectacle. A crowd surrounded her and forced her to invoke a curse

upon her own dear son, Ihsan Husain; trapped in their net, she did so with a heavy heart. The people of Udaipur were made to assemble in the Galiakot mosque and there to curse one another — brother cursing sister, wife cursing husband, parents cursing their children — and were made to swear that they would never relate the events of Galiakot elsewhere, on pain of expulsion from the community. Her husband, who had served the Syedna devotedly all his life, set off at once for Galiakot when she told him — he was then still alive — of what had happened, hoping to find some path to reconciliation; but there too he was ill-treated and, on the contrary, told to apologize. So grieved and shocked was he by the whole affair that he died. The Syedna had conferred on him the title “M.K.D.” [abbreviation uncertain], for which he had presented a *nazrana* (offering) of 2,000 rupees. The witness also stated that even women are compelled to prostrate themselves (*sajda*) before the Syedna and his brothers and to kiss their hands and feet — a practice utterly contrary to our religion.

#### **(4) A son forced to declare disownment of his father**

Shaikh Ya’qub Ali, son of Qurban Husain Rajnagarwala, of Udaipur, seated before us, recounted the painful details of how he, his son, and his daughter were made targets of oppression. He said that he is 66 years old, and that from the age of 18 until 1963 he had served the community as a Mulla. He took no part in the municipal elections of 1960 mentioned earlier, supporting and opposing no group; but the Syedna came to doubt his loyalty, because he had not actively backed the candidates the Syedna had approved. Soon after the elections he went, during Ramadan, to lead prayers at Rajula in Gujarat; but while he was there the Mullaji’s administration suspended him and ordered him back. On his return to Udaipur the local Amil issued an order of *bara’at* against him. He then went to the Syedna in Bombay, apologized, and was pardoned, after which he served as an acting Mulla for three years.

At the beginning of 1963 the Syedna’s eldest son visited Udaipur. The witness was then away at Khemipur (Madhya Pradesh) delivering majlis

sermons for Muharram. By the time he returned, the Syedna's son had already left for Galiakot, and he followed at once. There, before some ten thousand people, two Arabs<sup>1</sup> humiliated him and threatened that he would be killed the next morning. The Amil of Udaipur, who was present, advised him to leave Galiakot without delay; and when he reached home, bara'at was declared against him for having fled Galiakot.

In those days his son was studying at the religious college Jamia Saifiya in Surat — an old institution founded to give religious education and to train Mullahs, that is, the religious scholars of the Dawoodi Bohras. After his father's bara'at the son went to Udaipur to visit him; for the offence of meeting a father under bara'at he was expelled from Jamia Saifiya for four months, and had to go to the Syedna in Bombay to beg pardon before he was readmitted. He was told to change his name so that it would no longer show him to be the son of Shaikh Ya'qub Ali — his own father. His name had been Mulla Ishaq Ali, son of Shaikh Ya'qub Ali; he was ordered to take the name Mulla Sabir Husain Udaipurwala and not to attach his father's name to his own.

The son wrote to the witness's son-in-law, Fakhruddin, explaining the change of name. In that letter he said that he was no longer Ishaq Ali, son of Shaikh Ya'qub Ali, but Mulla Sabir Husain Udaipurwala, son of his spiritual father, the Syedna. The witness produced the original letter together with a photocopy; we returned the original and kept the copy.

In 1974 the witness addressed a meeting of the Progressive Bohras in Udaipur. When the Syedna learned of this he declared him a *Taghut* — a devil and an enemy of God — and the supporters of the conservatives call him so to this day. After this, his son married, but the witness does not know when or to whom; his son did not inform him. Once bara'at had been declared against him, the witness openly took up his connection with the Bohra Youth Association.

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<sup>1</sup>In Yemen some Arabs acknowledge the Bohra Da'i [final word of the source note uncertain].

On 18 January 1975, while he was delivering a Muharram majlis in a mosque, about two hundred [number uncertain] conservative Bohras, armed with knives, sticks, daggers, and other weapons, forced their way in and tried to attack him; some young men intervened, and he suffered only minor injuries. His daughter, Zubaida Bano, described these events in her answer to the questionnaire, confirming her father's account.

He further said that on 29 November 1963 his son Ishaq had written him a letter expressing the torment he had been put through. In it he wrote that, merely for the offence of having met his father, who was passing his days under *bara'at*, he had been made to endure extremely painful conditions: when he went to his college in Surat his books and belongings were seized, and no student or teacher would speak to him. At last, compelled, on 23 May 1963 he went to the Syedna and, falling before him, confessed that his father deserved to be cursed and reviled, that he was a devil, and that he, the son, declared *bara'at* against his father Ya'qub and against the Bohra Youth; his father, he said, was no longer his father, and his name would be changed.

Zubaida Begum went on to state that the Syedna was greatly pleased by her brother's petition and changed his name to "Sabir"; and that when her brother returned to Surat the students and teachers of Jamia Saifiya honoured him warmly and offered congratulations. She sent us a photocopy of the letter, and added that *bara'at* has also been declared against her — by her own relatives and by her mother-in-law.

## **(5) Boycott of an advocate**

Shri Yahya Ali, an advocate practising in Udaipur, gave a statement and also appeared before the Commission. He said that for several years he had taken an interest in the Youth Reform Movement, and that in 1960 he had supported the Youth Reform candidates in the Udaipur municipal elections. In 1963 *bara'at* was declared against him, whereupon all his Bohra clients of the conservative class abandoned him, and his cousin

severed all kinship with him. His relatives also broke off relations with his mother-in-law, who lives with him; and because his sister had refused to break with him, her husband boycotted her and her children along with him, leaving her without any financial support for herself or her daughter.

He stated, too, that before any social or welfare activity is begun the Mullaji's permission is required; and that, if it is not obtained, the person concerned is boycotted and oppressed until he abandons the activity and apologizes. In 1964 he and other educated Bohras had founded an institution called the National Club, to promote educational and cultural activities among people under eighteen. Not knowing that the Mullaji's permission was needed, he had not sought it from the local Amil. When the Club held its first function and *mushaira* (poetry symposium), the Amil summoned him and told him that he had committed a grave offence in holding the programme without permission. The Amil then threatened the witness's father, who told his son to give up the Club or he would no longer pay his educational expenses.

He further said that any school or society founded without prior permission is required to include in its constitution a clause providing that every decision it takes must be submitted to the Mullaji for approval, and that any decision he does not approve shall be void. In effect, the right to annul any decision of any organization rests with the Mullaji, and the Mullaji's Amil is made president of every society, so that the Syedna retains control over any institution started by a member of the community. As proof, he related that around 1965–66 a secretary was to be elected for a certain school. Isma'il Ali — an advocate, chairman of the District Municipal Council, and a member of the Panchayat Samras Commission [reading uncertain] — was returned unopposed as secretary under the society's constitution. When the Syedna was told of the unopposed election he at once ordered Isma'il Ali to resign and, without any fresh election, reinstated Shri Ghulam Ali, who had been secretary before. Thus, at a single stroke of the pen, Isma'il Ali's regular election was set



aside, and the former secretary — who had not even any acquaintance with educational matters — was restored to office.

## **(6) Oppression and excess against a Sheikh**

A man named Muhammad Shaikh Sarangpurwala, son of Sajjad Husain, a resident of Surat, appeared before us and recounted the tale of the oppression visited on him and his father. His late father had received his religious education in Surat, at a religious college under the Mullaji's control. A scholar of Urdu, Arabic, and Persian, he taught religious literature in Arabic and composed religious poems; the Mullaji of the day — the fifty-first Da'i, Taher Saifuddin — had appointed him a teacher at the religious college, and the present Syedna himself received his religious education from him. For about fifty years he served the institution faithfully on the meagre salary of 25 rupees a month. One day the Syedna's brother dismissed him from the college, and the reason for that dismissal is most revealing of the autocratic side of the Da'i's regime.

Sajjad Husain and three companions held the belief that the fifty-first Da'i had died suddenly of some kind of poison without having named a successor; but they had not proclaimed this belief, keeping it to themselves. In 1969, when one of them, Shaikh Hasan Ali, went on the Hajj, he disclosed these views to an Arab friend and asked him to keep them secret. Somehow the matter came out, and the present Syedna's brother, Yusuf Najmuddin, learned that Sajjad Husain and his three companions held this belief. It was after this that the series of grave measures began.

First, the Mullaji declared bara'at against Sajjad Husain and his three companions. The Syedna began calling them accursed, deserving of damnation, and devils, and notified his followers everywhere by circular. He then summoned the families of all four scholars to his *Deorhi* (the headquarters in Surat) and told them either to expel the four men from their families or, collectively, to disown and curse them. When they refused, the Mullaji's followers beat them, and bara'at was declared against

the families too, so that their ties with the community were broken and their lives became unbearable.

Before being expelled from the college, the four scholars were summoned by the Syedna on 1 January 1974 and made to stand in an assembly of the college's teachers and students, who were told to curse them, spit on them, and abuse them; they were then shoved out and dismissed. That night a mob of three hundred went to their homes and looted their household goods and religious books; Shaikh Hasan Ali was summoned and severely beaten by the students. On the occasion of religious functions — especially during Muharram and Ramadan — the Mullaji's class inflamed its conservative followers against the four teachers with false accusations of drinking liquor and chewing tobacco, and with the charge that they did not believe in the powers of the Prophet or of the *Huzur-e-A'la*, the Da'i. Along with the boycott, certain ruffians threatened that, unless they apologized, acid would be thrown on them, they would be killed, or their houses looted and burned.

The witness's father, Sajjad Husain, very old and frail, suffered the most. In the mosque and at the shrine he was treated abominably: stones were thrown at him and his cap struck from his head. The families complained to the Mullaji, but the persecution only dragged on. If any woman of the household so much as looked out of a window or door, the conservative followers hurled filthy abuse at her, and it became impossible to leave the house with one's honour intact. Not only Bohras, but others too — milkmen, washermen, domestic servants — boycotted the Shaikhs.

The witness was forced to divorce his wife, and his four-month-old daughter, Nasrin, was branded a child of sin. Shaikh Hasan Ali's son-in-law, who served in the Mullaji's administration and was bound to obey his orders, was likewise compelled to divorce his wife, though he loved her dearly. The other son-in-law of Shaikh Ahmad Ali, one of the four teachers, was not required to divorce, because he and his wife had cursed

the four teachers — Shaikh Ahmad Ali among them — in the Syedna's presence.

In 1972, after extremely humiliating treatment, the wife of Shaikh Ali Ahmad died. Permission for the burial was given, but all Bohras were told not to attend, and it was stipulated that, if any of the four expelled teachers took part, the body would be thrown out of the cemetery. In the end, during Ramadan, while fasting — hungry and thirsty — six young men of the family carried the body a mile and a half on their shoulders. The gravedigger had been removed from the cemetery, so the witness had to arrange for another. Although the death had occurred at ten in the morning, the burial could not take place until five in the evening. The same thing happened when the witness's aunt, the late Fatima, wife of Shaikh Hasan Ali, died.

The Mullaji's side kept urging the conservative followers that the four teachers should be expelled from the school. One of them, Shaikh Ahmad Ali, had already left Surat, having been invited by the reformist Bohras of Udaipur, who needed a religious scholar. On the night of 22 November the teachers, some students, and other hooligans (*goondas*) held a meeting at the school and laid plans for an attack; dividing into three groups, they fell upon the members of the witness's family — that is, the household of his father, Sajjad Husain — at about ten at night.

The house of the witness's uncle was attacked, but he saved himself and his family by bolting the front door and escaping through the back; Hindus gave them shelter. The whole house was wrecked, the furniture and utensils smashed, stones thrown, food destroyed, and valuables and glassware broken. Shaikh Ahmad and his family were likewise protected by neighbouring Hindu families. The witness and his father, however, were surrounded by the Bohras, and the neighbours could not reach them. Some attackers broke down the door, forced their way in, and began beating the witness and his father. When the witness tried to shield his father, the attackers turned on him the more fiercely; he was dragged

outside and told to forsake his father and curse him. His clothes were torn and blood ran from many parts of his body until he fainted. With great difficulty he got back inside, to find his father half-conscious. The mob had injured them grievously, even their ribs; the furniture, radio, sewing machine, and even the food and water were destroyed; not even the four-month-old baby was spared.

The witness's wounded father died on 25 November 1974 at the house of a reformist, Shaikh Tahir Bhai Abdul Ghafoor Khwabwala. When he died, the Mulla's circle of devotees set off fireworks to celebrate his death and their own victory; this went on from two in the morning until ten at night, and sweets were distributed. On a charge of conspiracy to murder, a case was brought against many people, but the Surat court acquitted the accused for want of proof. We are not concerned, however, with the identity of the attackers, but only with the fact that those who had been boycotted were made the targets of mob violence — by whomever the attack may have been organized.

## **(7) Oppression of Bohras in foreign countries**

Many reformists were refused permission to marry in East Africa: despite the repeated requests of about a dozen people, neither the Mullaji nor his circle of devotees, such as the *Amils*, would agree. In many cases permission was refused even to perform the *aqiqa* (naming ceremony) of newborn children.

Permission to bury the dead was also refused. One example is Mulla Amir Bhai Muhammad Ali, whom the late Da'i held in high esteem, on whom the honorary titles of Mulla and "M.D." had been conferred, and who was a prominent figure in the community, having served for several years as president of the *jamaat*. At his death Mulla Amir Ali was a *mutawalli* (trustee) of the community; and because he had refused to make over the community's property to the Da'i's representatives without the community's consent, he was denied the right of burial. This is only one

instance; the same has happened in many cases. Acts of oppression occur in Kampala and Gonda [place uncertain] as well, and in every part of the world reformist members of the community are being refused lodging in the community's guest houses (*musafir-khanas*).

Before us is a photocopy of a letter dated 16 June 1972 from Anwar Ali T. D. Bhara [name uncertain], Under-Secretary of the Dawoodi Bohra Jamaat Corporation, Mombasa, addressed to Abdul Ali Husain Hamdani of Kampala. The letter reads:

Your signature on the letter of 16 June 1972, which was circulated to the people of the Dawoodi Bohra community in East Africa, means that you have directly challenged the powers of the sacred and exalted personage, His Holiness Dr. Syedna Muhammad Burhanuddin Sahib (T.U.S.), the fifty-second *Da'i al-Mutlaq*. Unless, within one week of the date of this letter, you send Shahzada Dr. Yusuf Bhai Najmuddin Sahib an unconditional letter of apology over your signature and forward us a copy, you will be deprived of all facilities — including those provided in the guest houses of our Jamaat Corporation in Mombasa.

(Shahzada Yusuf Najmuddin is the brother of the present Syedna.) A copy of the letter was sent also to Dr. Yusuf Bhai Najmuddin and to the under-secretaries of all the East African jamaats.

We have before us, too, a letter from H. F. S. Musa Ji, who states that the present Syedna had given him the title “N.K.D.”, signifying that he is a *mujahid*, one who wages *jihad* in defence of the Syedna and his da'wat, and had also named him the chief Shaikh of the Bohras — honours for which he is grateful. He was a loyal and devout member of the community who had always supported the Syedna; his forebears on both sides had been deeply pious and devoted to the community, rendering the Syedna services too great to set down in writing. He is president of the Nairobi [place uncertain] Dawoodi Bohra Trust, which administers property worth 2.5 million rupees. During the Syedna's visit in 1972, his brother

Yusuf Najmuddin asked Musa Ji whether he would transfer the Trust's property — including the mosques — into the Syedna's name. Musa Ji replied that he would not object if the other trustees agreed; but when they were asked, they wished to know whether they had the authority to do so, and it was decided to take the opinion of legal experts. Two eminent Sri Lankan lawyers advised that the trustees had no authority to transfer public property or a mosque into any individual's name. Their opinion was sent to the Syedna and his brother, but no reply came.

In 1972 Yusuf Najmuddin announced that he was breaking his journey to Japan at Colombo. He called a meeting and there, before everyone, insulted Musa Ji, saying that the transfer could have been managed quietly. Musa Ji answered that the lawyers had advised that such a transfer would not be worth even the paper it was written on. He complained to the police, and Yusuf Najmuddin was ordered to leave Sri Lanka within 24 hours. Musa Ji then denounced Najmuddin's misconduct, and a quarrel ensued. Later, when Musa Ji went to Bombay and tried to pay his respects to the Syedna, Yusuf Najmuddin prevailed on the Syedna to declare *bara'at* against him. Najmuddin told Musa Ji's nephew, Faizullah Adam Ali, to leave Musa Ji's employment and to keep no relations with him; and the local Mulla is still trying to detach Musa Ji's son and wife from him.

Musa Ji is a life member of the Young Men's Muslim Association, the Young Men's Christian Association, and the Maha Bodhi Society of Britain; a member of the British Legion and of the Agricultural Society of Britain; and was formerly a member of the Colombo Port Commission and the Indian Mercantile Chamber.

## CHAPTER VIII

# Further Instances of Social Persecution

### *Methods of harassment and infliction of harm*

Various methods are adopted to harass and inflict harm upon those with whom social ties have been severed. One common method is to attack the houses, shops, or business premises of these people; the person concerned is assaulted, and if his family members have not severed ties with him, they too are attacked. Beating and spitting are two such methods. They are forcibly prevented from attending the mosque, offering prayers, using the cemetery, and taking part in births, marriages, deaths, and other religious rites. Under bara'at, even the sick members of the affected person's household are harassed; and if he is employed by a Bohra, he is dismissed from his job. Another degrading method is to separate a wife from her husband, and a brother from his brother, sisters, and other relatives. There are many instances of homes being broken up. One may imagine the mental anguish of sons and daughters who are prevented from meeting their dying parents and are not allowed to take part in the burial and shrouding rites. Such things are common and occur

frequently in Bombay, Ahmedabad, Udaipur, Godhra, and elsewhere; they also happen in East Africa and Pakistan. Several respondents have stated that, in order to harass the reformist members, to attack them and inflict harm on them, and also to spy on them, the priestly class maintains private squads — a youth corps ("dasta-e-shabaab") and women's wings. The physicians who treat reformist members are boycotted; for helping the sick, the doctor [Cutlerywala — name uncertain] had to endure much suffering. Even children are not spared. Conservatives forbid their children to talk or play with the children of reformist members, and instruct them to beat and spit on them and to do everything that would make the lives of these little children miserable.

From Nairobi, Muhammad Ali Husain Ali has written that in 1968, in the Syedna's presence, he was flung out of the mosque. He was not permitted to attend the funeral of his wife, who had died at Mombasa on 6 April 1963. He was not allowed to attend the weddings of his son and daughter in Mombasa. When his sons came to Africa, they were forcibly prevented from meeting their father, and the conservatives even assaulted them. In 1966, when he came to India after twenty-three years, he was socially boycotted here too, because the Syedna's agent had sent word by telegram from Nairobi. In his absence, his property in Mombasa was seized from his son, who was not allowed to use it; it was said that the property belonged to the Syedna. When he did not vacate his house, it was deliberately demolished, and his life was endangered. He and his family were abused, and on 23 August 1968 his neighbours struck him on the head with an iron rod and wounded him gravely. His sister-in-law, who was in the house at the time, was also attacked and wounded with a knife.

An advocate, A. A. [Udaipuri — surname uncertain], who in 1973 again took the misaq in Bombay, bought a flat built by the Syedna's conservative followers; but the lease of the plot stood in the name of a religious leader, and neither he nor a few of his companions were given the documents. He therefore lodged a complaint of fraud in the court of the Additional Chief Metropolitan Magistrate, No. 2, Bombay, and then learned that the



original documents of the agreement were false and fabricated. After that, he and his family were tormented under bara'at and the social boycott against them was tightened.

In Gujarat there is a considerable Bohra population, and there too the chain of harassment continued. Zainuddin Wali Bhai Wali gave oral testimony and a written statement. An old reformist, he had taken an active part in the reformists' Godhra convention. After that, the Bombay Mercantile Cooperative Bank, which the Bohras run, stopped giving him business loans. The local Amil instructed the Bohras not to buy the soap made in his factory, and the advertising boards for his factory in public places were destroyed. Every social and personal weapon of bara'at was used.

On 12 June 1966, a reformist leader of Bombay, Noman Bhai Contractor, went with his family to his ancestral town, Godhra. When he visited the house of a reformist companion, Babagadhwala, the Bohras surrounded the house [the original wording here is unclear]. Zainuddin was at the time in a cinema house; when he received word from the house by telephone, he informed the police and asked that the reformist leader and his guest be protected. The Mullaji's men learned of this, and after surrounding the house they rained blows upon it. The Contractor's car was set on fire, and the Babagadhwala of Godhra was also attacked and harassed; his sister-in-law, who was in the house at the time, was attacked and wounded with a knife.

Because permission for marriage was withheld by the religious monopolists, the marriages of reformists in Udaipur were performed collectively, with government permission, at a public ground. Many further examples could be given, but the purpose is served by those already mentioned. Among those who suffered the most distress, the names of Abid Ali Jafar Bhai Gulgaliwala of Dahod, Ali Husain Tayyab Ali Cyclewala, and Husain Qurban Husain Sanjawala stand at the head of the list.

Sanjawala related another story of persecution, far graver than what has been told so far. His father, with seven other reformists, had founded the Anjuman-e-Muhammadi at Dahod (Gujarat) in 1935. They taught both the old and the young at night, and, to provide the poor with a livelihood, taught them tailoring; but on account of the social boycott and persecution this work had to be stopped, and the school he had set up in Surat could never function. A serious allegation made by Sanjawala is that, from the forty-sixth Da'i to the fiftieth, the Da'is remained in debt, because they spent money for the welfare of the community and the community then paid off their debts; but after the fifty-first Da'i, the Da'i's family, by grossly exploiting the community, became one of the richest families in the world.

Muhammad Bhai Shamsuddin Kut-piece-wala of Surat gave oral testimony in the criminal court of Surat, fifty years ago, against the forcible taking of signatures for an exemption from the operation of the Waqf Laws of 1923. He was beaten, and from then on he has been socially boycotted. Tayyab Ali M. Bulbul, Dr. Zakiruddin Qadir Bhai, and Tahir Bhai Abdul Ghafoor Kamkhwabwala (aged 82) have been victims of bara'at [since the time of Chande Bhai Ghalkis – reading uncertain]; filth and human excrement have been thrown upon them. Tahir Ali Abdul Ali Pahadiya has been boycotted for several years; the whole family, including his aged father and several women, has suffered the severest harassment. When their innocent young daughter died, they were not allowed to bury her in the Bohra cemetery, but the police and other Muslim and non-Muslim friends helped them. Mu'ayyad Saleh Bhai Mehndiwala (Jamnagar), [Tayyabi Zamindar of Dahleabad – place uncertain], and a few others related horrifying stories of the persecution of men, women, and innocent children.

The breaking-up of homes is a common method. Ibrahim Ali of Udaipur gave painful examples of his family, his sister, and other members who were forcibly separated and who, on that account, suffered intensely. Their only offence was that, without the permission of the Syedna's agent,

they had set up a cooperative bank in Udaipur with the help of friends from other communities. His sister, Dr. Khadija, a professor at the Baroda Medical College, was divorced along with her two children.

The two daughters of Sheikh Ahmad Ali Qurban Husain Rajnagarwala — Shahr Bano and Nafisa — were forcibly divorced and made to suffer; one of them was divorced while pregnant and lost her child from the shock. Mahfuza Taj of Udaipur was abandoned by her husband in 1965, and her brother's wife's sister also left her husband — all because these people were reformists. The young men of Udaipur, in a memorandum, related the story of twenty-nine couples who had been forced into divorce, and the Udaipur jamaat has submitted a similar list. Complaints of forced divorces have also been received from other places in India and abroad.

Mrs. Fatima Bai Sadiq Ali Tinwala of Udaipur, aged fifty, says that because her family belongs to the young reformist group, her daughter-in-law — who came from a conservative household — left her son and even sent back their six-year-old disabled daughter, who cried constantly for her mother. When this was reported, the reply came: "Let her die"; and at last, after medical treatment, the child died. Word had been sent to the mother to come and see her before she died, but when she arrived with her brother the child had already passed away. These people then lodged a false complaint against Fatima Bai's household, alleging that they had poisoned the child; but after the post-mortem they were cleared. Fatima Bai stated that her two daughters were divorced for the reason that their in-laws belonged to the reformist (Shabaab) group.

Mulla Saleh Muhammad Abdul Husain [Salam — place uncertain] states that he was socially boycotted. When his younger son's wife went back to her father, he was threatened that his social boycott would follow if his daughter-in-law were sent home again. His elder son's wife has died, but no one is willing to marry him, for everyone fears the boycott.

## **(1) Obstruction of Marriages**

There are several cases in which engagements were broken off under pressure from the priestly class, because one of the two parties belonged to the reformist group.

There is a painful story of the two daughters of [Tayyab Bhai Kotamcha — reading uncertain] of Bombay. He had taken an active part in getting the Waqf Laws enforced upon the property of the Dawoodi Bohra community, so that it might be used for the community's welfare; for the previous Syedna was turning that property into his own private possession. One of his daughters, Shireen, states that the two sisters have had to live a solitary life in Bandra for thirty-five years. They never married, and were turned out of their house in the Bohra quarter. Their mother had to be buried in a non-Bohra Muslim cemetery.

A few examples of persons who remained unmarried because of reformist activities are as follows: of [Imrani] of Godhra's four daughters, two had to be married outside the community and two are still unmarried; the daughters of the Sharaf Ali Mamunji family; the daughters of Noman Merchant; and A. M. Ghiwala's brother Abid, a doctor in America, who had to marry a Muslim girl from Delhi. It is impossible to list all the marriages that the priestly class refused to allow on the ground of the parties' reformist activity; the Memorandum of England gives a list of thirteen such persons.

## **(2) Forced Resignations**

The number of people who have been beaten and humiliated in public places and streets, and whose houses, shops, and business premises have been smashed, is very large. They live in far-flung places such as Bombay, Ahmedabad, Godhra, Udaipur, and Poona. For example: A. M. Ghiwala (Bombay); Tayyab Ali Jiwaji Jarbiwala (Bombay); Tayyabi Zamindar (Ahmedabad); Ismail A. Lokhandwala (Godhra); and Yunus Baluwala (Godhra). The stories of [Saifee Puragadhwala — reading uncertain] are very painful, and so is the case of Dr. Yaqub Bhai Baluwala of Godhra.

The names of Ismail Ali and Nisar Husain of Udaipur, Akbar Ali Daudji, S. K. Puragadhwala of the Godhra Youth Association, Zainuddin Wali, Muhammad Husain Kothawala of Karachi, and Husain Bhai Anjarwala of Mombasa are also worth mentioning. Women too are not spared: the reformist women of Bombay have complained to the police that they are sometimes harassed at bus stops and slapped by conservative women.

Other methods of pressuring reformists include dismissal from employment and the ruin of their businesses. Several respondents gave examples in which the priestly class and its supporters, by pressuring a Bohra employer's workers, forced them to resign because of the employer's reformist activities. A few such incidents follow.

Husain Bhai Anjarwala of Mombasa, on 10 March 1978, complained openly to all the members of the Mombasa Bohra community that, because they sympathized with the reformists, the religious leaders had pressured four employees of their factory (African Cotton Industries Limited) into quitting their jobs, even though the employees did not wish to leave and did so only reluctantly. Here we reproduce the substance of the letter that the Ministry of Labour of Kenya, through the Provincial Labour Officer, Coast, Mombasa, addressed on 31 March 1978 to the Secretary of the Dawoodi Bohra community of Mombasa and to the local religious leader; a photocopy of it was supplied to us by one of the respondents.

### **(3) Loss of Livelihood through Threats**

My attention has been drawn to the fact that about eight employees of [Mirza Namji Brothers Limited — name uncertain] have been threatened and harassed and, under the threat of being thrown out in disgrace, compelled to resign. Some of these employees had served the company for a long time; in fact, their lengths of service range from three to thirty-two years.

I have been assured that the company's management greatly needs their services, and it is felt that this whole affair is most regrettable, since it has interfered with the company's routine operations and production. The employees, too, have been badly affected by the community's action. They earn their bread by their labour, and it is certain that their families will suffer hardship through no fault of their own.

I wish to draw your attention to the fact that the Constitution of this country guarantees the worker the freedom to earn his livelihood, and that any action which obstructs — or is likely to obstruct — the freedom of a person, his family, and his dependents to earn a living will be viewed with concern and will not be tolerated in free Kenya.

Whatever may have happened, by this copy of the letter I direct the factory owner to allow the employees to return to work at once, and to inform this office whether any interference with the employees' freedom is taking place. I am confident that in future you will allow no incident of interference with people's livelihood, and that none of the eight persons named will be threatened or harassed.

#### **(4) Ban on Entry into Mosques**

The greatest hardship for reformists is that they are forbidden to enter the mosques. Although the mosques exist for the religious purposes of the Dawoodi Bohras, those under bara'at are not allowed in and are forcibly thrown out. Fida Husain Adam Ali of Nairobi has complained of this treatment, since he and some three hundred other reformist Bohras are barred from the mosques. The Dawoodi Bohra Welfare Society of Britain has stated in a memorandum that, in London, Ugandan refugees who had come to settle there were not allowed to attend the majlis on the day of the martyrdom (the tenth of Ashura) of Maulana Husain, and that those who had gathered in London from various parts of Britain were left to endure the city's cold and rain. Among those subjected to such cold-heart-

edness in India are Miss Shakira Madarwala, Ismail Attarwala, Sharifa Bai Attarwala, Mr. and Mrs. Fida Husain Rangwala, Miss Suraya Mashriqi, Shabbir Palanawala, and Zakir Sangwarwala. They are not allowed into the Bombay mosque, and the last four were beaten and thrown out from within the mosque precincts. Tayyabi Zamindar was treated likewise in Ahmedabad; and Yunus Baluwala, the Imrani household, Zainuddin Wali, Abdul Husain Hatim Bhai Diwan Mulla, and Sultan Ali Muhammad Ali Dalal all had to suffer the same in Godhra. Noman Bhai Contractor and his family were treated in the same way, and in Bombay Shabbir Husain was assaulted.

So intense is the hostility toward reformist members that the Syedna's followers are commanded to wage jihad against them during Ramadan and Muharram. During the past year the Commission was informed that, in the Muharram majālis, the supreme head and his Amils called for jihad against the Commission. From the literature published by his followers it appears that the faithful, besides praying for the supreme head, are to call down curses that his enemies and critics be burned in the fire of hell. This brief report has no room to recount the countless incidents of beating. In Bombay, Poona, Ahmedabad, Surat, Udaipur, Godhra — or wherever the community is split into conservatives and reformists — the worst atrocities fall upon journalists, schoolchildren, reformist families, and others, and most of these people live in fear of being beaten. Knifings have lately been increasing: only recently (13 August 1978), at Bhavnagar, Rasul Bhai Qamruddin Engineer of Lathi was attacked with a knife.

## **(5) Harassment during Burial Rites**

A memorandum submitted to the Commission states that, after death, reformist members and the relatives who live with them are not permitted burial in the Bohra cemeteries. The Central Board of the Dawoodi Bohra Community, Bombay, has given several examples of how reformists are made to pay by delaying burials. Generally, the burial and shrouding of such people takes place only under police protection; this is so wherever

Bohras live in large numbers, whether Bombay, Udaipur, or Gujarat — the story is the same. Among the prominent members whose burials were delayed are Khadija Attarwala, the mother-in-law of Noman Bhai Contractor; Ali Muhammad Kesariya; Bansari Bai; Akbar Ali Machiswala; and others, all residents of Udaipur. At Udaipur, Section 144 and a curfew had to be imposed.

At times the mental and emotional cruelty reaches an extreme, as when Saifuddin Gadhwal was severely burned by fire; while he hovered between life and death, his son, a supporter of the conservatives, was married off, and Saifuddin died that same night. As a loyal Bohra, the son could not take part in his own father's burial.

The Dawoodi Bohra Welfare Society of Britain has, in its memorandum, pointed to several incidents in which people were denied the right to perform the last rites. One is most instructive. Mulla Amir Bhai Muhammad Ali was so esteemed by the former Da'i that he was granted the title of Mulla and [other honorifics — uncertain], and for many years he served as president of the jamaat. In his last days he declared that he was a trustee of the community and that, without the community's consent, its property could not be handed over to the Da'i's representative. His burial was therefore delayed and he was denied the rites of burial and shrouding. On several occasions even the funeral prayer was refused, and the relatives of the deceased had to summon a non-Bohra maulvi to perform it. The body of the daughter-in-law of Sir Adamji Peerbhai Sahib was flung outside the cemetery. It is said that these inhuman practices began in the time of the fifty-first Da'i. Bohra doctors were forbidden to treat such people. The bodies of many — for example, Mohsin Muhammad Husain Udaipurwala (aged 23); Sughra Bai, daughter of Ali Husain Muhammad Ali Ranapurwala; Akbar Ali Sulaimanji Makati; and Akbar Ali Yusuf Ali of Gondli — were all buried under police protection.

The same witnesses further write that in 1925–26 the Mullaji's Amil, Fida Husain, prevented the digging of a grave for the deceased Tasadduq



Fida Husain; the body was buried under police protection, and the Amil was sentenced to six months' rigorous imprisonment, a sentence upheld on appeal. Zainuddin of Godhra writes that, to obstruct the funeral prayer of the mother of a reformist member, Abbas Bhai Safari, the mosque was locked, and the lock had to be opened with police help. In Udaipur, Sadiq Ali's daughter, Rashida Bano, had to bury her grandmother at a desolate spot because they had no money. In Karachi it is the same: Hatim Ali's mother had to be buried in a non-Bohra cemetery. Countless such examples could be given.

## **(6) Financial Pressure**

Almost everyone stated that taxes, levies, offerings (*nazrana*), and *salaam* of various kinds are exacted from them; a few, presenting a long list, said that they have to make payments on thirty-two separate occasions. Some have no objection to paying these dues; their only complaint is that the money so collected is not used for the poor and needy, for orphans, for widows, or for the community's welfare. Almost all said that a large part of the huge sums collected is spent on the luxurious life of the Syedna and his family, and not on the needy, on welfare, or on the community's progress. Most stated that not only are the amounts excessive, but the priestly class uses extremely oppressive methods of collection.

One witness produced a notice from Badri Mahal, bearing the follower's name and rank, informing him that on a stated day, time, and place the *zakat* had been assessed; he was warned that if he did not pay within the time he would have to pay whatever sum "His Excellency" [the Makasar Sahib — title uncertain] should name on his coming visit, and he was asked to attend, out of respect for the faith, and to make payment along with the *firman*. A photocopy of another form was produced, which the follower must fill in for the payment of *silā* and *fitra* it is accompanied by a table for calculating the amount. At the end of the form is a receipt, marked to be kept carefully, which must be shown at the jamaat office on

the occasion of marriages and deaths. Many people said that if the various dues are not paid within the appointed time, the priestly class obstructs marriages and burials and so recovers the balance.

Almost everyone stated that the local Amil collects the taxes as the Syedna's deputy. In his affidavit, Noman Bhai L. Contractor stated that firmans are issued from the Syedna's office to his Amils in cities and towns of India and abroad, directing them to perform special duties, and that the Amils are bound to obey without question. He produced telegrams sent from the Syedna's office. In one, the Amil was told that the Syedna had decided to confer titles on three Bohras, and that he was therefore to collect Rs. 552, Rs. 501, and Rs. 213 respectively and deposit them at the Syedna's office. Another directed the Amil to make reasonable efforts on behalf of Asian Dehydrate Limited, applications for at least five hundred shares being expected from his centre; Noman Bhai says that this company was started by members of the Syedna's family, and he produced a copy of its eighth directors' report, in which their names appear among others.

In this connection, Yusuf Ali Ali Bhai Mithaiwala of [Biksara — place uncertain] complained that he is a poor cook who earns his living by cooking and making sweets at Bohra feasts; he is loyal to the Da'i and pays the fitra regularly, yet the local Amil of Surat is pressing him to buy a unit. A poor man, he cannot afford the Rs. 25; he even tried to take a loan but failed. The Amil warned the Bohras not to give Yusuf Ali any cooking work at social and religious functions, and so the Bohras stopped engaging him; he fears grave consequences for himself and his family and dreads the boycott. In one telegram an Amil was told that the Syedna was coming to his city and that he should bring all the local Bohras to kiss the Syedna's feet.

By a circular, rates of donation were announced for building the tomb of the Da'i Syedna Jalal Shamsuddin at Ahmedabad. According to each family's financial standing, the rates per family were Rs. 5,152, Rs. 2,252,

and Rs. 252; in addition, a donation was to be collected from every man, woman, and child at Rs. 11, Rs. 9, and Rs. 5 per head respectively. For building the tomb of the late Da'i, Taher Saifuddin Sahib, donations were likewise collected; two photocopies of receipts, for Rs. 14,000 and Rs. 1,300, are also on record.

Qurban Husain of Udaipur states that the Taiyebiyah School is wholly under the Syedna's control. Each month the school office sends him Rs. 121, in reply to which he remits Rs. 12 and makes it appear to be his donation, whereas he is in fact paid only six rupees a month. Another teacher says that, because of such manoeuvres, his salary is delayed. One witness says that an annual donation is taken from the Bohras for the madrasa. With the reformist Udaipur jamaat's memorandum is a photocopy of a letter from the Syedna directing the Amil that the entire income of the jamaat is the absolute property of the Syedna.

The memorandum states that the donations (*chanda*), salaam, and offerings taken from each person are settled by bargaining, according to his means. Several witnesses said that donations are taken from them, according to their means, for charitable institutions such as hospitals, travellers' lodges, and madrasas; but they have no way of knowing how much of the money was actually spent for the purpose for which it was collected. Moreover, the welfare institutions built from community donations remain under the control of the priestly class, and reformist members and those who have been boycotted are not allowed to use them. Besides individual witnesses, the Welfare Society of Britain states in its memorandum that its members were refused accommodation in the community's guest houses almost everywhere in the world; the details are set out in the memorandum.

The memorandum of the Reformist Hind Association, Udaipur, states that reformist members are barred from the dargah at Galiakot; and that if anyone does enter, he is beaten and the dargah is ritually washed, as though his very presence had defiled it. The local administration wel-

comes non-Bohras and lets them perform the *ziyarat* conservative Bohras obtain the Amil's permission for it.

### **(7) Reservation in the Cemetery**

As to the reservation of a place in the cemetery for individuals or families, almost everyone said that the land is provided by the government or the local authorities. In smaller towns the practice of reserving a place prevails, since land is easily available there. Zainuddin Wali of Godhra produced two photographs of plots in the Godhra cemetery and stated that the priestly class sells burial plots at very high prices but issues no receipt. Several witnesses said that, in the Nariyalwadi cemetery of Bombay, plots are reserved and a price is charged according to the location and the person's means, ranging from a few hundred rupees up to Rs. 5,000; they added, however, that there is no permanent reservation of this kind. One respondent produced a photocopy, in Gujarati, of a registration note issued by the Hasab al-Hidaya Society of Bombay for the reservation of a place in the Nariyalwadi cemetery. On it are recorded the number, the date, the plot number, the number of the line of graves, the grave number, the permission number, the time of burial, and the name of the person buried, together with the signatures of the deceased's heirs or guardian.

### **(8) Reservation in Mosques**

In his affidavit Noman Bhai Contractor stated that, in the Bohra mosques, the practice has also begun of reserving a place of worship for women, for a fixed period, in return for a specified sum. In this connection he produced the original allotment card for the reservation of a place in a Bombay mosque, together with a receipt for the Rs. 100 collected for the reservation, and the original circular letter regarding the allotment. The circular, in Gujarati, states that the money will be used to repair the mosque, and that women who pay it will receive not only the facility but also religious merit (*sawab*). The receipt is from a Dawoodi Bohra mosque

trust in Bombay and records the allotment number and the location. Among the conditions on the card it is stated that the place may be used only by the woman named, or by one she permits; that it may not be sold for money; and that in every case the religious head will have the power to cancel the pass.

## **(9) Violation of Human Dignity**

A person can remain in the Bohra community only by forgetting his own personality and human dignity. In a report from London, Yusuf N. Patwa describes how, at a children's misaq ceremony, he was compelled to act in a degrading way [the exact circumstances, involving Professor Hatim Hamiduddin, are unclear in the manuscript], and how he had to pay seventeen pounds for the misaq. After that, the head of the Leicester jamaat ordered him to cut off relations with all his relatives in Kampala. In England, too, the conservatives use coercion: at Cambridge, Asghar Ali Akbar Ali was forced to cancel the invitations he had sent to reformist members for his daughter's wedding. Followers are even compelled to prostrate (*sajda*) before the Da'i — something no section of the Muslims could even conceive, since the Qur'an forbids it: prostration may be made to God alone, never to a human being. Many such incidents have been brought to the Commission's notice.

## **(10) Forcing Women to Give Up Employment**

Abid Tayyab Ali Rajab Ali writes from Mombasa that when the Syedna's brother, Yusuf Najmuddin, came to East Africa in 1977, he issued a firman that all the Bohra women of East Africa were to give up employment and wear the *rida*, and that Bohra men were to keep beards and wear Bohra dress. (The *rida* is the women's outer garment, worn with the *ghagri* or cap.)

Adam Ali A. Patwa sent, from Dar es Salaam, a photocopy of a letter from the Ministry of Home Affairs of the Government of Tanzania, the substance of which is reproduced here:

Ministry of Home Affairs  
United Republic of Tanzania

P.O. Box 9223

Dar es Salaam

18 December 1978

Ref. No.: HAS 24/19/89 [reference uncertain]

[Ndugu] Murtaza Ali A. Raja [reading uncertain]

Honorary Secretary

Dawoodi Bohra Jamaat Corporation

[Komota] Street

P.O. Box 3037

Dar es Salaam

Dear Mr. Raja,

### **(11) The Bohra Community**

1. Thank you for your letter of 31 October 1978 on the above subject, in which you drew our attention to the meeting held on 25 October 1978 under the chairmanship of Mr. J. M. [Mathiko — name uncertain]. Mr. Mathiko is also the Principal Secretary of the Ministry of Home Affairs and the Registrar of Societies under the Societies Ordinance, Cap. 337.

2. It appears that you did not properly grasp the subject and drew a wrong meaning from this meeting. Its purpose was to inform both parties — that is, the leaders of the Bohra community and the opposing group, as you call them — of the government's decision

regarding the affair of the Bohra community. We therefore set out the details of the meeting for you.

3. At the outset, the chairman briefly referred to the misunderstanding and bitterness that had arisen in the Bohra community, as a result of which the girls of the community had been forbidden to work in offices and, on one day in March 1978, the Bohras' shops had remained closed. Both these acts are contrary to the government's declared policy, at a time when able-bodied men and women are needed for work. The Prime Minister therefore forgives the past mistake while warning you for the future.

4. The Ministry of Home Affairs is responsible for enforcing the government's laws and regulations concerning all registered societies in this country, and it is its duty not to let any religious society violate the laws of the country on the basis of religion.

5. In any case, Mr. Mathiko stressed that if a society conducts its affairs accordingly, the government has no intention of interfering unnecessarily in its internal matters.

6. They further stated that the 1967 constitution, received by the Registrar of Societies on 23 December 1967, had been accepted, although a few members of the Bohra community had raised objections; in those circumstances the Registrar could have refused to accept it under Section 11(4) of the Societies Ordinance. (Rule No. 41: the Registrar of Societies may reject a request to change a society's constitution or any of its rules if there is reason to fear that it will be used for purposes likely to disturb the maintenance of peaceful order and good government.)

7. A few Bohras have complained that the amendment made in the 1955 constitution is a disputed matter within the community and a cause of disturbance to peace, order, and good government, and that the 1967 constitution therefore needs to be amended. But the

chairman made it perfectly clear that any change in the constitution must be made by the Bohra community itself and in accordance with the law; the government will make no change of any kind for this community.

8. The chairman also stressed that the leaders of the Bohra community should show wisdom and forgive even the so-called opposing group, and resolve their grievances about the constitution and its amendment.

9. In conclusion, the following were agreed upon at the meeting:

(1) The 1967 constitution should be studied and, if necessary, amended. It was also agreed that all the parties concerned, including the "opposing group," would take part, and that the Ministry of Home Affairs, if invited, is ready to help.

(2) The government guarantees everyone the right to worship, but on condition that this freedom is not used to harass others, for that disturbs peace, order, and good government.

(3) The differences and disputes within the Bohra community should be settled by the Bohras themselves, provided they do not disturb peace, the law, order, or good government.

(4) It should be clearly understood that the government will deal, under the laws of this country, with any attempt to violate those laws on any ground whatsoever.

10. I hope that the government's position on the dispute of the Bohra community is made clear by these points.

Yours faithfully,  
M. Mohamed  
for Principal Secretary

Adamji Zariwala sent, from Dar es Salaam, a photocopy of an open letter he had addressed to the Dawoodi Bohra Jamaat there, in which he states



that, by obeying the directions of the priestly class, the standing of the Bohra community in the eyes of the government has been destroyed, and that the government is examining the situation closely. Other friendly communities, too, are displeased with this. The community's unity has become a tale of the past, and bitterness has spread among its members. Various cuttings from the local newspapers were also produced, sharply criticizing the priestly class for the atrocities committed against the members of the reformist group.

Fida Husain Adam Ali of Nairobi reports that Dr. [Wallai A. Kamni — name uncertain], when he went to the Nairobi cemetery to attend the funeral of one of his patients, was thrown out because he was not wearing a *sherwani*. A copy has also been produced of an appeal that Dr. [Kamni] issued to all the members of the Dawoodi Bohra Jamaat, complaining of his humiliation and of being expelled from the community. A witness has further stated that, in Kenya, men are not allowed into the mosque or cemetery without a *sherwani* and *ghagri*, and that all Bohras holding the permit (*chitthi*) are compelled to keep beards; women who, on reaching the age of eighteen, do not wear the *burqa* are barred from the mosque and boycotted. It is stated that at social and religious functions Bohra dress is insisted upon, and that those who do not wear it are often humiliated; to meet the Syedna Sahib, one must wear a *sherwani* and a *ghagri* or cap.

When all the testimony had been reviewed and this report was in its final stages, the Member-Secretary of the Commission received a statement from a reformist leader of Gujarat, Rushdi Tayyabi Zamindar, who said that the Syedna Sahib had recently issued a *fatwa* that all the men of the community should wear caps and keep beards, and that women should not go out without the *burqa* — though no copy of the *fatwa* was sent with the complaint. In these circumstances we can come to no decision, except to say that if the report of women being forced to wear the *burqa* is correct, and if it is enforced, then such a measure would be extremely undesirable from the standpoint of equality between the two sexes, and a most grave violation of a precious human right.

## CHAPTER IX

# Interference with the Right to Vote

In this chapter we shall examine the evidence relating to interference with the right to vote. Together with the memorandum of the Central Board of the Dawoodi Bohra Community, Bombay, photocopies were also produced of two *firmans* issued on behalf of the Syedna — one dated 29 Sha'ban 1381 H (corresponding to 1962 CE) and the other 28 Shawwal 1386 H (corresponding to 1966 CE). In these the *Amils* were directed to instruct the community to vote for the Congress in the general elections. Both documents are printed in the Urdu script, but the language used in them is the Gujarati that the Bohras speak.

Shri Numan Luqmanji Contractor has filed an affidavit stating that *firmans* used to be issued in the names of the Amils resident in various cities of India, directing them to carry out whatever the chief mullahs bade them and to make no demur. He produced a telegram that was received by the Amil of Bombay on 25 April 1952 [date uncertain], the text of which is as follows:

“Direct all the believer-voters to vote in favour of the Congress candidate, and inform the local president of the Congress.”

This was produced by Abid Ali, Secretary of the Udaipur Bohra Youth Association. In his memorandum, reference is made to a letter dated 2 October 1951 written by Shri Mohanlal Sukhadia, who was then a minister of Rajasthan and later became its Chief Minister. The letter was addressed to the Syedna’s Amil at Udaipur and contained, among other things, the following words:

“I am glad that the Muslims of the whole country are these days supporting the Congress, and that the Bohra community in particular strives wholeheartedly to strengthen the Congress at every opportunity. I went to Bombay only recently, where I had the honour of meeting Mullaji Sahib at Saifee Mahal. In the course of our conversation he said that it is our prayer that God may prosper the work of the newly constituted managing council.”

(It was explained that Yusuf Najmuddin is a brother of the present Syedna.) Photocopies of two *firman*s dated 25 April 1966, to which reference had been made, were also produced. One of these *firman*s contains the following passages:

“The basic and essential object of our faith is the Imamate. During the period of the Imam’s concealment, this authority rests in his deputy — that is, the *Da’i al-Mutlaq* — whose central position preserves the brotherhood of the faithful, and who is the fountainhead of authority in all matters touching belief, property, institutions, and followers.”

× × ×

“Thereafter, by our firman of 1 September 1966, we directed that the various Dawoodi Bohra *Jamaat* corporations should exercise such powers and offices only so far as is necessary for the day-to-day

administration of the affairs of the Jamaat. We also reviewed the entire institutional system of the East African community and, by our firman of 16 Muharram al-Haram 1386 H, established the central authority over the Dawoodi Bohra Jamaat of East Africa; every member of that community shall assist the Congress candidates at the elections.”

The letter continued:

“Today I have felt the need to write to you because these are the days of Muharram, during which you give directions to your community. May I request that, in your sermons, you impress upon the members of your community the need to vote for the Congress candidates, so that they do not fall into the clutches of any other party. You will be aware that, from the [Ittihad] constituency, Brother Isma’ilji is contesting the Rajasthan Assembly election on a Congress ticket. If there is any service I can render, do gladly tell me.”

There is no direct evidence of the assurance said to have been given to Shri Sukhadia by Mullaji; but had that conversation not in fact taken place, Shri Sukhadia would probably not have referred to it. In any event, this letter is very old and belongs to the time of the former Syedna Sahib, so we draw no larger conclusion from it, and it is better not to treat it as important evidence. It does, however, throw light on the dealings that take place, during elections, between the supreme head, the politicians, and the Amils.

In the previous chapter we referred to the statement of Abid Husain Ali, Secretary of the Udaipur Bohra Youth Association. He spoke of the Udaipur municipal elections of 1962. He appeared before the Commission and stated that four persons who wished to contest those elections had sought the permission of the Syedna Sahib. In proof of this he produced a photocopy of the telegram which the Syedna Sahib sent in the name of Amil Abdullah Bhai Sahib, and which was afterwards forwarded to

the four applicants. A copy of the Amil's public announcement was also produced. The text of the telegram is as follows:

“Bhai Sahib, Bohra [Dhelim], Udaipur. You have sought His Highness's permission on behalf of —

1. Tahir Ali Ghulam Ali, Shaikh [Larji];
2. Abbas Sadiq Ali [Khara-aur-wala];
3. Rajab Ali Allah[—], the soap-merchant;
4. Ahmad Ali Kaloji, the gun-merchant —

to take part in the municipal elections. His Highness graciously and willingly grants permission for this.”

The announcement that the Amil made after receiving this telegram reads, in translation, as follows:

### **Important Notice**

“All the faithful, brothers and sisters, are informed that rumours are current these days to the effect that His Highness's permission was not obtained. This is false. A copy of the telegram is therefore reproduced here; anyone who wishes to see the original may come to the *Dar al-Imarat* and see it.”

Servant of the Syedna — [T. A. U. Sha]  
Abd Ali, son of Muhammad

The witness stated that the local people regarded this step as tantamount to forcing a candidate upon the local *Jamaat*. The *Jamaat* therefore decided to put up other candidates against those named above. The local Amil canvassed for the candidates who had obtained Mullaji Sahib's consent. Mullaji's nominees were defeated, and the candidates of the *Jamaat* committee won by a majority.

The witness also produced a letter, dated 2 Ramadan 139[0] H, written from the Syedna's Bombay office in the name of Shaikh Muhammad

Mulla Qurban Husain, in which Shaikh Ya'qub Ali was sharply criticized for having helped the candidates who stood against Mullaji's nominees. Shaikh Ya'qub Ali also appeared before us and described how he was suspected of canvassing for the opposing candidates, and in what ways he was harassed; but the matters relating to him will be dealt with later.

In answer to the questionnaire, Shri [Roshan] Ali [Mithdiwala] of Bombay stated that, at the recent elections to the Maharashtra Legislative Assembly, the community — through students — canvassed from house to house with the claim that the “hand” (*panja*) which the Congress (I) had adopted as its symbol is the hand of the *Panjtan*, so that many people would vote for that election symbol. By the *Panjtan* are meant the five holy personages — the Holy Prophet Muhammad Mustafa (peace be upon him), Ali, Fatima, Hasan, and Husain. It is plain that this appeal was made in the name of the spiritual leaders.

Shri Muhammad Ali Ahmad [Kachhwala] of Bombay said in his reply that, at the Assembly elections, Mullaji Sahib's men remained stationed near the polling booths.

A respondent, Shabbir Ali [—] Musa, stated that municipal elections are conducted by secret ballot, so that in them no great harm can be done to the individual's right to vote for the candidate of his choice. The harmful thing, however, is the direction that no one is to work for a candidate who has not obtained the Syedna Sahib's permission to contest, and that such a candidate and his supporters are to be socially boycotted.

In this light the statement of Numan Bhai Contractor appears well founded — namely, that directions used to be issued from the Syedna's office to the Amils to canvass, in political elections, for the candidates of a particular party. All the respondents stated in their replies that the Syedna often extends his patronage to candidates of other communities, and that he desires that no member of his own community should oppose such a candidate unless the Syedna Sahib himself permits it.

This evidence makes it quite clear that, through his Amils, the Syedna brings the weight of his religious and spiritual position to bear upon the members of his community in the matter of whether they stand, or do not stand, as candidates in elections; and he uses it likewise in the matter of voting, or not voting, for a particular candidate.

When the Syedna Sahib takes the *misqaq*<sup>2</sup> from every member of his community — under which they are bound to obey the Syedna's commands in all matters, whether religious or non-religious; when the misaq further declares that anyone who breaks his oath by disobeying Mullaji Sahib will not be forgiven even by God; and when the Syedna Sahib exercises the power of excommunication against the breaking of the misaq — then it becomes clear that his command, or even a mere direction, amounts to interference with the Bohras' free right to vote.

The people of India have, through their Constitution, accepted secularism as a fundamental aim of their national life. This principle requires not only that the State should treat every religion alike, but also that religion should not be allowed to enter into politics, and further that no religious influence should be brought to bear upon the people in the choice of their representatives. To give effect to this principle in the field of elections, Parliament has made suitable provisions in the laws governing popular representation. Section 123 of the Act of 1951 defines the corrupt practices in the electoral sphere:

**Section 123 — Corrupt practices.** In connection with this law, the following acts are deemed to be corrupt practices:

- (1) [...]
- (2) Undue influence — that is to say, any direct or indirect interference, or attempt at interference, on the part of a candidate or his agent, or of any other person with the candidate's consent, with the free exercise of any electoral right. Provided that,

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<sup>2</sup>See, in Chapter Four, paragraphs 3, 4, 13, and 15 of the Misqaq.

without prejudice to the provisions of this clause, any such person who —

- (a) causes, or threatens to cause, any kind of injury to a candidate or voter, or to any person in whom a candidate or voter is interested — whether by way of social injury or by way of excommunication; or
- (b) induces, or attempts to induce, a candidate or voter to believe that he, or any person in whom he is interested, will become an object of divine displeasure —

shall be deemed, within the meaning of this clause, to interfere with the free exercise of the electoral right of such candidate or voter.

- (c) A declaration of public policy, or a promise of public action, or the mere exercise of a legal right without intent to interfere with an electoral right, shall not be deemed to be interference within the meaning of this clause.

The *misqa*, on which the chief Mulla strongly insists and which he enforces with severity, lies at the root of this. There is a danger for all those Bohra candidates, and for those who canvass for them, who take part in an election without obtaining the chief Mulla's permission or approval: such persons are excommunicated and are held to be objects of divine wrath. On this view, the chief Mulla's practice of granting or withholding approval of candidature in general or local elections falls within Section 123(1) and (2), quoted above; and thus, where the work is done with his consent, it is to be regarded under the electoral laws as tantamount to a corrupt practice by the candidate or his agent.

The use of undue influence in an election is also an offence under Section 171C of the Indian Penal Code, punishable under Section 171F with imprisonment for a term which may extend to one year. Both the Representation of the People Act and the Indian Penal Code give one and the same definition of undue influence; but under the Penal Code the



consent of the candidate or his agent is not a necessary ingredient of the offence.

This is truly a serious matter. In this country no religious or spiritual head has the right to use his position to help a candidate, to destroy a candidate's chances, or to interfere with any person's right to vote for the candidate of his choice. In the light of all that has been written earlier in this chapter, this conclusion presses all the more heavily upon the chief Mulla of the Dawoodi Bohras. The fear of divine punishment and of spiritual prohibition is more powerful, and therefore more dangerous, than the fear of physical injury. The secret ballot may remedy the latter, but it has no effect upon the former. So far as candidates and canvassers are concerned, the shield of the secret ballot is not available to them: either they obey the chief Mulla's command, or else they must be prepared to be excommunicated. It is difficult even to conceive of a graver violation of the principle of secularism than this.

## CHAPTER X

# The Autocratic Dispensation

Many Dawoodi Bohras live in countries other than India, and almost all of them have gone there from Gujarat. In these countries the local *jamaats* have constitutions of their own, democratic in character. The previous Syedna Sahib had attempted to concentrate all powers in India, but the jamaats abroad remained, to a large extent, self-governing. The present Syedna set himself to complete the task of destroying the democratic character of the jamaats in the countries of East Africa.

The story of how he did this was set out, with documentary proof, by the Dawoodi Bohra Jamaat Corporation, Birmingham, and the Dawoodi Bohra [Welfare] Society Limited, Britain, in their memorandum dated 19 July 1968 [day and month uncertain in the source], which they also submitted to the Indian High Commissioner. In brief, they state that in Britain they represent the progressive section of the Dawoodi Bohra community. Most of their members are people who migrated from East Africa and India, the majority of them from Uganda. They state that their differences with the priestly class, and the oppression of that group, have continued since 1965.

Until that time the various jamaats of East Africa had functioned under a constitution that had been settled after negotiations with the previous *Da'i*. With the help of this constitution the jamaat had amassed great wealth — wealth that was not used for the welfare of the needy members of the community. Such funds were meant to go to beneficial programmes: education, free and subsidized housing, the support of widows and orphans, interest-free loans to enable people to start in trade, medical aid, guest-houses, religious instruction, and the like, provided as the need arose.

### (1) The Firman

In 1965 the present Syedna, Mohammed Burhanuddin, attempted to introduce a new constitution. The object of this new constitution was that he should obtain absolute control over the various *awqaf* boards, the finances, and the management of the properties of the East African jamaats — assets equivalent to several million pounds. The attempt met with a measure of success in Tanzania, but in Kenya and Uganda it was strongly opposed. He thereupon issued a *firman* imposing a new constitution; a copy of the firman was annexed to the memorandum. The firman was issued on 7 Muharram al-Haram 1385 H, corresponding to 25 April 1965, and reads as follows.

### Firman

block( inset: (left: 0.7em, top: 0.2em, bottom: 0.2em), stroke: (left: 1pt + luma(170)), ) [ To the believers (*mu'minin*) of East Africa: this firman of ours is being issued on the basis of our previous two firmans, which were issued on 16 Muharram al-Haram 1385 H [the source digit appears to read 1285]. We now command that:

- (1) The constitution of the jamaats of East Africa shall be cancelled, and action upon it suspended; we abrogate it, and suspend action upon it, from 30 April 1965.

- (2) The councils of administration and the boards of trustees (*mutawallis*) formed under the old constitution shall come to an end from 21 Muharram al-Haram 1385 H, corresponding to 30 April 1965.
- (3) For all the jamaats of East Africa, the basic constitution declared and proclaimed by us shall come into operation, and shall be deemed effective from 21 Muharram al-Haram 1385 H, corresponding to 30 April 1965.
- (4) Exercising the powers of the rank of *Da'i al-Mutlaq*, and further by virtue of this firman — issued on 16 Muharram al-Haram 1385 H — by both these firmans and the new constitution, which we have bestowed for the reform of the various jamaats of the believing followers of East Africa: we, from 1 Muharram al-Haram 1385 H, appoint Bhai Yusuf Najmuddin and the Sahibzada Syed Jowher Bhai Izzuddin [name uncertain] as our deputies (*na'ib*) for the establishment in East Africa, and grant to them all or several of the distinct powers and offices that we ourselves hold; and under the new constitution we grant them the authority to appoint, and to make use of, the honorary president of the council of administration, its office-bearers, and members holding all or several distinct powers and offices.
- (5) Bhai Yusuf Najmuddin is our special representative, and to him is given this authority and direction: that he may appoint any of the former office-bearers and members of the councils of administration, and any of the former members of the Dawoodi Bohra Jamaat corporations of East Africa; and that the office-bearers of the various jamaats shall, on our behalf, transmit copies of our firmans and of the constitution.
- (6) The former office-bearers, members or trustees of the councils of administration and the boards of trustees, if appointed after this firman, shall be deemed newly appointed; and in the conduct of

their work they shall be bound to act upon the directions and orders of our special representative.

We pray for the good of all the believers.

We further direct that the central council of the Dawoodi Bohra jamaat of East Africa shall, on 20 Muharram al-Haram 1385 H, be given this firman and the new constitution, which we have bestowed for the administration of the various jamaats of the believing followers of East Africa. As is stated in this separate firman, our special representative, Bhai Yusuf Najmuddin, is granted the authority. The present constitution of all the jamaats of East Africa shall stand abrogated, and as regards the future code of conduct of the jamaats, directions shall be given in this separate firman. ]

It has been pointed out that the new constitution of the East African jamaat is wholly undemocratic, and that under it very extensive powers are conferred upon the Da'i. The memorandum quotes the following clauses of the new constitution.

block( inset: (left: 0.7em, top: 0.2em, bottom: 0.2em), stroke: (left: 1pt + luma(170)), )[ In a sub-clause of clause 3, which deals with the aims and objects of the jamaat, it is laid down that no donation of any kind, and no endowed (*waqf*) property, shall be accepted from non-Dawoodi-Bohra individuals, or from any corporation or institution run under the management of non-Dawoodi-Bohra persons, without obtaining the permission of His Holiness the Da'i al-Mutlaq.

In a further sub-clause of clause 3 the aims and objects are stated thus: to administer and maintain the property and institutions endowed for, or acquired for, the sphere and use of the Dawoodi Bohra community, upon the basis of the principles laid down by His Holiness the Da'i al-Mutlaq.

A clause provides that His Holiness the Da'i al-Mutlaq may, for whatever period and on whatever conditions he thinks fit, at his own pleasure nominate any person as a member of the corporation.

A sub-clause of clause 10 [number uncertain] provides that any person shall cease to be a member of the corporation if His Holiness the Da'i al-Mutlaq, at his absolute will and pleasure, removes him from membership of the corporation.

A sub-clause of clause 12 [number uncertain] provides that any person shall cease, from that time, to be a member of the council of administration if His Holiness the Da'i al-Mutlaq, at his own will and pleasure, removes him from membership of the council.

Clause 26 [number uncertain] provides for the special representative of His Holiness: His Holiness the Da'i al-Mutlaq has full authority to appoint any person, on whatever conditions and for whatever period he thinks fit, at his own pleasure, to represent him in any corporation. At whatever meetings, functions and celebrations of the corporation, the council of administration and the sub-committees, the representative or special representatives of His Holiness shall be present, they shall have precedence over all others present, shall exercise the powers conferred by His Holiness the Da'i al-Mutlaq, and shall perform the office.

A sub-clause of clause 25 provides: (a) any person shall cease to be a member of the board of trustees from the time when His Holiness the Da'i al-Mutlaq, at his own will and pleasure, removes him from membership of the board.

The clause relating to amendment of the constitution provides: His Holiness the Da'i al-Mutlaq may, by virtue of his rank and at his own will and pleasure, abrogate or amend the existing clauses, or suspend, abrogate and amend them.

A clause provides: the corporation, the council of administration, the board of trustees, and the committees and sub-committees shall, in all matters relating to their office, performance and powers, act upon the directions and counsel of His Holiness the Da'i al-Mutlaq.

A further clause [number uncertain] is as follows: (a) if, in the opinion of His Holiness the Da'i al-Mutlaq, any decision, resolution or action

of the corporation, or of the council of administration, or of the board of trustees, or of any committee or sub-committee, is contrary to the objects of the corporation, or contrary to the interests of the Dawoodi Bohra community, then His Holiness the Da'i al-Mutlaq — by virtue of his absolute capacity and the powers of that rank — shall have, and shall retain, the authority to cancel or abrogate such decision, resolution or action; and in this matter the decision of the Da'i al-Mutlaq shall be final and conclusive.

The clause relating to winding-up of institutions provides: His Holiness the Da'i al-Mutlaq may, at his own will and pleasure, close down or wind up the corporation; and if the corporation is closed or wound up, then after its debts are paid and its liabilities discharged, any property remaining shall not be distributed among the members of the corporation, but shall be transferred to some other corporation having similar charitable objects — it being forbidden to distribute the property, institutions and income among the corporation's own members. In appointing such institutions or corporations the Da'i al-Mutlaq shall himself, at the time of winding-up, make the arrangement; and if such an arrangement cannot be made, then that property shall be applied to some charitable object.

In the clause defining “Dawoodi Bohra,” “the Dawoodi Bohra community” and “the community,” the following meaning is given, and only those persons shall be included who are Shia Isma'ili Tayyibi Dawoodi Bohra Muslims, who believe in giving the *Misaq* (oath of allegiance) to the Da'i al-Mutlaq present in the age and in obeying him, and who acknowledge His Holiness Syedna Mohammed Burhanuddin Sahib — who, in uninterrupted succession from his predecessors, is the representative of the hidden Imam (*Imam-e-Ghaib*) upon the face of the earth, and the 52nd Da'i al-Mutlaq — and who acknowledge themselves to be his followers. But those Muslims of the Shia Isma'ili Tayyibi Dawoodi Bohra community who have not yet attained puberty shall be regarded as Dawoodi Bohras until such time as, on reaching the age of puberty,

they give the Misaq in accordance with the principles of the *shariah* and conduct themselves in accordance with the definition of a Dawoodi Bohra stated here. ]

When the application was made to register this constitution, the Minister of [Mineral and] Water Resources of Uganda, in his letter dated 1 July 1968 addressed to the Secretary of the Dawoodi Bohra Jamaat Corporation, said the following.

block( inset: (left: 0.7em, top: 0.2em, bottom: 0.2em), stroke: (left: 1pt + luma(170)), )[ I have received your applications of 29 June 1968 and 1 July 1968, with which is enclosed the affidavit of the majority of your community.

[Paragraph 3.] My view is that every community should have authority over its own affairs, but in a manner that accords with the wishes of the majority of its members. From my inquiries it appears that the constitution registered on 30 June 1968 does not have the wishes, the approval, or the acceptance of the majority of your community. I have reached a final and conclusive conclusion on the matter, and accordingly I today issue my order cancelling your decision of 30 June 1968. In 1928 your community had a constitution registered, and it is that same one which is in force. You may now register the new constitution, on condition that two-thirds of the members of your community agree to it and give their consent and approval. ]

When the Bohras refused to accept the new constitution, the Syedna, exercising his powers, started a boycott against them, so as to compel their obedience. The Da'i al-Mutlaq issued notices in the name of the president, Mr Ghulam Abbas Raja Bhai, and of the local priest (*peshwa*), Mr Ibrahim Sheikh Mohammed Ali. Photocopies of these notices have been placed before us. Both were issued on 29 July 1968. We reproduce the entire text of one of them.

block( inset: (left: 0.7em, top: 0.2em, bottom: 0.2em), stroke: (left: 1pt + luma(170)), )[ Dated 29 July 1968



Mr Ibrahim Sheikh Mohammed Ali  
Post Office Box 32[?]14[?] – Kampala

Respected Sir,

In accordance with the order of the 52nd Da'i al-Mutlaq, His Holiness Dr Syedna Mohammed Burhanuddin, I write to you as follows.

- (a) The Dawoodi Bohras are a sect of Islam. Upon every follower of the Dawoodi Bohra community, if he wishes to remain within it, lies the religious obligation (*fariza*) of holding certain beliefs, of declaring them, and of remaining firm upon them. This is a basic and essential condition, which under no circumstances may be abandoned.
- (b) The belief of the Dawoodi Bohras is that God is One; that Muhammad is the Messenger of God and His Prophet; that Maulana Ali was the legatee (*wasi*) and successor of the Prophet (peace be upon him); that from them a chain of the Imamate began, each Imam nominating his deputy (*na'ib*) as his successor; that Imam Tayyib withdrew into concealment of his own will; that even today there is present upon the face of the earth an Imam descended in direct line from the Holy Prophet (peace be upon him); and that during the concealment of the Imam, the Da'i al-Mutlaq spreads the mission (*da'wat*) of the Imam.
- (c) The Dawoodi Bohras also hold this belief: that the Imams, in their capacity as the highest religious leaders, teach the methods of worship; that they interpret the Holy Qur'an and the articles of faith; that they alone are authorized to give commands and guidance concerning the religion and the affairs of the community; and that the authority to guide, to confer authority, and to give permission for the performance of all the religious customs and observances of the Dawoodi Bohra community belongs to the Imams alone. Furthermore, the management, organization and regulation of all

the property named in the name of God and used for the welfare of the followers belongs to the Imams alone.

- (d) The Dawoodi Bohras also hold this belief: that the Da'i al-Mutlaq, in his capacity as the representative and successor of the hidden Imam upon the face of the earth, holds and exercises, in the Imam's name, all the authority and power of the Imam. The position of the Da'i al-Mutlaq is an essential part of the Dawoodi Bohra community. To have faith in his spiritual mission and his administrative competence is a bond that keeps the community united; he maintains discipline and keeps the community ordered; he is the guarantor of the purity of fellowship and the safeguarding of brotherhood. He alone is authorized to command in all matters relating to the religion and the community, and to perform the religious customs and observances; and the management of all the property is carried on under his supervision, with his permission and approval.

Upon every member of the Dawoodi Bohra community, by reason of this belief, lies the religious obligation of giving the Misaq to the Da'i al-Mutlaq present in the age and, in a spirit of obedience, of fulfilling all the conditions of the Misaq. By reason of the articles of faith of the Dawoodi Bohra community and of the Misaq given, upon every follower lies the obligation of carrying out, and acting upon, the firman of His Holiness the Da'i al-Mutlaq. To deviate from the firman is equivalent to breaking the Misaq, and on that account His Holiness the Da'i al-Mutlaq acquires this authority: that he may, at his own will, deprive the breaker of the Misaq of any one or of all the rights and privileges of the Dawoodi Bohra community.

- (b) [*so lettered in the source*] Exercising the powers, rights, distinctions and office of the rank of Da'i al-Mutlaq, His Holiness Dr Syedna Mohammed Burhanuddin Sahib, in his capacity as the 52nd Da'i al-Mutlaq, issued two firmans, on 25 April and 26 April 1965; both became operative from 30 April 1965. These firmans bind all the

Dawoodi Bohra followers resident in East Africa to His Holiness the Da'i al-Mutlaq.

- (c) You have plainly refused to accept these firmans of the 52nd Da'i al-Mutlaq, His Holiness, and to act upon them. This conduct is equivalent to breaking the Misaq, and is contrary to, and a violation of, the powers of His Holiness the Da'i al-Mutlaq. Moreover, with the intent of defaming the rank of the Da'i al-Mutlaq and of trampling upon his powers — and/or with malicious intent — you have persisted in propagating your own ideas. Your activities and conduct are harmful to the powers and rank of His Holiness the Da'i al-Mutlaq, and damaging to the interests of the Dawoodi Bohra community.
- (d) From 29 April 1965 to the present date you have, indiscriminately and without authority, and without the knowledge, authority or permission of His Holiness the Da'i al-Mutlaq, performed the ceremonies of the community and of the religion. You have administered the Misaq, led the prayers (*namaz*), led the funeral prayers, and performed the shrouding and burial of the dead, as well as other ceremonies of the community and the religion — the authority to perform which belongs only to His Holiness the Da'i al-Mutlaq or to the representative appointed by him. Your acts are equivalent to a direct challenge to, and a rejection and trampling of, the powers, position and rank of His Holiness the Da'i al-Mutlaq, and to the starting and promoting of a movement of disruption, destruction and disorder against the religious institution of the hidden Imam upon the face of the earth.
- (e) You have directly fostered customs and observances with such persons and institutions concerning whom you know that His Holiness the Da'i al-Mutlaq has imposed *bara'at* (excommunication) upon them, and with whom His Holiness the Da'i al-Mutlaq, and his loyal followers, have severed relations. Furthermore, you

have directly fostered observances with such individuals and institutions whose objects, policies and activities are harmful to the *Da'wat-e-Hadiya* and to the Dawoodi Bohra community.

- (f) Through your own conduct, activities and acts you have caused the abandonment of the creed. This is contrary to the basic articles of faith and the principles of the Fatimi religion, and a violation of the principles of the Dawoodi Bohra community; it is a violation of the [authorized] methods, customs and observances of the religion or the creed. You have repeatedly acted in violation of the Misaq, as appears in the light of the facts set out in paragraphs 3 to 5 above.
- (g) In the light of the facts set out in paragraphs 3 to 5 above, you have repeatedly committed grave offences. As a consequence of any one of these offences, from the religious point of view, and in the opinion of His Holiness the Da'i al-Mutlaq, it is necessary that you be expelled from the Dawoodi Bohra community.
- (h) Notwithstanding the previous warning and notice given to you by His Holiness the Da'i al-Mutlaq, or by those on his behalf, you did not reform yourself, nor did you tender any apology for your objectionable conduct, activities and statements; rather, on the contrary, with malicious intent, you continued this course of objectionable speech and conduct. His Holiness the 52nd Da'i al-Mutlaq has therefore directed me to inform you, by means of this writing, once again of His Holiness's warning concerning your aforesaid speech, conduct and activities. You are warned once more, and are called upon to reform yourself and to express regret for the aforesaid conduct, speech and acts.
- (i) His Holiness the 52nd Da'i al-Mutlaq has further directed me to give you notice that, if you do not change your conduct, and do not, within two months from the date of this writing, express regret, then His Holiness the 52nd Da'i al-Mutlaq will publicly censure you and will sever his relations with you; and the followers and

members of the jamaat, in the assembly of the jamaat, shall as a matter of rule be required to sever their relations with you; and you shall be expelled from the membership of the Dawoodi Bohra community.

And this notice I give to you by means of this writing.

Your sincere servant,

Sd/-

Secretary ]

A notice of the same kind was also sent in the name of Ghulam Abbas Raja Bhai, and both notices bore the signature of the Syedna's secretary. From this it appears plainly that the Dawoodi Bohras living in the various regions of East Africa — Uganda, Kenya and Tanzania — by electing their own administrative councils, had been managing their own affairs under a democratic constitution. As we have seen earlier, the predecessor of the present Syedna, in India, brought the self-government of the local jamaats to an end by abolishing all their powers, and took those powers into his own hands. The present Syedna, using his religious position, carried through these proceedings in the countries of East Africa.

The clauses of the new constitution are instructive. The constitution gives to the Da'i the authority to expel any member from the jamaat, and to annul any decision of the council; he may also suspend the members of the administrative committee; and he may alter or abrogate any decision the jamaat has taken. Not only this: at his own will he may amend the constitution, and may also abrogate it. The conduct of the Syedna comes into clear light when one sees that the lives of all the people of the community have passed into the grip of a single person — who is the Da'i al-Mutlaq of this community.

It is therefore no surprise that the Government of Uganda, being democratic, refused to attest a constitution of this kind. Nor is it any surprise that the people of the community — who for a long time had been managing their own affairs, and who were unsettled by this matter

— expressed their feelings, and gave their views in favour of having the constitution reopened and reformed. But, by using the weapon of bara'at and of anathema (*la'nat*) against those who supported democracy within the community, they were cowed into silence. The reasons given for their expulsion are religious reasons; yet it appears that the Syedna makes no distinction between religious and non-religious matters. For, on his view, a violation of any firman of any kind whatever is a violation against him, and a breaking of the Misaq, which renders the violator liable to be cast out of the community. This confirms the explanation of the Misaq that we gave in the chapter dealing with its conditions.

## CHAPTER XI

# Attempts at Legislation

In this chapter we shall examine the steps taken under the law by the reformists, the legislative measures adopted by the Government of Bombay to prevent the expulsion of any person from any community, and the reasons why those measures came to nothing.

In one case that went up to the Privy Council, the question was raised whether the *Da'i al-Mutlaq* has the authority to expel a person from the community. The Privy Council held that he does have this authority, but it also held that, as a rule, a member may be expelled from his community only after he has been given a sufficient opportunity to reform and after the grounds of excommunication have been explained to him. The Privy Council further observed that even if the exclusion of a person is not a just act, he may still be excluded from those places of worship that are under the trusteeship of the head of the sect. As for the question of determining the offence that warrants excommunication, the court decided that it would be better to leave this to the religious sentiment of the community. (See *Hasan Ali and others v. Mansoor Ali and others*, AIR 1928 PC 66.)

This decision thus gives the Mullaji the right to expel any person from the community in the manner described above. When the Government of Bombay learned that, in some communities, the practice of excommuni-

cating members was so often resorted to that the members were deprived of their lawful rights and powers, the Government considered it necessary — in order to meet the demands of changing times — to make a law to put an end to this custom. Accordingly, in the year 1948 it introduced in the Bombay Legislative Assembly a bill under the title “A Bill to abolish the practice of excommunication from the community in the Province of Bombay.”

This was L.A. Bill No. 94 [bill number uncertain] of 1948. There was a fairly vigorous debate on the bill in the Assembly. Shri Morarji Desai, the present Prime Minister of India — who was at that time the Home Minister of the Province of Bombay — was specially responsible for introducing it. Speaking during the debate, he referred to the difficulties faced by the Dawoodi Bohras as a result of the Mullaji’s use of his power to expel members from the community in an unjust and one-sided manner. A few extracts from his speech are given below.<sup>3</sup>

Referring to that part of the *Misaq* in which it is stated that the wife of one who breaks his oath is automatically divorced, and that even God will not forgive one who breaks his pledge, Shri Morarji Desai said in his speech:

“These are some such things as, in my view, run contrary to the law of the land. If there were no injustice in these matters, I would have no complaint; but when, in giving effect to these things, there is excess, is this not a violation of the laws of the State? Would it not mean that there is a State within the State? The Mullaji himself has said that he is the temporal and spiritual head of the Bohras; then, sir, what is the Government?”

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<sup>3</sup>See the proceedings: Bombay Legislative Assembly, Vol. 14, Part II, March–April 1949.



“The Mullaji has said that he is a temporal head. He may be a spiritual head. The Government does not wish to be the spiritual head of any person. What the Government wants is that no person should become the temporal head or ruler of any other person.”

*(Replying to an interjection by Mr. A. A. Khan:)* “Yes. Otherwise there can be no government at all. Within one government there cannot be many governments; if there is to be proper government, there must be only one government.”

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“In such a situation, what should be done? Are we to allow these punishments to continue — punishments that exceed those permitted by law? If the Mullaji Sahib, or the Maharaja of [place illegible], or the head of any other community, says that he does not wish to associate himself with one who breaks the rules of the community, then the Government will not quarrel with him. But if he says that one who violates the rules of the community will not be allowed to draw water from the community’s well, or will be deprived even of the charitable funds the community has accumulated over centuries; or — by God — that, despite his believing in Islam and the Holy Qur’an, he will not be allowed to pray in the mosque, or that when he dies he will not be allowed burial in the cemetery — then such things can never be permitted.

In the Holy Qur’an, too, I came upon a verse on this subject, and I shall try to cite it as authority. It may be that I cannot expound it as the Mullaji Sahib or other Muslims would; but as an ordinary man who respects all religions equally, I offer my interpretation of it, which is this: ‘And who is more unjust than one who prevents people from entering the mosques of God, lest His name be remembered in them, and who strives to destroy those mosques?’“

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“Through years of false belief, a man has somehow acquired divine powers with which to punish people. In my view it is not proper for any government to tolerate this. That is why this Government has come forward with a bill of this kind. Evils of the same sort are found in other communities too, but not to so great an extent. I have found no other community in which, the moment a person is excommunicated, he is at once deprived even of his wife.”

**Mr. B. G. Kher**

“Sir, I do not wish to interrupt the Hon’ble Home Minister’s speech — I would only add that to lay claim to a man’s wife or daughter is the worst of things. In one case a claim was, in practice, laid in the name of religion to a man’s wife, his daughter, and his daughter-in-law.”

**Mr. Morarji Desai**

“I do not say that worse incidents than this have not occurred. There was one well-known case in which a most outrageous claim was made. No government can tolerate things of this worst kind — a government in which we all hold that the life and freedom of even the weakest of the weak must be protected. The bill was therefore introduced with this precaution, that public opinion was invited on it for some months. I do not see how anyone can object to it.”

Shri Babubhai Patel, the present Chief Minister of the State of Gujarat, was at that time a member of the Assembly, and he too took an active part in the debate. On this matter he said:

“The religious rights of a section of the people are being taken away, and they believe that the Government is interfering in religion. The propaganda that ‘religion is in danger’ is being raised. Do not, they say, lay a hand on whatever we choose to call our religion; they alone, they say, can decide what religion is. But, with all humility, it may be asked — what is this religion? Is it religion that you should have the right to say that a man must keep his beard of this

size, or must not keep his beard of that size? Is it religion that a man should not hold progressive views on matters of social reform? Is the founding of an educational institution and the spreading of education an attack on religious rights? If these rights are being taken away, and any person who dares to say any of these things runs the risk of being expelled from his community, then I will say, with all humility, that this is not an attempt to restrict anyone's religious rights, but an attempt to secure civil liberty for the citizens of this Province."

The bill thereafter took the form of the Prevention of Excommunication from the Community Act, 1949 (Bombay Act No. 42 of 1949). This Act provides that the excommunication of any person of any community shall not be lawful and shall be of no effect. Under the Act, the act of excommunicating a person from the community, or of abetting such excommunication, is an offence punishable with a fine of up to one thousand rupees.

This Act applies to all the communities of the Province of Bombay. Under it, the practice of excommunication from the community is altogether prohibited. In view of the powers of the *Bara Mulla* — by which, at his own will and on any ground whatsoever, he can excommunicate any person from the community — this Act is of considerable importance for the Dawoodi Bohras. As was seen at the outset, the right of excommunication had been recognized by the Privy Council; and although that right belonged to the community and not to the *Bara Mullaji*, the distinction was ineffective, because under the *Misaq* the whole community is bound to follow the *Bara Mulla*. Therefore, if a proposal for someone's excommunication came from the *Bara Mulla*, or with his permission, the community had no choice but to support it; the community's approval was, accordingly, of no significance — the more so in the light of the *Syedna's* claim that whoever breaks the *Misaq* is a devil, that his property should be plundered, and that his wife becomes automatically forbidden

to him. In no circumstances can the community arrive at a voluntary and free decision.

Thus the safeguards the Privy Council had provided were ineffective so far as the Dawoodi Bohras were concerned. The excommunication notices issued by the Syedna that are reproduced in this report give a clear indication that, in any matter — whether religious or non-religious — the violation of any of his orders is treated by him as a breaking of the Misaq, which is a sufficient ground for excommunication. In these circumstances, the Privy Council's ruling that the decision as to the grounds of excommunication should be left to the religious sentiment of the community is, in practice, tantamount to giving the Bara Mulla complete power to decide on what ground there shall be an excommunication and on what ground there shall not. The restriction that the decision must be taken in a meeting of the community is meaningless. This means giving him complete and unlimited powers. There is no obligation upon him to judge a member's conduct in the light of any fair principle, and even the community that considers his proposal is not free from his influence. In reality, no proposal of the Bara Mulla can fail to be approved, and one who opposes it becomes liable to excommunication merely on the ground that he opposed it.

After careful reflection we have reached the conclusion that the line taken by the Privy Council in the above-mentioned decision was wrong, because it ignored the most important aspect of the matter — the Misaq. This decision needs to be reconsidered by the Supreme Court and rendered ineffective by appropriate legislation.

The above-mentioned Bombay Act was a first step in the right direction. It gave some relief to the members of the Dawoodi Bohra community. But the Syedna of the time, seeing that his authority was in danger, challenged the constitutional validity of the Act on the ground that it violated the religious freedom secured by Articles 25 and 26 of the Constitution. The challenge arose in this way: the then Bara Mulla, Syedna Taher

Saifuddin, issued orders of excommunication against a Dawoodi Bohra, Taiyabji Moosaji [name partly uncertain]. The latter filed a suit against the Syedna, praying that the orders of 28 February 1934 and 28 April 1948 be declared unlawful and void. He contended that, after the coming into force of the Prevention of Excommunication Act, 1949, these orders had become ineffective. In his defence, the Syedna, the defendant, contended that the Act was unconstitutional and void. The case came up for hearing before Mr. Justice J. C. Shah, then a judge of the Bombay High Court, who held that the Act was an entirely valid law and rejected the Syedna's argument.

Against this decision the Syedna appealed to the Division Bench of the Bombay High Court. After hearing the appeal, Chief Justice Chagla and Justice Bhagwati dismissed it, holding that the Act did not violate Articles 25 and 26 of the Constitution and was not void under it.

Delivering the judgment on behalf of the Division Bench, Chief Justice Chagla said that the right to excommunicate a member from the community does not rank as a matter of religious faith and belief; at most it can only be a religious practice, and if, in the view of the legislature, this religious practice is contrary to the State's policy of public order, morality, health, or social welfare, then the religious practice must give way and the law must prevail over it. The phrase used in Article 26(b) of the Constitution — "to manage its own affairs in matters of religion" — means only this: that in domestic matters of a religious nature, in so far as those matters concern a question of religion, there can be no legal interference unless they affect public order, morality, and health. But when a religious community deprives one of its members of his legal rights, that lies outside the management of the community's own affairs: it is an interference with the rights of the followers of that religion, and the Constitution affords no protection to a religious leader who deprives the followers of his religion of their legal rights. Hence no religious leader can claim that, under Article 26 of the Constitution, he has the power to excommunicate or suspend any person from the community and to deprive him of his religious rights and

entitlements. (The judgment of Justice Shah, and of Chief Justice Chagla and Justice Bhagwati, is reported in 55 Bombay Law Reporter 1, under the title *Sardar Syedna Taher Saifuddin v. Tyeb Bhai Moosaji Koicha*.)

After losing in the Bombay High Court, the Syedna took the matter to the Supreme Court. There his appeal was allowed, and the Court held, by a majority of four to one, that the Act is void in so far as it contravenes Article 26(b) of the Constitution of India — because it impairs the right of the Da'i al-Mutlaq to excommunicate, on religious grounds, any Dawoodi Bohra from the community, a right protected by Articles 25 and 26 of the Constitution. [The phrasing of this final clause is unclear in the source.] (See AIR 1962 SC 853.)

Chief Justice B. P. Sinha, dissenting from the majority, held the Act to be valid. He expressed the view that:

“The right to excommunicate a person from the community is not a purely religious right. The consequence of excommunicating or expelling a person from the community is that the person expelled is deprived not only of the exercise of his rights in the places of worship, but also of the right to bury his dead; and all these matters are of a civil nature, not of a purely religious nature.

The purpose of the Act is to put an end to the curse whereby a human being is not treated as a human being and is deprived of his human dignity and of his right to act according to the voice of his conscience. In this way the Act fulfils the guarantee of the individual's freedom of conscience given by Article 25(1) of the Constitution, and does not contravene it. The condition of a person excommunicated from his community is like that of an untouchable within his own community; and in such a situation, to declare practices of this kind unlawful by means of the Act is to give effect to Article 17 of the Constitution, by which untouchability has been abolished and its practice in any form forbidden. Under that Article, any disability arising as a consequence of untouchability is a pun-

ishable offence in law. In this light the Act has a logical justification, and it ought to be held valid.“

Three of the four judges held the Act void, but they made it clear that the Act was objectionable to this extent — that it declared excommunication from the community unlawful for any reason whatsoever, including a religious reason. This means that, had excommunication from the community been declared unlawful under the Act on some ground other than a religious one, the Act would not have been held to violate Article 26(b) of the Constitution, and would not have been struck down.

The position adopted by the Supreme Court is open to criticism. It appears that the Court's attention was not drawn to the true elements of the Misaq and to the methods by which the Bara Mulla enforces it. Nor did the Court know that, in the matter of excommunication, the Bara Mullaji draws no distinction between religious and non-religious matters: in every sphere the Syedna's command must be obeyed, or else one must endure the calamity of excommunication. It also appears that the Court's attention was not drawn to the fact that excommunication from the community is something far greater than mere exclusion from places of religious worship. As a consequence of it, marriages are dissolved; the members of a family are separated from one another; the institutions established for the welfare of the community are shut down; and all those who associate with the person against whom *bara'at* has been declared are themselves excommunicated.

Under Article 25, a law for social welfare may be made; and we are of the view that in a situation of this kind a measure of social welfare is needed most of all. The Supreme Court says that a social-welfare measure must not be a measure for the reform of a religion. But to restrain the Mullaji of the Dawoodi Bohra religious community from oppressing the people of that community merely to this extent — that they married without his consent, or set up social institutions such as schools and orphanages, or read books and periodicals in which his unjust acts are

condemned, rightly or wrongly — does not amount to altering any of the fundamental principles of that community. Religion ought to rest on surer foundations than these.



## CHAPTER XII

# Taxes

In this chapter we shall discuss those taxes — the levies, the offerings (*nazrana*), and the homage-payments (*salam*) — which, according to the statement of the reformists, the *Amil* gentlemen collect in the name of the chief Mullaji. In Section “C” of the questionnaire we had included questions on this matter, and all the respondents stated in their answers that taxes of the following kinds are collected:

1. Zakat
2. Sila and Fitra
3. Nazr-e-Maqam
4. Haqq al-Nafs
5. Khums

Let us first explain these terms.

### (1) Zakat and Khums

*Zakat* is obligatory upon all Muslims. It is levied on the wealth accumulated over the course of a year — that is, it is a tax on saved wealth, not a tax on income. Its fixed rate, which is the same for all Muslim sects, is 2½ per cent. In addition, among the Shias and the Isma’ilis a one-fifth (1/5) share of one’s wealth must also be given, which is called *khums* (*khums*

means “one-fifth”). The majority of Muslims hold that only an Islamic government has the authority to collect zakat and the like; otherwise a Muslim is free to distribute his zakat among the poor, the needy, and so on as he sees fit. It is only among the Isma’ilis that its collection is compulsory.

## **(2) Sila and Fitra**

*Fitra* is an obligatory charity (it is not collected by compulsion). It is distributed among the poor and needy Muslims on the day of Eid al-Fitr, at the close of the fasts of Ramzan — which is the very reason the Eid of Ramzan is called Eid al-Fitr. (*Fitra* means the breaking of the fast, and *fitra* is a kind of thanksgiving offering. *Sila* means a gift to the Imam or *Da’i* in return for his guidance in matters of faith.) This [*sila*] exists only among the Isma’ilis and not among other Muslims.

## **(3) Nazr-e-Maqam**

In reality, this is a sum that a person sets aside at the time of starting a new business, or of setting out on a journey, or on some similar occasion. The sum is given as a loan to a person in need, to be used in his time of need. The needy person intends to return the sum once his need has been met, for he believes that, if it is not repaid, some calamity or other will befall him.

## **(4) Haqq al-Nafs**

There is no such tax in any other Muslim sect, nor is there any mention of it in Islamic law. According to many of the respondents to the questionnaire, this is a contrivance of the chief Mulla. This tax the Mullaji collects, through his agents, from the survivors (the close relatives) of the deceased. These survivors are told that, until they have paid the sum, the deceased will not attain salvation. On the basis of the testimony, and of the inquiry we ourselves conducted, we are satisfied that the foregoing

makes the position of Islamic law quite clear, and in particular makes it clear that the practice of *Haqq al-Nafs* is found in no other Muslim sect.

Many of the respondents said that, besides these taxes, many further sums are taken in the Bohra sect by the chief Mulla and the members of his family, in the form of offerings (*nazrana*) and homage-payments (*salam*), the particulars of which are as follows:

1. Marriage.
2. The *majlis* (assembly).
3. Death.
4. The oath of allegiance.
5. The ceremony of naming a child.
6. The Hajj.
7. Having the chief Mullaji write “Bismillah” (a sacred mark) in his own hand, so as to open the annual account-books.

Now we shall see what the rate of these taxes is, in what manner they are collected among the Dawoodi Bohras, and to what extent they are enforced; we shall also see what the method of collecting *nazrana* and *salam* is. From the evidence the following is plain:

1. **Zakat:** This is collected by the Mulla class at the rate of 2½ per cent on a household’s accumulated wealth in a year. No one is exempt from it, and no one may take the position that he will himself distribute the sum among the poor and the needy; it applies, without distinction, to every household.
2. **Sila and Fitra:** According to the evidence laid before us, this is collected at the following rates:
  - (a) Rs. 4.75 [figure uncertain] per adult, man or woman;
  - (b) Rs. 2.84 per minor, man or woman;
  - (c) Rs. 2.84 per child carried in the mother’s womb;
  - (d) Rs. 2.84 per stillborn child.

*In the source these four sub-items are lettered with the Abjad letters alif, bā, jīm, and wāw — the fourth skipping over dāl and hā.*

This rate has been in force since 1394 AH (1973–74). Although under Islamic law *fitra* is an obligatory charity, the Mulla class collects it as a compulsory levy and does not recognise the right of any Bohra to give the charity himself on the occasion of Eid al-Fitr. *Sila* is current only among the Isma'ilis; it is a gift to the Imam or *Da'i* in return for the guidance of his followers.

3. **Nazr-e-Maqam:** Although, as explained above, this ought to remain with the individual himself, so that he may help any person in need, it too is collected from every household.
4. **Haqq al-Nafs:** As set out above, this appears to be an invention of the Bohra Mullas. According to the evidence before us, it is collected at the rate of Rs. 119 (or some multiple thereof), or 119 gold mohurs (or some multiple thereof). It must be paid on the third day after the death of any member of a household.
5. **Salam and Nazrana:** As stated above, these are collected on every possible occasion.
6. **Da'wat (the feast):** If a person sends out invitations to invite members of the community to a feast, he must obtain the permission of the chief Mullaji for it. At the time of obtaining permission the petitioner kisses the hand of the chief Mullaji and presents an offering of Rs. 5, Rs. 11, Rs. 21, Rs. 51, Rs. 101, and so on. After he has obtained the consent (*raza*), he must then pay, separately, a *salam* amount to the chief Mulla Sahib, and a further amount for the hidden Imam.
7. **The ceremony of naming a child:** It is customary to name the child on the fifth night after its birth. Many people of the community go to the chief Mullaji and request him to suggest the child's name. The chief Mullaji sits upon the *gaddi* (seat), and the petitioner stands before him with folded hands; then the chief Mullaji raises his head with great ceremony and, together with the *salam* payment, has the petitioner kiss his hands and feet, and only then pronounces the name. That very name must be given to the child, and it cannot be changed.

8. **Inviting the chief Mullaji to one's home:** If the chief Mullaji is invited to a feast on the occasion of a wedding, or of the opening of a shop or a house, the host — after kissing the hands and feet of the chief Mullaji — must present a *salam* amount, which he is asked to offer as a *nazrana*. This sum runs to Rs. 11,000, Rs. 21,000, Rs. 51,000, or even more. Only after the sum has been fixed does the chief Mullaji agree to attend. Here too the host may not cook dishes of his own choosing; a menu is prepared in advance and handed to him. And after granting his approval to attend, should the chief Mulla come to learn that the host can pay more than the agreed sum, he halts a few yards short of the venue and sends his representative to tell the host that, since he has concealed and misstated his true financial standing, the Mullaji will not join the feast until the sum is suitably increased; until the larger amount is settled, the Mullaji does not stir an inch from where he stands.
9. **Death:** In the event of a death, along with the payment of *Haqq al-Nafs* one must also go to the chief Mullaji or his *Amil* to obtain permission for the burial, and at that point the sum fixed by the chief Mullaji or his *Amil* must be paid.
9. **Departure for the Hajj:** The people of the sect believe that God Most High will not accept their Hajj unless, before setting out, they present themselves before the Mullaji and obtain his consent (*raza*). The person setting out for the Hajj therefore goes to the chief Mullaji to obtain consent, paying a suitable offering on the occasion. Consent must likewise be obtained for the *ziyarat* — for going to Karbala to the shrine of Imam Husain. On returning from the Hajj or the *ziyarat*, one must again present oneself before the chief Mullaji and pay a further offering. The practice of giving amulets, black thread, and “blown” (blessed) water also continues, and a suitable sum is collected for these; they are regarded as a means of warding off calamity and of curing illness. Permission is also taken from the chief Mullaji as to which doctor is to be consulted, or from which

doctor treatment is to be had, and on this occasion too an offering is given.

10. **Sabil:** In the city of Bombay and some other towns there has been, since 1962, a practice of collecting a regular sum called *sabil*. A great many people give *sabil* out of their modest earnings. In Bombay it is collected from some people in person, and in other places on occasions such as weddings; and when *sabil* is paid only on such occasions, the arrears of earlier years must be paid along with it. A “clearance” (a clearance certificate) is not given to anyone who has not cleared the arrears of *sabil* and the other taxes. A person of Bombay, Yunus [Baluwala?], submitted — through the *Amil* of the Azizi Mosque at Santacruz, Bombay — a photocopy of a clearance certificate issued in favour of Hatim Bhai Akbar Ali Mantri, a resident of [Parmeshwar Darshan], Santacruz, Bombay, and of his wife Hajra Hatim Bhai. The relevant part of the certificate reads as follows:

*“The amount payable in the form of sabil and the like by the persons named below has been paid in full. By this writing the Jamaat of Santacruz issues a clearance certificate. A marriage is to take place in the household. The Anjuman has no objection thereto.”*

Another copy of this clearance certificate — a copy of the No-Objection Certificate — is reproduced in Appendix “G”.

### **(5) Are the Payments Compulsory or Voluntary?**

Bills laid before us — bills used by the local *Amils* in various towns and sent to every household — were examined. In one such bill, submitted by a respondent from [Bharuch?], we found, for *Sila* and *Fitra*, separate columns for adults (men and women), for minors, for a child being carried in the mother’s womb, and for the deceased; and likewise columns for *zakat*, *khums*, *kaffara*, *mannat-niyaz*, and a “mannat Maulana Mukhtar” [reading uncertain]. The bill bears the date 1396 AH. In the

margin of the printed bill-form there is a request that the receipt for the present year's payment be produced when next year's dues are paid, failing which next year's dues will have to be paid afresh.

A photostat receipt dated 28 February 1977 was placed before us. It shows that Rs. 62 were paid, on demand, for *sabil* for the [Vikram] Samvat years 2029 to 2033. There is also a receipt, dated 5 September 1977, evidencing the payment of one year's *Sila* and *Fitra*; and similarly a Bombay bill was submitted that related to the *Sila* and *Fitra* of 1394 AH. Before us, too, is a demand made by an *Amil* stating that, if the tax is not paid, it will be recovered together with a fine.

On the basis of the evidence before us we have become satisfied that three taxes — *zakat*, *Sila* and *Fitra*, and *Haqq al-Nafs* — are collected by compulsion, and that the other levies, too, are not voluntary. When we say that some of the payments are compulsory, the question arises: why are they compulsory? Is it a pressure bound up with religious sentiment, on account of which the Dawoodi Bohras become willing to pay these sums, or is there some further reason besides?

From the particulars the witnesses gave on these questions, it appears that strict restrictions attach to the demand for every tax, compulsory and optional alike. These restrictions come into play when a person seeks to give the *Misaq*, or to obtain consent (*raza*) for a marriage, and the *Amil* presses for the payment of the dues. In some cases these amount to several years' tax, and consent is withheld until they are paid. We have, in an earlier chapter, examined the grave consequences of any such step by which consent is refused: social oppression, harassment, refusal of admission to the cemetery, and the like.

Limits are also imposed on those payments that are said to be voluntary. For example, in an official document published in the name of "Shiatu Ali" from Mudarrasi Mahal (the residence of the Syedna), a form of the *sabil* bill is given. *Sabil* was begun in the city of Bombay in 1962. The document states that many of the faithful (*momineen*) pay it regularly,

regarding it as their duty towards the Jamaat, and that it is better to pay it regularly, since to defer it — and in some cases payment can be put off until the time of a marriage or a death — results in having to pay a lump sum, which becomes a burden, being over and above one's other expenses. The *sabil* amount should therefore be regarded as an obligation and collected regularly, so that the Jamaat's dues may not become a heavy burden on some occasion. The document further states that *sabil* should be paid per couple (*jodā*), and that, to make payment convenient, an office of "Shiatu Ali" is operating near the Husaini Mosque in Bhendi Bazaar, Bombay. It adds that the enemies of the Da'wat have wrongly given *sabil* the name of a "tax", whereas it is collected, with the consent of the *Da'i al-Zaman*, for welfare activities. The pamphlet also says that the *sabil* dues should be paid before the 29th of Shawwal, and that, if they are not paid by that date and payment is deferred to some other occasion, "Shiatu Ali" shall be entitled to recover the sum after increasing it. The pamphlet bears the date of publication 1384 AH.

This official pamphlet furnishes clear proof that, although *sabil* is called voluntary, it is in fact treated as compulsory; and it further appears that the officials concerned are authorised to recover the *sabil* dues, together with a fine, from those who do not pay regularly and keep deferring payment until some occasion arises in the household. The demand for a fine gives the lie to the claim that this is a voluntary levy.

On this matter a woman who answered the questionnaire gave an instance. Smt. [Rashida?] Firoz Bhagat said that at the time of her marriage a demand was made of her father to pay the *sabil* tax. He refused, saying that it was voluntary; he was thereupon threatened that the *nikah* ceremony would not take place until he paid the *sabil*. In the end he agreed to deposit one hundred rupees, for which a receipt was made out; and after the *nikah* was over, the sum he had deposited was treated as a compulsory payment of *sabil*. The father carried on a long correspondence to have the sum returned, but received no reply.



Offerings (*nazrana*) and homage-payments (*salam*) too are not voluntary. A witness, Sheikh Ahmad Husain Qurban Husain, stated that *salam* amounts are collected on numerous occasions, namely:

1. Marriage.
2. At the time of naming a child.
3. At the time of the child's *aqiqa* (when its hair is shaved for the first time).
4. The *Misaq*.
5. The funeral prayer.
6. *Hajj-e-Badal*.
7. The *Da'wat* (feast).
8. *Muqaddas*.
9. The sermon (*wa'z*).
10. The banquet.
11. The *Qadam*.
12. The first presentation [before the Syedna].
13. The *majlis*; and
14. At the time of conferring titles such as "M.K.D.", "N.K.D.", Mulla, Sheikh, and the like.

The meaning of some of these terms is plain; others call for explanation. *Hajj-e-Badal* means that, if a well-to-do person dies without having performed the Hajj, another person is sent in his place to perform it; on the occasion of *Hajj-e-Badal* large sums, between Rs. 5,000 and Rs. 10,000, are collected as offerings. *Wa'z* means a religious sermon, on the occasion of which some money is taken. *Qadam* means the Syedna's going from house to house among his devotees; whosoever house the Syedna visits pays an offering.

We have a certified copy of a telegram from an *Amil*, [Ibn] Yusuf Ali, sent by him to Ghulam Ali Dada [Sabhai?] of Jalgaon. Its text runs: "Per the exalted firman — come with all members to the Aqa by the first train — Rs. 500 by way of offering. — *Amil* N. Yusuf Ali." (The telegram is terse, and parts of it are difficult to read.)

We also have the original copy of another telegram, sent by Ismail Bhai, the *Amil* of Burhanpur, to Mulla Muhammad Shah Sahib of the

Bohra Mosque, Burhanpur. Dispatched from Bombay, it was received on 30 January 1967. Its text is: “His Holiness is arriving at Burhanpur on the blessed occasion of the 26th of Shawwal. The general body of the faithful are requested to come to Burhanpur for the *ziyarat* of the faithful and for *qadam-bosi* and *ziyarat*. — Ismail Bhai, *Amil*, Burhanpur.” Shawwal is the tenth month of the Hijri year; “*momineen*” means the Dawoodi Bohra followers of the *Da’i*; the “*ziyarat* of the faithful” refers to the faithful who come to the *dargah* (shrine) at Burhanpur; and *qadam-bosi* means the bowing of one’s head at the feet of the Syedna. Generally, at the time of *qadam-bosi*, some cash offering is presented.

## **(6) A State within a State**

In their answers to the questions in Section “C” of the questionnaire, the respondents in practice confirmed the reformist leaders’ charge that the Mullaji’s administration is, in a manner of speaking, run like a state within a state. Voluntary payments and donations on the part of the people of any religious community are intelligible enough; but here the matter is altogether different. Some payments are compulsory, and on their non-payment the certificate (the clearance certificate) is refused, and consent (*raza*) for a marriage, a burial, and the like is withheld. When it emerges that consent is required for a marriage, and (2) that it is required also for a burial — although cemeteries are ordinarily provided by the government or the local authorities, and every person has a right to them — then these can only be called compulsory taxes. In other words, they are compulsory taxes imposed by that religious ruler, who draws no distinction between religious and non-religious affairs, or between religion and the state.

## **(7) A Passport to Paradise**

Shri Musa Ji, who has been mentioned earlier, stated that after a person’s death these people send a *ruq’a* (a slip). It is a piece of paper on which certain lines are drawn and Arabic letters written. Its purpose is

that it be placed upon the breast of the deceased and buried with him. It is a kind of permit, and its minimum fee is Rs. 13; a man of means must pay five times as much for the *ruq'a*, and a wealthy man as much as Rs. 1,300. The object of the *ruq'a* is this: that when, in the grave, the angels Munkar and Nakir come — sword in hand, to question the dead about his deeds and to tear him to pieces — they should, on seeing the *ruq'a*, salute the corpse and, on learning that the deceased was a follower of the chief Mulla, treat him with special favour and put no question to him.

After the offering for *Haqq al-Nafs* has been given, the chief Mulla, through his assistant or *Amil*, makes contact with the deceased's son or other relatives and demands large sums to send the soul of the deceased to the Garden of Eden in Paradise — a garden rich with fruit, where flow springs of the cool, sweet water of the Pool of Kausar (*Hauz-e-Kausar*), and where the deceased is given a spacious and comfortable chamber, with houris in attendance to serve him.

These episodes reveal the reach of *bara'at* (excommunication) and its true character. It is not merely expulsion from the community and boycott; it is, rather, a means of inflicting suffering, intimidation, and harassment upon those who voice dissent, or who decline to obey the lawful or unlawful, the religious or non-religious, commands of the Syedna or his *Amils*. And it can in no way be regarded as a legitimate religious practice.

## CHAPTER XIII

# Income, Property, and Their Management

The reformists complain that, in his capacity as the religious head of the Dawoodi Bohra community, the Mullaji has installed himself as the sole trustee — without any partner — of countless and extremely valuable immovable properties. A trust styled the “Dawat-e-Hadiyah Private [Teacher?] Trust” stands registered in the name and form of an establishment at Badri Mahal, Hornby Road [reading uncertain], Fort, Bombay. This is one of the largest of the endowments; the Syedna is its sole trustee and holds the power to appoint its manager. The management and control of these extensive properties lie wholly in the hands of the Mullaji, and their income is spent on any purpose whatsoever — the determination of which rests entirely with the Syedna Sahib and the Dawat-e-Hadiyah.

In this connection a certified copy of the relevant entries from the Registrar of Public Trusts was placed before us. Such entries are made under the Bombay Public Trusts Act, 1950. These entries relate to the Dawat-e-Hadiyah Private [Teacher?] Trust, whose number is B-29,8(B) [uncertain]. The entry shows that this endowment was registered on 31 March 1954. In the original entry the sole rights-holder was shown as

“Holding No. 30, President Syedna Taher Saifuddin Sahib (sole trustee), Saifee Mahal, Malabar [Hill], Bombay.” (*“Holding No.” here appears to be a register designation that recurs below as part of the formal name.*) Ibrahim Bhai Zainuddin was shown as the manager, his address being Badri Mahal, Hornby Road, Fort, Bombay. In 1966 the original entry was struck out and a new one substituted, in which, in place of Taher Saifuddin, the name of the present Da’i al-Mutlaq, Syedna Mohammed Burhanuddin (the present Syedna), was entered. The basis stated for the inheritance of the sole-trusteeship and the managership was that all property – given to, transferred to, presented as a gift to, or otherwise acquired by the Da’i al-Mutlaq, or acquired by him by virtue of his being the religious and spiritual head – passes to the incoming Da’i al-Mutlaq. The manager is appointed by the sole trustee. This endowment covers only the properties in Greater Bombay. At the time of registration the immovable property of this endowment was shown as roughly 182 lakh rupees. From the time of registration until now, the market value of this property must have multiplied several times over.

According to figures published in 1954 by the Director of Public Trusts, 142 Bohra endowments were registered with the Charity Commissioner of Bombay. Since the publication of those figures, a further 92 Bohra endowments have been recorded in Maharashtra, bringing the total to 234. Several of these Bohra endowments are decades old. At the time of their registration in Maharashtra, the following totals were stated for the Bohra endowments’ assets, annual income, annual expenditure, and savings:

|                       |                     |
|-----------------------|---------------------|
| 1. Total assets       | Rs. 3 crore 60 lakh |
| 2. Annual income      | Rs. 56 lakh         |
| 3. Annual expenditure | Rs. 45 lakh         |
| 4. Savings            | Rs. 11 lakh         |

The value of the assets stated by the trustees is the low book value of the year of registration, that is, 1954. Most of the endowment’s property is situated in South and Central Bombay; it is therefore reasonable to suppose that its market value has risen by no less than fifteen times. The

present market value of these assets would thus be approximately Rs. 5 crore.

The reformists allege that some Bohra endowments were got registered by their trustees only under compulsion — and that even then only when a few Bohras, at the risk of being harassed and socially boycotted, filed applications before the Charity Commissioner for inquiry and registration, and had to bear considerable trouble [and expense] in doing so. They further complain that even today not all the Bohra endowments in Maharashtra are registered, because the people concerned generally do not wish to anger the trustees of the endowments and so do not inform the Charity Commissioner of the non-registration.

As already stated, the Mullaji is the sole trustee of these endowments. We saw above, in the third chapter, that the fifty-first Da'i claimed that he was not the trustee but the sole owner of these properties. In the case mentioned in that chapter, the Bombay High Court rejected this claim, and so, reluctantly, the Da'i accepted the status of trustee. Several years later, in 1950, when the Public Trusts Act came into force, it was not made obligatory for him to register these properties with the Charity Commissioner. In any event he filed no application for registration of the waqf, nor did he disclose the purposes of the endowments.

It is also an interesting fact that the tax which the Da'i collects within and outside India is not counted in the income of the endowments. The Charity Commissioner of Bombay has agreed to keep income collected outside Maharashtra off the endowments' accounts.

Another very large endowment, the Taher Saifuddin Memorial Foundation Trust, is registered under Category "E" with the Charity Commissioner of Bombay. All Muslim endowments are recorded under Category "B," and mixed endowments under Category "E." It is alleged that the Foundation built, at a cost of Rs. 4 crore, the magnificent mausoleum of the fifty-first Da'i, named the Rauza Tahira (Roza-e-Tahera). The offering-boxes (nazrana boxes) of the waqf are placed in this mausoleum; but the

Charity Commissioner's records do not show that the money received in those boxes is included in the endowment's property or income. Its trustees comprise members of the family of the Da'i al-Mutlaq, together with one outsider.

The Saifee Foundation is another large endowment, registered under Category "E" with the Charity Commissioner of Bombay. Its trustees too are the Da'i and members of his family, and the Da'i has retained for himself the unconditional and exclusive right to administer this endowment.

Besides these endowments, there are the large endowments of Maharashtra and Gujarat, numbering 234. It is alleged that the Syedna, using the rank of Da'i, has obtained control over them, and several respondents have stated in their answers that this control was secured through pressure.

There is another endowment named Hamza Bhai Yusuf Ali, in which the grounds for the inheritance of the trusteeship and the managership are stated as follows:

*"The appointment of trustees is made by the living trustee, Holding No. [?] Mullaji Sahib, after consultation [with him], and its approval is obtained from the District Judge."*

There is also the Qutbuddin Shahid alias Panj Shahid [?] Dargah Qabristan (Cemetery) Trust. It lies in Ahmedabad district and is registered under Category "B" with the Charity Commissioner. The basis of inheritance of its trusteeship and managership, as recorded in the register, is that the Da'i al-Mutlaq for the time being is ex officio the sole trustee, and that he appoints the manager or managers. Its purpose is to give a feast (da'wat) once a year, in the month of Rabi al-Akhir, to the members of the Dawoodi Bohra community, and to carry out any other charitable work at the wish of Holding No. [?] Sardar Syedna Taher Saifuddin Sahib. This example shows that the Da'i al-Mutlaq is the sole trustee of these endowments as well, which lie outside Bombay. There is no evidence as to the number of endowments in which he holds the position of sole trustee.

The secretary of the Jamaat of the Dawoodi Bohra community of Udaipur stated in his memorandum that, for a long time past, the community has been assured that every single paisa coming into the community treasury is the personal property of the Da'i al-Mutlaq, and that all the endowments are among the Da'i's absolute properties. Islam holds that a waqf is *li-wajh Allah* (for the sake of God); but Bohra endowments are now designated *li-wajh al-Syedna* (for the sake of the Syedna), named after the Syedna. He adds that this is evident from the brass plaques fixed to the gates of the Bohra endowments. Such plaques hang on the gates of various endowments. At Udaipur, the following inscription is engraved on the khanqah:

*“Dawat-e-Hadiyah Trust. Holding No. [?] Sardar Syedna Taher Saifuddin Sahib and his heirs have absolute authority over all the offerings given here; and the Da'i al-Mutlaq of the Dawoodi Bohra community may use them, in accordance with the law [of the country — uncertain], for any purpose he wishes, whether charitable or not.”*

He has also produced a photograph of one such plaque, and says that similar plaques hang at the other places mentioned above.

A question naturally arises here: how do the trustees of the other endowments come to accept the Da'i as sole trustee for all practical purposes, when those endowments are independent and the trustees themselves are responsible for their administration? One reason is apparently obvious — the Da'i is the religious head of the community, and through the Misaq every member is bound to obey his commands “in all matters.” But a second reason is that he and his administration have implanted in the minds of the followers the belief that those who worship in the mosques, and those who donate to the mosques, will, from a religious point of view, earn no merit (sawab) unless those institutions are in the hands of the Da'i al-Mutlaq. The same holds true of other charitable properties: if they have not been placed in the ownership of the Da'i al-Mutlaq, then, without his “raza” (consent), the appointment of any other trustee will mean that the property ceases to be a valid waqf and is therefore spiritually ineffective.



This position is made amply clear by a letter dated 29 November 1976, written by a man named Tayyab Ali, M.A., to one Nuruddin Bhai. The former had been a legal adviser to the Syedna, or to the Syedna's brother Najmuddin, who plays an important part in managing the Syedna's affairs. The letter concerns the deed of an endowment in Mombasa, which Nuruddin's grandfather had established in 1940 in the form of property for a mosque. The founder of the waqf had appointed as trustee someone other than the Syedna. The important part of the letter runs as follows:

*"I have studied the deed of the waqf and have drawn the following conclusions.*

*1. Your grandfather, in 1940, endowed certain property as waqf so that it might be used as a mosque. According to Dawoodi Bohra belief, no property can be used as a mosque unless it is designated in the name of the Imam — or, during the concealment of the Imam, in the name of the Imam's representative, that is, the Da'i al-Mutlaq. The waqf created on 24 November 1940 is therefore wholly void, and your grandfather derives no merit (sawab) from it. For, according to the deed, your uncle Hasan Ali became the trustee of this property, and after him the trusteeship was to pass to one of the members of the family of Abdul Ali [Dali?]. According to our beliefs, the appointment of trustees in this manner cannot give the property the status of a waqf, and from it neither the donor nor those who worship in it can earn any merit. This is a grave error; it should be put right at once and absolutely. The deed also mentions the endowment of other buildings, to be used for the upkeep of the mosque, but the particulars of those other buildings are not set out. A photocopy of the aforesaid will/deed should be sent for our inspection. You should at once discuss this matter with the Aamil Sahib and take immediate steps to rectify the situation. You and all the other heirs must prepare a new deed under which the property of the waqf is designated in the name of Holding No. [?] Syedna Mohammed Burhanuddin Sahib (t.a.), the fifty-second Da'i al-Mutlaq. After that, your family should, by a separate application, petition His Holiness to*

*entrust the administration of this property and of the other buildings to you, or to some other member of the family of Abdul Ali Dali. In this way you can set this matter right.”*

Those who give donations for religious and charitable purposes do so in the belief that they will thereby earn some merit. If there is a fear that this benefit will be lost by the appointment of some other trustee, then naturally a donor will agree to place the property of his private waqf at the disposal of the Syedna, and will seek permission to entrust its administration to some other person under the Syedna's supervision.

In this way the Syedna has authority over the properties of all the endowments of the Dawoodi Bohra community, whether or not he is in law their sole trustee. Where he is the sole trustee, no difficulty can arise at all. But where he is not, he can become the sole trustee by employing the methods described above and with the help of the belief spread by the priestly class. He can thus decide, in the case of any waqf, that its income shall be spent on the purposes that he regards as charitable. And even in the case of those deeds in which the aims and objects are stated, it is he, and he alone, who will decide whether a particular item of expenditure, or a particular work, falls within the stated aims and objects or not. Anyone who refuses to accept his decision will have to suffer the coercion described in the preceding chapters.

In short, the Syedna has absolute authority over the following:

1. The income obtained from the taxes described in the twelfth chapter, which are collected both within and outside India.
2. The income from the properties of all the Dawoodi Bohra endowments.
3. The sums received as salaam and offerings (nazrana).
4. The income from the offerings given at those gates on which the plaques are hung — money which, by the terms of the plaques, is to be at the Mullaji's disposal.

Now, since all this income does not pass into the endowment's treasury, the accounts of the endowments registered in the State of Maharashtra cannot give a true and complete picture of the sums at his disposal. We have obtained an estimate of the income over which he has control; and this too is an estimate based on conjecture.

Although it is not possible to estimate the income precisely, we have, after considering various factors — the methods used in collecting the taxes, the occasions on which salaam and nazrana are collected, and the population of the community and its grading — arrived at the conclusion that the income over which he has control would total around seven crore rupees a year.

We have not pursued this question further, because the exact figure of the income is not as important as the fact that the community has no authority whatsoever over it — even though the income is very large. Whatever the correct figure may be, the community has no right to any say in the management of this income or of the endowment properties.

In these circumstances even the audit of the accounts becomes meaningless. The auditors can scrutinize only those items which are required to be entered in the endowment accounts. They cannot insist on entering in the accounts those sums that are given personally to the Syedna, to be used by him, at his own discretion, for whatever purpose — public or personal — he chooses.

The present law does not fully cover this situation; and in any case the auditor cannot give any conclusive ruling on the legal question.

The reformists say, moreover, that although the accounts filed with the Charity Commissioner are audited, the firm that audits them is composed of Dawoodi Bohras, whose principal livelihood is to audit the Bohra endowments and the businesses run, directly or indirectly, under the control of the Syedna and/or his family — said to number 188.

Although this fact is not in itself objectionable, we are of the opinion that, in these circumstances, it would be an extremely awkward matter for the firm of auditors to point out the errors in the accounts they examine. As Dawoodi Bohras they would be bound by the Misaq and would hold the belief that the Da'i is infallible and can make no mistake; they could not fall short in their loyalty. In any event, most people would think that the auditors cannot work independently, impartially, and without discrimination.

This, in any case, is a sketch of the financial power of the Mullaji and the Bohra priests.

From the facts we have ascertained in this and the preceding chapters, it will be evident that the Da'i al-Mutlaq's position as religious head, the vast income at his disposal, the obligations laid on the Bohra members by the Misaq, the Da'i's right to excommunicate any person on any ground he pleases, the practice of bara'at — which results in those who differ having to face grave consequences — the absence of any community control over the community's income and properties, and the absence of proper legal regulation of the endowments scattered across the world: all these together have brought about a concentration of enormous power in the hands of a single person, who holds control over the entire life of the Dawoodi Bohras from birth to death. The root of the reformists' complaints appears to be this — that the religious powers possessed by the Syedna, which ought not to be used for worldly ends, began, from the reign of the fifty-first Da'i, to be used to acquire economic power and to concentrate it in a single great centre; and the economic power so acquired then began to be used to crush the community's "dissident members" and to compel them into obedience and submission. This very fusion of religious and economic power produces ruinous results — results that create a grave danger [problem] not only for the reform-minded Bohra members but for the whole Bohra community and for the country. Problems of such magnitude call for thoroughgoing reforms — reforms that accord with the democratic principles and the fundamental rights set out in Articles 25

and 26 of our country's Constitution. In the next chapter we shall consider the reforms that we regard as necessary and appropriate.

## CHAPTER XIV

# Recommendations

Our inquiry has revealed that, at the hands of the priestly class, the civil rights and the human rights of reform-minded Bohras are being trampled. Those who do not obey the commands of the Syedna and his agents — even where the matters concerned are purely secular ones — have *bara'at* (excommunication) pronounced against them. As a result they are subjected to a complete social boycott, are mentally tormented, and are often even physically attacked. The *Misaq* — the oath of unconditional obedience to the Mullaji, which every Bohra takes before reaching the age of maturity — is the real instrument by which the whole community is kept obedient to the Syedna and his representatives. By the threat of *bara'at*, and the fear of the grave difficulties that follow from it, the Bohras are held back from the bold steps that the Syedna forbids — for example, bringing out publications such as the [Samachar?], bulletins, and the *Bohra Bulletin* establishing charitable institutions such as orphanages, dispensaries, and libraries without the Syedna's prior permission, unless the conditions he lays down are first accepted; taking part in municipal and assembly elections without first obtaining the Syedna's prior blessing (*du'a*); or keeping up any kind of social relationship with a person on whom *bara'at* has been pronounced — even if that person is one's own

husband, wife, brother, sister, father, or son. The weapon of *bara'at* is used to compel a man to divorce his wife, to force children to disown their parentage, to make a mother refuse to look upon her son's face, and to keep a brother or sister away from the wedding of a brother or sister. A person expelled from the community becomes, in effect, an untouchable within it: besides being cut off from his friends and close relatives, even his corpse may not be buried in the community's graveyards — so that not even death releases such people from the cycle.

In foreign countries the Bohra congregations (*jamaats*) are not allowed to frame their own rules and regulations; instead an autocratic constitution is imposed on them, under which the Syedna and his representatives are given absolute powers. Every year the Syedna and his representatives collect lakhs of rupees, in the form of customary taxes and offerings (*nazranas*), from the Bohras living in India and abroad, and for these the Syedna is answerable to no one. He also claims to be the owner of all Bohra mosques and the sole trustee (*mutawalli*) of the Bohra endowments (*awqaf*); and wherever the accounts of these endowments are audited, the audit is carried out by a firm made up of members of the community who are themselves bound to the Syedna through the Misaq. In these circumstances it is plain that this state of affairs cannot be changed by a reform movement working from within the community. Anyone who knowingly disobeys the commands of the Syedna and his agents commits a breach of the Misaq, and *bara'at* may be enforced against him, or he may be socially boycotted. The result is that, although a great many members are unhappy with the oppression of the priestly class, they dare not voice their displeasure openly. Thus, although a regular campaign was launched within the community to condemn our Commission and to halt its inquiry, many of those who ran that campaign privately wished us to carry on with our work.

Although the great majority of the members who differ with the priestly class are unwilling to raise their voices against its domination — and the few who have the courage to do so have been unable to build

a reform movement from within the community, even though they are ready to acknowledge the Syedna's religious authority (which is distinct from his secular authority) and to accept it as an essential part of their faith — bara'at is nevertheless enforced against them, and they are deprived of social relations with their Bohra brothers and sisters, so that their movement touches the community only on the surface.

It is therefore necessary that the government should step in and, without injuring the fundamental religious rights of the priestly class, enact such laws as will remove the community's afflictions. Under Articles 25 and 26 of the Constitution, the members of every community are given the right to profess, practise, and propagate their religion, to establish and maintain institutions for religious purposes, and to manage their own affairs in matters of religion. But these rights do not prevent the State from legislating to reform, restrain, or curb the economic, financial, political, or secular activities connected with religious practice, or to provide for social welfare and reform.

In this chapter we set out what kinds of law are needed in order to reform the economic and secular activities of the priestly class and to bring about social reform within the community. But first it must be made clear that no law of this kind can be passed or enforced unless it has the practical support of all the progressive sections of India, including the minority communities. We therefore particularly ask the Muslims of India to study this report — however dreadful the picture of oppression it presents — and then to decide for themselves whether legislation is necessary to reform the secular activities of the Bohra priestly class and to bring about social reform within the community.

To remove the evils described in the foregoing chapters, we recommend the enactment of laws of the kinds set out below.

*(In the manuscript the recommendations are numbered irregularly, mixing numerals with Abjad letters; they have been set out here as a single numbered list.)*



1. Bara'at, or social boycott, should be declared unlawful and made a punishable offence.

When the Supreme Court decided *Saifuddin v. State of Bombay* (AIR 1962 SC 853), the full facts about bara'at and its consequences were not placed before it. Among the Bohras, the enforcement of bara'at is not confined to apostasy, nor does it mean merely barring a person from the community's worship or from the benefit of community property. In reality it is a penalty for non-compliance in secular matters, and it makes the person almost wholly an untouchable: it carries a complete social boycott, separation from kin and friends, and the loss of trade and livelihood. Contrary to the view expressed by the majority of the judges in that case, the abolition of bara'at is, beyond doubt, an urgently needed social reform.

In drafting the law to end social boycott, the defect should be removed on which the majority struck down the Bombay Prevention of Excommunication Act, 1949. The law should also be a general one against social boycott — not confined to the Bohra practice of bara'at, but capable of being applied on other occasions as well. As an example of such a law we commend Bill No. 67 of 1966, introduced in the Lok Sabha by the Member of Parliament Dr. V. R. Pandit [name uncertain] and published in order to ascertain public opinion; a copy of it is reproduced in Appendix "H".

2. We have considered, with great seriousness, whether the abolition of the Misaq should be recommended as a necessary measure of social reform. There is no doubt that, so far as it is an oath to accept the Syedna's directions in religious matters (the giving of the Misaq), it is an essential part of the Bohra faith and calls for no interference. But, as we have seen, the scope of the Misaq is so wide that, alongside religion, it requires unconditional submission to the Syedna in secular matters as well — which is, in a sense, a collar of slavery. We have also seen that Bohras who differ on this very point are subjected to every

kind of harassment. We therefore recommend that the Syedna first be requested to confine the Misaq to the carrying-out of his commands in religious matters only; and that, if he refuses to do so, the taking of the Misaq in its present form be prohibited by law.

3. It is also essential that the endowments of which the Syedna claims to be the sole trustee, and the collection of all the customary taxes and offerings, be regulated by an appropriate law.

That such a law is constitutionally permissible is evident from the Wakf Act, 1954, and the Durgah Khwaja Saheb Act, 1955. Since many of these endowments draw income from India and from other parts of the world, the regulation of such endowments and income should be the responsibility of Parliament rather than of a State legislature; the Concurrent List of the Constitution contains an entry headed “Trusts and Trustees” (Seventh Schedule, List III, Item 10). Concerning such endowments and income, we recommend laws of the following kinds:

- (a) The Syedna claims that he is, if not the absolute owner, at least the sole trustee of all Bohra mosques. (We have seen a copy of the decision of the Madras State Wakf Board dated 1 July 1962, in which a Bohra mosque secretary’s claim — that mosque properties are not wakf property but the Syedna’s personal property — was rejected.) A law is needed to regulate the management of mosque property. It should provide for a board of trustees, chaired by the Syedna, whose accounts are prepared regularly and are open to inspection by members of the community.
- (b) A similar law is needed for the management of endowments whose trustees are the Syedna or members of his family. It should lay down a scheme for the appointment of trustees, an independent secretary, and the necessary staff; the government should have power to appoint a chartered accountant to audit the accounts; and members of the community should be allowed to examine them. Further, in the case of certain charitable trusts

founded by individual Bohras — where pressure was brought on the founder to make the Syedna, or his nominee, the trustee — the law should empower the District Judge of the district in which the trust is situated to constitute a board of trustees for its management, on which there is the widest possible representation.

4. The customary collections that the Syedna and his agents take from the Bohras, described in Chapter Twelve, are also, in a sense, in the nature of a trust. A separate law should be enacted to secure accountability for the offerings received from India and for the manner in which they are spent on the community's welfare. For their management the law should provide for a board of trustees able to represent the interests of the whole community, with the accounts checked by an independent financial agency nominated by the government and open to inspection by members.

On the material available we are unable to decide whether the sums received as offerings and *salaams* (also described in Chapter Twelve) are trust property or not; that must be settled in the light of the purpose for which the money was given. In any event, if these sums are not treated as trust property, they must be treated as personal income and made subject to income tax; and since they are collected regularly on certain fixed occasions and are not casual in nature, they cannot be exempted in an income-tax assessment.

5. We have already described the methods by which the Syedna and his representatives influence elections to municipal and law-making bodies. Such conduct, besides amounting to corruption, constitutes the exertion of undue influence under Section 171A [?] of the Indian Penal Code if it is done at the instance of a candidate or his election agent. We hope that, after this clarification, such interference in elections by religious leaders will cease.

6. As shown in the earlier chapters, the Bohra jamaats in India and abroad were forced to accept an autocratic constitution conferring absolute powers on the Syedna and his representatives; it was the pressure of the Misaq and the fear of bara'at that made such acceptance possible. Once bara'at is declared unlawful and the Misaq is reformed or prohibited, the jamaats will be free to amend their constitutions as they see fit, and for this no further legislation appears to be necessary.

# Appendix to Chapter I: The Questionnaire

Ahmedabad

12 February 1978

Dear Sir / Madam,

You may be aware that the Executive Council of Citizens for Democracy has appointed a commission to inquire into the alleged violation of the human rights of the reform-minded members of the Dawoodi Bohra community — at the hands of the Bohra clerical class and their associates, in the name of the Mullaji — and to prepare a report. Its chairman is Shri Narendra Nathwani, a current Member of the Lok Sabha and a former judge of the Bombay High Court. The members of the commission are as follows:

1. Shri V. M. Tarkunde — a retired judge of the Bombay High Court, General Secretary of Citizens for Democracy, and President of the Supreme Court Bar Association.
2. Dr. (Miss) Aloo Dastoor — Head of the Department of Political Science, Bombay University.
3. Dr. Moin Shakir — Head of the Department of Politics, Marathwada University, Aurangabad.

4. Dr. Alam Khundmiri — Head of the Department of Philosophy, Osmania University, Hyderabad.
5. Shri C. T. Daru — Member-Secretary.

The commission has prepared a questionnaire for this inquiry, which is enclosed herewith. If, after reading it carefully, you send correct and accurate answers, it will greatly assist the work of the inquiry. If the form does not leave enough space for an answer, you may use a separate sheet of paper for the purpose.

Kindly fill in the form, sign it, and return it — together with your name and full address — to the address given below:

The Nathwani Commission  
c/o C. T. Daru  
9, New Valkapuri Society  
Gulbai Tekri Road  
Ahmedabad 380015 (India)

If for any reason you do not wish your name to be disclosed to others, please make this clear in your letter. All the information entered on the form will be kept entirely confidential. Please also state clearly whether or not you would be willing to give oral testimony in connection with the information you provide.

It is hoped that you will send your answers within twenty-one days of receiving this questionnaire.

It must also be made clear that the commission's purpose is not to investigate the truth or falsity of the community's religious beliefs. It will be the commission's duty not to allow even the slightest harm, in letter or in spirit, to the right to religious freedom guaranteed by the Constitution of India.

We hope that you will send your answers as soon as possible and so cooperate in the commission's work.

Yours faithfully,  
C. T. Daru  
For the Commission

# QUESTIONNAIRE

## SECTION "A"

### Civil Liberty and Human Rights

1. Do you agree that in India — irrespective of religion, community, or race — every community enjoys equal rights and freedom in social matters?  
(1) Yes      (2) No      (3) Don't know
2. If not, name the community that does not enjoy these rights.
3. In your opinion, do you have the right to express your views on the affairs of your own community?  
(1) Yes      (2) No
4. If not, why not?
  - (a) Only the Mullaji and his agents have that right.
  - (b) It is against the social traditions of the community.
  - (c) It is contrary to religious tradition.
  - (d) You fear the consequences.
  - (e) Some other reason.

5. Do you have the right to:
- (a) form any union, association, mandal, or cooperative organization?
  - (b) establish any welfare institution — for example a school, society, bank, trust (*waqf*), travellers' lodge, orphanage, cooperative store, or home for widows and the elderly — and / or to manage it (whether from your own funds or from donations collected from the public)?
  - (c) mobilize the members of the community in order to shape public opinion about its affairs?
  - (d) support, or become a member of, any organization that seeks to bring about reform in the community?
  - (e) publish any newspaper or journal?
  - (f) read any newspaper or magazine without first obtaining the Syedna's permission?
6. In your opinion, should the permission of the religious head be obtained in these matters?
- (1) Yes      (2) No
7. If yes, then because:
- (a) it is the tradition of the community to do so;
  - (b) it is a good thing to obtain the religious head's blessing before beginning any undertaking;
  - (c) our religious principles require it;
  - (d) failing to do so makes one deserving of God's wrath;
  - (e) [blank].



8. If not, then because:
- (a) it is contrary to self-respect;
  - (b) it is contrary to the country's constitution;
  - (c) it involves financial and other difficulties;
  - (d) it violates the fundamental human rights provided by the Charter of the United Nations.
9. When permission was granted, was any condition imposed that obstructs your fundamental rights and freedom?
- (1) Yes      (2) No
10. If yes, list those conditions.
- (a) .....
  - (b) .....
  - (c) .....
  - (d) .....
11. In the management of institutions started with the Mullaji's permission, did you — or any person known to you — face interference from the Mullaji or any of his agents?
- (1) Yes      (2) No
12. If yes, describe the difficulties that arose.
13. In your opinion, according to the Qur'an, should the permission of the religious head and his agents be obtained for the above activities?
- (1) Yes      (2) No

**14.** Have you — or any other person known to you — done any of the things mentioned above without obtaining the permission of the religious head or his agent?

(1) No.

(2) I have done so.

(3) A relative, friend, or acquaintance of mine has done so.

*(Kindly write the name of the person and the relationship.)*

**15.** If the things mentioned in (2) or (3) were done, what was the consequence?

(a) Social boycott.

(b) Excommunication (being cast out of the community).

(c) Discrimination.

(d) Oppression.

(e) An order to close down or wind up the institution.

(f) Some other consequence.

**16.** In your opinion, do these people deserve such treatment?

(1) Yes      (2) No

**17.** If yes, then because:

(a) they have violated religious commandments;

(b) they should be punished for breaking religious traditions;

(c) if they do not abide by our beliefs and traditions, why do they wish to remain in our community?

(d) [blank];

(e) [blank].

18. If not, then because:

- (a) there is nothing wrong in not obtaining permission;
- (b) within the bounds of the law, every person has the right to act according to his own will;
- (c) [blank];
- (d) [blank];
- (e) [blank].

19. Kindly state whether the following statements are true or false.  
(True / False)

- (a) An organized campaign is being carried on against the reform-minded Bohras.
- (b) In this campaign, school children are being used.
- (c) The children of reform-minded Bohras who study in Bohra schools are harassed and troubled.
- (d) The reformists are bent on splitting the community.
- (e) By spreading false stories, the reformists are bent on diminishing the prestige of our religion. *[reading of one word uncertain]*

20. Are you free to:

- (a) cast your vote for the party or candidate of your choice?  
(1) Yes      (2) No
- (b) stand as a candidate in general or municipal elections without obtaining the religious head's permission?

21. Is any direct or indirect pressure put on the members of your community to vote only for those candidates who — if they belong to the community — have obtained the religious head's permission, or who — if they belong to another community — have received the religious head's blessing?
- (1) Yes      (2) No
22. On all invitation cards, in letters written to the religious head and his officials, and in other community correspondence, is it obligatory in your community to write *Abd-e-Syedna* ("slave of the Syedna") for a man and *Amat-e-Syedna* ("bondmaid of the Syedna") for a woman?
- (1) Yes      (2) No
23. If someone fails to do so, what is the consequence?
- (a) Social boycott. (1) Yes      (2) No
- (b) Excommunication. (1) Yes      (2) No
- (c) Discrimination. (1) Yes      (2) No
- (d) Oppression. (1) Yes      (2) No
- (e) Consent (*raza*) for marriages is withheld. (1) Yes      (2) No
- (f) Some other consequence.
24. Do you agree that the following measures are necessary in order to preserve every citizen's access to civil and human rights?
- (a) The 1955 law for the protection of civil rights should be amended to include every Indian citizen, without distinction of religion or community.
- (b) [blank].
- (c) [blank].

(d) [blank].

## SECTION “B”

### Social Boycott and Excommunication

1. In your opinion, is the practice of *bara’at* (excommunication) and social boycott in conformity with the principles of the Shia Isma’ili Tayyibi sect of Islam?

(1) Yes      (2) No

2. Is *bara’at* or social boycott practised in your community?

(1) Yes      (2) No

3. If yes, then this practice:

- (a) In which year did it begin?  
(b) Who started it?  
(c) Through whom was it begun?  
(d) How is the public informed of it?  
(e) How is it enforced?

4. If you know of any, give details of the persons or families who have been socially boycotted:

|   | <b>Name of person<br/>or family</b> | <b>Year boycott<br/>imposed</b> | <b>Reason for<br/>the boycott</b> |
|---|-------------------------------------|---------------------------------|-----------------------------------|
| a |                                     |                                 |                                   |
| b |                                     |                                 |                                   |

|   | <b>Name of person<br/>or family</b> | <b>Year boycott<br/>imposed</b> | <b>Reason for<br/>the boycott</b> |
|---|-------------------------------------|---------------------------------|-----------------------------------|
| c |                                     |                                 |                                   |
| d |                                     |                                 |                                   |
| e |                                     |                                 |                                   |

5. State whether the following statements are true or false (if true, illustrate with examples):
- In order to socially boycott a person or family, divorces were brought about between husband and wife, or organized efforts were made to do so.
  - People were forced, against their wishes, to socially boycott a person or family.
  - Members of the community are strictly forbidden to buy any goods from the shop or factory of a person or family that has been socially boycotted.
  - Bohra employers are compelled to dismiss from employment a Bohra employee who — or whose family — has been socially boycotted.
  - Persons or families who are socially boycotted are forcibly prevented from entering the community's mosques and so barred from worship.
  - Those who are socially boycotted have been prevented — by force or by other means — from burying the dead of their households in the public cemeteries set aside for Bohras.
  - Because one connected party was socially boycotted, a father, mother, or spouse has been separated from their children (the latter being cut off from the former).

- (h) In the mosques, the Mullaji or his agent has uttered curses against the Bohras who work for social reform and against those who support them in principle, and has created an atmosphere of hatred toward the reformers.
- (i) On several occasions the Mullaji or his agent has directed the worshippers in the mosque to wage *jihad* against the Bohras working for social reform.
- (j) Social reformers have been attacked and threatened inside the mosques.
- (k) For families who are socially boycotted, it is almost impossible to arrange marriages within the community.
- (l) Of the intellectuals and social reformers who voiced even the slightest dissent between 1917 and 1948, [the account continues] — they were excommunicated without even being given a hearing.
- (m) Such cases of excommunication, carried out in this manner, have been taken to the courts.
- (n) After the law to prevent excommunication was enacted in Bombay in 1948–49, the practice of excommunication in the Bohra community came to an end.
- (o) Before the suit filed in 1917 by the Advocate General of Bombay — acting as protector of the public, in respect of the public trusts under the Mullaji’s control [*one clause uncertain*] — no one used to be excommunicated or socially boycotted on social (as opposed to religious) grounds.
- (p) After that suit was filed in the Bombay High Court, the religious head revived the practice of excommunication so that no member of the community would dare to oppose the Mullaji.

8. Does the religious head continue the practice of excommunication even today?

(1) Yes      (2) No

9. If yes, was it done after the matter had been placed before the congregation (*jamaat*)?

(1) Yes      (2) No

10. Was the person concerned given an opportunity to be heard?

(1) Yes      (2) No

11. It is enforced on the following grounds:

(a) deviation from religious belief; (1) Yes      (2) No

(b) the advocacy of social reforms that have no bearing on religious belief. (1) Yes      (2) No

12. If any case of excommunication has come to your knowledge since 1949, please record it:

|   | <b>Name of person<br/>or family</b> | <b>Year</b> | <b>Reason</b> |
|---|-------------------------------------|-------------|---------------|
| a |                                     |             |               |
| b |                                     |             |               |
| c |                                     |             |               |

13. In your opinion, what steps are needed to put these conditions right?

(a) Appropriate legislation.

(b) [blank].

(c) [blank].



*Items numbered (6) and (7) in this section appear in the original as a short series of yes / no statements continuous with those above; the question numbering of the manuscript is irregular and has been preserved as written.*

## SECTION "C"

### **Taxes, Levies, Offerings (Nazrana), and Salaam**

1. Do you have to give any tax, levy, offering (*nazrana*), or *salaam* to the Mullaji or his agents?

(1) Yes      (2) No

*If yes, please explain:*

|   | <b>Tax</b> | <b>Levy</b> | <b>Nazrana</b> | <b>Salaam</b> | <b>Amount / Purpose</b> |
|---|------------|-------------|----------------|---------------|-------------------------|
| a |            |             |                |               |                         |
| b |            |             |                |               |                         |
| c |            |             |                |               |                         |
| d |            |             |                |               |                         |

2. In your opinion, is it necessary to do this?

(1) Yes      (2) No

*If yes, why?*

- (1) it is the custom of our community;
- (2) the money from it helps to increase the welfare of the community;
- (3) out of fear and intimidation;
- (4) some other reason.

*If these are collected, then:*

(1) by whom?

(2) monthly, quarterly, half-yearly, or annually?

*If not, why not?*

(1) there should be no coercion;

(2) it breeds corruption;

(3) some other reason.

3. What happens if one fails to do this?

(1) Social boycott.

(2) Expulsion from the community.

(3) Discriminatory treatment.

(4) Retaliatory action.

(5) Permission for marriages or burials is withheld.

(6) Some other consequence.

4. For the schools, colleges, hospitals, dispensaries, mosques, travellers' lodges, madrasas, and the like that are started — directly or indirectly — through the chief Mullaji or his representatives, do you have to give donations (*chanda*)?

(1) Yes      (2) No

*If yes, how much have you paid, annually or on average?*

5. Is it true that the government or the local civil authorities give the community land for burying its dead?

(1) Yes      (2) No

6. Is the cemetery of your locality one given by the government, or by the local civil body?

(1) Yes      (2) No

7. Is there a practice of reserving a grave-plot for oneself or one's family by paying the price in advance?

(1) Yes      (2) No

*If yes, how is the price for reserving the plot fixed?*

8. Have you — or anyone known to you — paid any sum for a burial; or has any member of your family paid any price for burial in a particular cemetery?

(1) Yes      (2) No

*If yes, give details.*

9. Is there any tax or levy, under the name *Haqq al-Nafs*, for the salvation of the deceased (a levy upon the dead)?

(1) Yes      (2) No

10. For whom is the levy called *Nazr-e-Maqam* intended?

11. Who collects it?

12. Is there a practice of the chief Mulla conferring titles (*khitab*) on members of the community?

(1) Yes      (2) No

*If yes:*

(1) on what basis?

(2) the nature of the titles;

- (3) how many?
- (4) anything else.

13. On what occasions are these titles conferred?

14. What merits are looked for in conferring these titles?

15. At the time of receiving such a title, does the recipient — and do the members of his family — present any offering (*nazrana*) to the chief Mulla?

- (1) Yes      (2) No

*If yes, how much?*

16. Are receipts given for the payments mentioned above?

- (1) Yes      (2) No

17. In your opinion, should the chief Mulla or his agents not be required to render an account of these sums to the community?

- (1) Yes      (2) No

18. (A) If yes, then because:

- (1) the community has the right to know how these sums are used;
- (2) this would help prevent the misuse of such funds;
- (3) some other reason.

(B) If no, then because:

- (1) it is not the custom of the community;
- (2) it would amount to expressing distrust of the chief Mulla;
- (3) fear of the consequences;

(4) some other reason.

## SECTION “D”

### **Miscellaneous Matters**

Will you throw light on the various customs and practices of the community — for example, death rites, feasts (*da'wat*), the celebration of festivals, the naming of a child, the keeping of a beard, personal grooming, the wearing of a particular kind of dress, and so on?

Name: .....

Address: ..... Signature: .....

# Appendix A-1: English Dailies; Gujarati Press; Press Note

The following press note was given to the press and to the news agencies for publication on 17 March 1978 at Ahmedabad, during a press conference addressed by the Commission's Member-Secretary, Mr. C. T. Daru. A summary of this press note appeared in various Gujarati periodicals, and also in the English and Gujarati newspapers listed below.

## English Dailies

|                |                   |
|----------------|-------------------|
| Times of India | Ahmedabad edition |
| Indian Express | Ahmedabad edition |
| Western Times  | Ahmedabad edition |

## Gujarati Daily Newspapers

|                 |           |
|-----------------|-----------|
| Janmabhoomi     | Bombay    |
| Bombay Samachar | Bombay    |
| Jansatta [?]    | Ahmedabad |
| Sandesh         | Ahmedabad |

*In the original the date of publication is written beside each title as a stacked figure. The month and year read as March 1978 (consistent with the 17 March 1978 press conference), but the individual days could not be made out with confidence in the handwritten source.*

## Press Note

The National Working Committee of Citizens for Democracy has appointed a Commission to inquire into, and to report upon, the violation of the human rights of the reform-minded members of the Dawoodi Bohra community by his devotees acting in the name of the supreme Mulla [the Syedna Sahib]. The Chairman of this Commission is Mr. Narendra Nathwani, a retired Judge of the Bombay High Court and a sitting Member of the Lok Sabha. Its other members are Mr. V. M. Tarkunde, a retired Judge of the Bombay High Court and General Secretary of Citizens for Democracy; Dr. (Miss) Aloo Dastoor, head of the Department of Political Science at Bombay University; Dr. Moin Shakir, head of the Department of Politics at Marathwada University; Dr. Alam Khundmiri, head of the Department of Philosophy at Osmania University; and Mr. C. T. Daru, who is Member-Secretary.

The Commission has prepared a detailed questionnaire in English and in Gujarati, copies of which may be obtained by members of the community from Mr. C. T. Daru at 9, New Alkapuri Society, [Clubhouse Road?], Ahmedabad-380015. The Commission will begin hearing evidence once the answers to the questionnaire have been received.

The Commission has so far received a large number of complaints concerning specific and concrete incidents, relating in particular to the following matters:

1. The trampling of human rights — such as freedom of expression, freedom of publication, freedom of association, and the right to vote or to stand as a candidate.
2. The compulsory payment of various heavy taxes, with no say in the management of the money collected through them.
3. Excommunication from the community as the penalty for disobedience, followed by social boycott, separation from family members, boycott of one's business, loss of employment, prohibition from wor-

shipping in the community's mosque, refusal of burial in its cemetery, refusal of permission to marry, physical assaults, and the harassment of the family of the person who has been put outside the community.

The Commission will investigate these complaints.

The Commission has received a great many letters of protest against its appointment. These protests stemmed chiefly from the misunderstanding that the Commission's work would amount to interference in religious matters. The Commission has made it clear that it will not inquire into the truth or the validity of the religious principles and beliefs of the community. Its work will therefore not amount to interference of any kind with the guarantee of religious freedom given under the Constitution.



## Appendix B: Places and Dates of the Commission's Sitzings

|                     |                  |
|---------------------|------------------|
| 1. Bombay           | 10 November 1977 |
| 2. Bombay           | 26 December 1977 |
| 3. Bombay           | 12 February 1978 |
| 4. Bombay           | 30 April 1978    |
| 5. Gandhidham Nagar | 24 June 1978     |
| 6. Delhi            | 20 October 1978  |
| 7. Delhi            | 3 February 1979  |
| 8. Delhi            | 14 April 1979    |

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*Dates are given in the original as day–month–year and are rendered here in full. Place names follow the spelling used elsewhere in the report; “Gandhidham Nagar” is the town in Kutch referred to in Chapter One as Gandhidham (Kutch).*

# Appendix C: Illegal Transfer of Funds

(See Chapter Three)

## The Illegal Transfer of 50,000 Shillings

### Expulsion of a Bohra Leader

*(Nationalist Staff Reporter)*

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The spiritual and secular head of the Dawoodi Bohra community, Dr. Syedna Mohammed Burhanuddin Sahib, who had arrived in Tanzania on Monday, has been served with an expulsion order requiring him to leave the country within 48 hours. In connection with his visit, the central council of the Bohra community in Tanzania had violated the country's exchange-control regulations. The Council had sent 50,000 shillings to Mombasa, from where the money was remitted to India in order to buy tickets for the chief mullah's large party, which consisted of more than fifty persons. This was done in breach of the directives of the Bank of Tanzania. It is the government's policy that those who come to visit residents of Tanzania should bear their own expenses, and that — without

some reciprocal arrangement [word uncertain] — they may not require the residents of Tanzania to meet such costs.

It has come to light that when the Council sought permission to purchase the tickets, the Bank of Tanzania had replied that this could be done only if the chief mullah's many followers in Tanzania surrendered their right to the basic travel allowance in force since 1968. Disregarding the bank's directives, the Council sent the money to Mombasa, in the belief that the Tanzanian authorities would tolerate the transfer of the money out of East Africa under Kenya's exchange-control [arrangements] [remainder of clause uncertain].

The official statement says that, because Tanzania is a poor country, it is the government's duty — acting on behalf of all its citizens — to prevent the exploitation of the faithful by those who demand sums of money as a religious obligation and then use that money for purposes that have no connection with the spiritual or material welfare of the citizens of Tanzania. The statement adds that the government has incontrovertible proof that all of this took place during Dr. Sahib's recent visit. Over the past few weeks the newspaper [name uncertain] has received many letters from Bohras shedding light on the practice of demanding such payments. In an editorial last week, this newspaper had warned against money being taken out of the country in the name of religion.

### **The full text of the official statement is as follows:**

The government and people of this country respect religion and protect the fundamental religious rights of every citizen — whatever faith he may profess — and permit the teachings of that religion to be practised to the extent that those teachings are consistent with the material and religious freedom of other citizens. This religious freedom is enjoyed by the members of the Bohra community as well, and will always be enjoyed by them. Dr. Sahib's expulsion has no effect upon their right of worship.

Religious freedom does not mean violating this country's exchange-control law, nor does it mean the freedom of any individual or group to grow wealthy in the name of religion by exploiting the poor. "This is a poor country," and it is the government's duty, acting on behalf of all its citizens, not to allow the faithful to be exploited by those who demand money as a religious obligation and then use that money for purposes that have no connection with the religious or material prosperity of the citizens of Tanzania.

The government has conclusive proof that all of this took place during Dr. Sahib's recent visit. We are reluctant to wound, in individual cases, the sincere [religious feelings] of those citizens who in their innocence have fallen victim to the exploitation of their religious beliefs [phrase uncertain]; but the government has been left with no course open to it other than to bring this leader's visit to an immediate end.

We welcome the fact that many religious leaders are striving to help the poor. We shall not permit others to swallow up even the meagre [reading uncertain] wealth of the poor.

## Appendix D: The Old Misaq (from Suit No. 94 of 1915)

An Urdu rendering of the English translation of the Misaq (the oath of allegiance) that was placed on record by the Advocate General of Bombay in Suit No. 94 of 1915.

*Since the Urdu of the original is itself a translation from an English version of the oath, the text below is an English translation of that Urdu.*

---

Then he (the Da'i) should praise and glorify his God, and should invoke blessings and peace upon the earlier Prophets of God Most High and upon the immaculate Imams. He should swear an oath of obedience to his God, to the angels, to His Messenger, to the Wasi (the legatee), to the Imams, and to the Imam of the Age. Upon those who swear this oath of loyalty to all of these and to the Imams, God sends down His mercies — as is recorded in the Book of the Covenant (*kitab al-iqarar*) [and this is so?].

He should swear that he will believe in God, in His angels, in His Messengers, in their Imams, and in all of them, from the Wasi down to the present Imam; that he will keep firm his inward and outward submission and humility; that he will help his Imam of the Age and will not disobey his command; that he will not make the inner mysteries of the faith known to any person who is not worthy of them, nor even to one who has not made

and accepted the oath (*iqrar*); that he will love those who love the Imams and will hold enmity toward their enemies; that he will sever his relations with their enemies; that he will be sincere toward God and toward His favoured servants (that is, the Imams); and that, should he violate the oath, the same punishment shall fall upon him as falls upon those who break an oath.

He (the Da'i) shall summon them toward his Imam of the Age; he shall declare his own knowledge to be the bounty (*faiz*) of the Imam; and he shall not attribute a single word to himself (the Da'i).

# **Appendix E: Degrading Conditions Imposed for the Grant of Consent (Raza)**

*(See Chapter Six.)*

## **List of the Conditions Imposed in Connection with the Grant of Consent (Raza)**

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1. The name of the organization, its membership, its constitution, and so forth must conform to the directions of the clergy (the priestly class).
2. No election shall be held for the managing committee. The clergy shall select, appoint, and remove the members of the managing committee.
3. A person who gives a donation to begin the above-mentioned activity or organization must also pay whatever sum the clergy may demand for other purposes.

4. The donated sum shall not be spent on welfare activities according to the wishes of the donor; it shall instead be handed over to the Syedna Sahib. In the case of immovable property, a *waqf* (endowment) must be created and dedicated in the name of the Syedna Sahib. In short, the object of this condition is to make him the owner of the donated property.
5. Before the institution is inaugurated, a large sum must be paid in the form of a *nazrana* (offering).
6. The clergy shall choose the person who is to perform the inauguration.
7. In the case of a local activity or a local organization, the local *Amil* — who is the agent of the Syedna Sahib — shall preside at the organization's functions.
8. From which place, from which persons, and how much money is to be collected — the clergy shall decide all of this.
9. The decision to bar any person from the benefits of the organization is also to be left to the clergy.
10. After the organization has been started with consent (*raza*), the clergy shall retain the right to expel any member or office-holder from the organization. A suitable amendment to the constitution must be made for this purpose.
11. The clergy also reserves the right to forbid participation in the activities held by the organization, to forbid the addressing of its meetings, and — in the case of libraries — to ban any newspaper, journal, or book.
12. Even if the organization has been started with consent (*raza*), should it fail to follow the directions of the clergy obediently, then, in order



to dominate it or bring it into submission, every possible effort will be made through social boycott or the threat of social boycott. And if the administrators insist on keeping the institution free of the clergy's supremacy and on continuing its activities, then those who cooperate in the organization's work and the members of its staff will be directed to dissociate themselves from it; donors will be forbidden to donate, and beneficiaries will be forbidden to take any benefit.

13. Besides controlling the activities of the followers of the Dawoodi Bohra community and the institutions they have established, the clergy has also made attempts to seize control of the activities of mixed (non-sectarian) institutions such as licensed clubs.
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## Appendix F: Firman for Dissolution of the Udaipur Youth Association

*Translation of a letter — written in the Gujarati language and sent, on behalf of the Syedna, through his brother Yusuf Najmuddin — dated 26 Rajab 1392 A.H., addressed to Janab Ghulam Ali, son of Abdul Ali, alias Kalu Bhai, Secretary of the Bohra Jamaat of Udaipur.*

*Reference No. 158/92*

From the servant of the trustworthy Da'i of God; the deputy of the Family of Ta-Ha and Ya-Sin; the proof of the Commander of the Faithful; the chosen one of the Imam of the pious; the exemplar of the people of sincerity and certitude; the Ka'ba of those who circumambulate and the tribe of the gnostics; the crown of the radiant Tayyibi mission (*da'wat*); the delight of the eye of the Imam of the pious; the pillar of the monotheist scholars and [their] champion — our lord and master, Abu'l-Qaid Jawhar Muhammad Burhanuddin, may God perpetuate his shadow over us and over all the believers until the Day of Judgment.

From the trusted one of the Tayyibi mission, Yusuf Najmuddin, from the place of Pune to the place of Udaipur — to the noble and cultured Ghulam Ali [son of] Abdul Ali, Kalu Bhai, may God Most High protect him — as a gift, with fair greetings and high honour. [*The remainder of the opening invocation is in heavily ornamented Arabic and is only partly legible; its sense is a customary benediction invoking God, the Lord of the Age, and his Da'i, and the good fortune (felicity) of the writer.*] And thereafter, be it known that, from the luminous station — the place of the trustworthy Da'i — the exalted command (*firman*) is as follows:—

Our lord, the most exalted and most gracious Da'i — may God prolong his noble life and perpetuate his rule until the Day of Judgment — this year graced, in resplendent presence, the holy and glorious shrine (al-Mazar al-Muqaddas al-Fakhri) at Taherabad on the occasion of the blessed *Urs*. At that time he was pleased to issue his luminous direction (*irshad-e-munir*) that there, in Udaipur, a certain so-called “Youth League” has been set up without the slightest [sanction or permission]; it must be shut down entirely. In compliance with this exalted order, the said organization is to be wholly dissolved, all its proceedings and activities are to be stopped, and a detailed report of this is to be sent to His Eminence.

It has also come to notice that these so-called youth have proposed to establish a bank. It is therefore the exalted command that, if this be correct, the establishment of any such bank (from among the believers) is to be forbidden absolutely.

This, and peace (*hadha wa-al-salam*).

*Written [in the early hours], the eleventh of the month of Rajab al-Murajjab, in the year 1392 A.H.*

# Appendix G: Community Clearance Letter

*(see Chapter Eleven)*

## Clearance Letter

*(translated from Gujarati)*

### Anjuman-e-Hameedi

Santacruz Bohra Jamaat, Station Road  
Santacruz (West) — 400 0[?]5

To the esteemed Fakhr al-Mulk, Sayyidi Saifuddin Sahib, S.D.T.S.P.E.X.M.  
*[a string of honorific abbreviations, as in the original]:*

After the loftiest respects and abundant salutations, it is submitted that the money for the *sabeel* and other dues has been received from the brother named below. The account of the said brother is therefore clear, with nothing outstanding, on the books of the Santacruz Jamaat. A marriage (*nikah*) is to take place at the home of the said brother, and the Anjuman (the Jamaat Committee) has no objection to it. This is respectfully submitted.

**Name:** Hatim Bhai Akbar Ali [*the word “Manzil” follows here;  
possibly part of a building name*]  
**Address:** Prem [Mithyovar?] Darshan, Hasanabad, Second Lane,  
Santacruz.  
**Bride’s name:** Hajira Bai Hatim Ali

Servant of the Syedna (*Abd-e-Syedna*)

T. R. [Nepterwala?]

(*signature*)

# Appendix H: The Prevention of Social Disabilities Bill, 1977

*(See Chapter XIV)*

As introduced in the Lok Sabha on 15 July 1977

Bill No. 66 of 1977

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## **The Prevention of Social Disabilities Bill, 1977**

*by*

**Dr. Vasant Kumar Pandit — Member of Parliament**

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*A Bill to prevent the imposition of social disabilities by any person or persons of a community upon any person or persons of the same community, and to provide penalties for such act or acts and for matters connected therewith.*

It has come to notice that the practice of imposing social disabilities continues even now in certain communities — a practice which, among

other things, deprives people of the rights they have acquired by birth or otherwise, and which is a grave violation of the fundamental rights they enjoy as citizens of this country.

Having regard to the spirit of social change and of the democratic order of our country, and to the interests of the public, there is an urgent need to prevent the creation of such social disabilities and to provide penalties for such act or acts and for matters connected therewith.

Be it enacted by Parliament in the Twenty-eighth Year of the Republic of India as follows:—

### **1. Short title, extent, and commencement.**

- (1) This Act may be called the Prevention of Disabilities Act, 1977.
- (2) It extends to the whole of India.
- (3) It shall come into force at once.

### **2. Definitions.** In this Act, unless the context otherwise requires —

- (a) "community" means a group of persons associated with one another by birth, descent, conversion of religion, customs, or the performance of ceremonies, or who belong to the same religion or to the same beliefs and to the same caste or sub-caste;
- (b) "person" means an individual, whether man or woman, who belongs to a community.

### **3. What constitutes depriving a person of social rights.** A person shall be deemed to have committed the act of depriving another of social rights who —

- (a) deprives, prevents, or obstructs any person of his community from access to, or use of, the places used for worship, prayer, or the performance of the religious ceremonies and customs prevalent in the

community, or creates the occasion for such deprivation, prevention, or obstruction;

- (b) deprives, prevents, or obstructs any person of his community from access to, or use of, places meant for communal, religious, or public purposes which are established and managed wholly or partly by the community and through the community, and which are generally open to the use of all the members of that community, or creates the occasion for such deprivation, prevention, or obstruction;
- (c) prevents or obstructs any person of his community from taking any kind of benefit from a charitable institution or endowment (waqf) established for the benefit of the community, or creates the occasion for such prevention or obstruction;
- (d) prevents or obstructs any person of his community from access to, or use of, any school, educational institution, medical institution, community hall, club hall, cemetery, cremation ground [?], or any other place established for the use or benefit of his community, or creates the occasion for such prevention or obstruction;
- (e) prevents or obstructs any person of his community from the performance of any social or religious custom, or from holding ceremonies, or from taking part in social or religious gatherings, assemblies, meetings, or processions, or creates the occasion for such prevention or obstruction;
- (f) prevents or obstructs any person of his community from establishing and maintaining the social, business, or commercial relations with other members of the community that such person would establish and maintain in the ordinary course, or creates the occasion for such prevention or obstruction;
- (g) directly or indirectly incites, provokes, or encourages another person of the community to sever social, religious, business, or commercial relations with any person of his community;



- (h) refuses to, and deprives any person of his community of, the performance of marriage, burial, or other religious ceremonies and customs which that person, as a member of the community, ordinarily [is entitled to];
- (i) prevents or obstructs any person of his community from entering and staying in any dharamshala, inn, or travellers' lodge whose doors are ordinarily kept open to the members of the community, or creates the occasion for such prevention or obstruction; or
- (j) prevents or obstructs any person of his community from entering and using any place of worship — such as a temple, mosque, church, gurudwara — or any cremation ground or cemetery that is ordinarily kept open to the members of the community, or creates the occasion for such prevention or obstruction.

#### **4. Penalties.**

- (1) Whoever subjects any person of his community to any kind of social disability shall, on the offence being proved, be liable to imprisonment which may extend to six months, or to rigorous imprisonment, or to a fine which may extend to one thousand rupees, or to both.
- (2) Whoever aids or abets the commission of an offence punishable under this Act, or connives at the commission of any such offence, or harbours an offender, or destroys evidence, shall, on the offence being proved, be liable to imprisonment which may extend to six months, or to rigorous imprisonment, or to a fine of one thousand rupees, or to both.

**5. Offences to be cognizable, etc.** Notwithstanding anything contained in the Code of Criminal Procedure, 1973, every offence under this Act —

- (a) shall be a cognizable offence;
- (b) shall be compoundable with the permission of the court [?].

## **6. Powers of police and magistrate.**

- (1) Any police officer —
  - (a) may remove, or cause to be removed, any obstruction erected, installed, or found at any place, if the police officer has sufficient grounds to believe that such obstruction has been erected, installed, or found for the purpose of committing an offence mentioned in this Act;
  - (b) may open, or cause to be opened, any such gate or door, if the police officer has reasonable grounds to believe that the gate or door has been closed with the intention of committing an offence mentioned in this Act.
- (2) Whenever a police officer has sufficient grounds to believe that a person is about to commit an offence mentioned in this Act, he may arrest that person without a warrant and hand him over to the custody of the officer-in-charge of a police station; and the officer-in-charge may release the said person on bail and/or on a bond (recognizance) to appear before the magistrate's court, or may produce, or cause to be produced, the said person before the magistrate's court within twenty-four hours of the arrest.
- (3) When a person appears before the magistrate in pursuance of the bail given under sub-section (2), or is produced before the magistrate, the magistrate shall have the power to call upon such person to show cause and, in his discretion, to require him, for a period of not more than three years, to furnish security and/or a bond for his good behaviour, or not to require it. If, after inquiry, the magistrate is satisfied that the person should furnish security and/or a bond, the magistrate may pass an order accordingly; and to all orders for furnishing security under this sub-section, and to orders connected therewith, all the conditions of Section 106 and of Sections 112 to 123 (both inclusive) of the Code of Criminal Procedure, 1973, shall apply.

## **Statement of Objects and Reasons**

Even today, old and unconstitutional traditions — such as untouchability, boycott, and the like — continue in various communities of our country, with the result that individuals or groups are gravely harassed. It is only natural that such harassment stirs up hostile feelings of one against another, and breeds discord; this has a harmful effect upon the social life of the community. It is therefore necessary to put an end to this mischief by placing a ban on the imposition of social disabilities of various kinds. This object can be achieved by enacting suitable legislation and, at the same time, by prescribing fresh penalties for involvement in such evil acts.

This Bill is accordingly presented.

**Vasant Kumar Pandit**

New Delhi.  
15 June 1977